Human Rights Reader

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Naming Conventions and other methodological issues

This project involves excerpts from human rights courts and supervisory bodies. The official citation names for these documents is long and convoluted, and sometimes it eschews references to information that is crucial from the study such as the name of the issuing body or organ. To avoid excessively verbose subtitles, and to provide information for students, this casebook takes the approach of using a naming "handle" and combined with a bibliography. The name handle has the following format: (1) the issuing body, (2) a descriptive and easy to retrieve name of the document, (3) the date the document was issued. To compensate for the loss of precision, the bibliography section at the end will match this handle to the official citation of the document.

Another important issue is to clarify that this casebook does not try to reproduce the documents verbatim. This primarily involves extractive summarization, that will generally be denoted by skips in paragraph numbering or by ellipsis inside brackets ie. "[…]". Also the case book will not reproduce all the heading material and formatting of the official documents, or typographical choices such as all-caps or bold font. This is regarded as a strictly aesthetic issue were matching the official documents is not required. However the paragraph numbering, when present, is preserved in order to ensure the ability of the student to compare the excerpt with the original.

Chapter 1: Human Rights in International Law

In a certain way of conceptualizing the discipline, human rights is fundamentally a special domain of Public International Law (hereinafter PIL). In this framing, "International Human Rights Law" (IHRL) inherits the basic "rules of the game" from International Law, and for this same reason, having substantial knowledge of PIL is a prerequisite for learning IHRL. Our main textbook seems to take this framing, devoting Chapters xx to xx to introducing various elements of Public International Law.

For the purposes of our course, perhaps the two most important "inheritances" are the law of treaties as a medium for creating IHRL, and the rules of treaty interpretation that are then used to clarify the meaning of such law. In time the student may note that the latter have given IHRL a significant degree of fluidity -perhaps too much fluidity-, as vague standards, suitably interpreted, can be extended to cover seemingly every situation, undermining the idea that states agree to something and are hold accountable to it, rather than signing a blank check. However to say at this point is to get way ahead of ourselves. Interpretation, even when creative, can be solid and unobjectionable. We can see this the General Comment 15 of the CESCR that begins this Chapter.

In this line of thought, the "inheritance" is not without modification. Human rights is a part of PIL, but it constitutes a special regime that modifies, sometimes extensively, the rules of the PIL game. For example, while traditional PIL follows a contractual logic, allowing states substantial freedom to leave agreements or to customize it to their needs, IHRL is considered to be more community oriented than contractual; it sets the moral boundaries of the so-called international community, and therefore, restricts states ability to leave human rights treaties, or to modify them inter-se if that compromises the moral stance that the treaty aims to achieve. This is something that comes out clearly in the Advisory Opinion on the Genocide Convention. This is not a rights granting convention like the ICCPR or ICESCR, but it is a human rights instrument in a broad sense, as it aims to outlaw a crime that however defined, violates the kernel of human dignity. States then are not allowed to modify their commitments like they would in a trade treaty. A trade treaty may have two states agreeing to leave certain goods out of the agreement if they so agree (for example agricultural products); it is beyond the pale however, to think that two states may choose to opt out of certain aspects of the prohibition of genocide.

The view that IHRL is fundamentally a special regime of the PIL is not one that should be uncritically accepted. It has some significant drawbacks to note:

First it creates a gap between international human rights and "constitutional human rights". The reader should note that I have put the second concept in scare quotes. As a matter of fact, within the current conceptualization, constitutional rights are typically called something else such as "civil liberties", "fundamental rights" and very often the gap is laced with acrimony: perhaps for human rights scholars civil liberties are not sufficiently progressive, while constitutional scholars see human rights as fluff of secondary importance. However its political significance, this gap has little scientific merit. Human rights and constitutional rights are functionally the same virtually everywhere. They do the same thing (protect the basic interests and freedoms of human beings), and they even cover the same ground (right to life, free speech, etc.). When they do not cover the same ground, we have options for enrichment and mutual learning that are shut down by emphasizing that "real" human rights are international.

Second, this framing betrays the reality that regional human rights courts such as the ECtHR function more as Constitutional Courts than anything else. The ECtHR must apply the ECHR, it is not granted license to directly apply other laws or instruments. Admittedly, the IACtHR has rebelled against this doctrine and applied other international rules directly, but such practice does not necessarily change the fact that according to the Pact of San Jose, the Court is bound to apply the American Convention, and not international law generally.

Third, while case law is not technically binding in PIL, and thus not in IHRL, the power of case law to bring concreteness to the vague commitments often found in human rights treatises is unmatched. The framing of IHRL as PIL does not by necessity or by principle imply turning one's back to case law, but sometimes it does so in practice, as attention is shifted towards techniques of interpretation as those found in the VCLT. Invariably, these are less enlightening than working with (many) prior cases.

One should be wary about exceptionalism about human rights; the idea that IHRL got it right, for once and for all, and that it can be its own self-contained, self-interpreting sphere, disconnected from the sometimes startling, local realities. There is also a loss of power here. Where one does not connect with local traditions, one loses the traction that rules need to be weighty in real life. I personally prefer to think that the international and the local must always be in dialogue, and thus would like to resist the idea that IHRL is fundamentally and exclusively international human rights.

Committee on Economic, Social and Cultural Rights, General Comment No. 15 (2002)

COMMITTEE ON ECONOMIC, SOCIAL AND CULTURAL RIGHTS Twenty-ninth session Geneva, 11-29 November 2002 Agenda item 3, Original: ENGLISH, E/ C.12/2002/11 20 January 2003, General Comment No. 15 (2002)

SUBSTANTIVE ISSUES ARISING IN THE IMPLEMENTATION OF THE INTERNATIONAL COVENANT ON ECONOMIC, SOCIAL AND CULTURAL RIGHTS

The right to water (arts. 11 and 12 of the International Covenant on Economic, Social and Cultural Rights)

I. INTRODUCTION

1. Water is a limited natural resource and a public good fundamental for life and health. The human right to water is indispensable for leading a life in human dignity. It is a prerequisite for the realization of other human rights. The Committee has been confronted continually with the widespread denial of the right to water in developing as well as developed countries. Over one billion persons lack access to a basic water supply, while several billion do not have access to adequate sanitation, which is the primary cause of water contamination and diseases linked to water.

2. The human right to water entitles everyone to sufficient, safe, acceptable, physically accessible and affordable water for personal and domestic uses. An adequate amount of safe water is necessary to prevent death from dehydration, to reduce the risk of water-

related disease and to provide for consumption, cooking, personal and domestic hygienic requirements.

3. Article 11, paragraph 1, of the Covenant specifies a number of rights emanating from, and indispensable for, the realization of the right to an adequate standard of living "including adequate food, clothing and housing". The use of the word "including" indicates that this catalogue of rights was not intended to be exhaustive. The right to water clearly falls within the category of guarantees essential for securing an adequate standard of living, particularly since it is one of the most fundamental conditions for survival. Moreover, the Committee has previously recognized that water is a human right contained in article 11, paragraph 1, (see General Comment No. 6 (1995)). The right to water is also inextricably related to the right to the highest attainable standard of health (art. 12, para. 1) and the rights to adequate housing and adequate food (art. 11, para. 1). The right should also be seen in conjunction with other rights enshrined in the International Bill of Human Rights, foremost amongst them the right to life and human dignity.

4. The right to water has been recognized in a wide range of international documents, including treaties, declarations and other standards. For instance, Article 14, paragraph 2, of the Convention on the Elimination of All Forms of Discrimination Against Women stipulates that States parties shall ensure to women the right to "enjoy adequate living conditions, particularly in relation to […] water supply". Article 24, paragraph 2, of the Convention on the Rights of the Child requires States parties to combat disease and malnutrition "through the provision of adequate nutritious foods and clean drinking-water".

5. The right to water has been consistently addressed by the Committee during its consideration of States parties' reports, in accordance with its revised general guidelines regarding the form and content of reports to be submitted by States parties under articles 16 and 17 of the International Covenant on Economic, Social and Cultural Rights, and its general comments.

6. Water is required for a range of different purposes, besides personal and domestic uses, to realize many of the Covenant rights. For instance, water is necessary to produce food (right to adequate food) and ensure environmental hygiene (right to health). Water is essential for securing livelihoods (right to gain a living by work) and enjoying certain cultural practices (right to take part in cultural life). Nevertheless, priority in the allocation of water must be given to the right to water for personal and domestic uses. Priority should also be given to the water resources required to prevent starvation and disease, as well as water required to meet the core obligations of each of the Covenant rights.

Water and Covenant rights

7. The Committee notes the importance of ensuring sustainable access to water resources for agriculture to realize the right to adequate food (see General Comment No. 12 (1999)). Attention should be given to ensuring that disadvantaged and marginalized farmers, including women farmers, have equitable access to water and water management systems, including sustainable rain harvesting and irrigation technology. Taking

note of the duty in article 1, paragraph 2, of the Covenant, which provides that a people may not "be deprived of its means of subsistence", States parties should ensure that there is adequate access to water for subsistence farming and for securing the livelihoods of indigenous peoples.

8. Environmental hygiene, as an aspect of the right to health under article 12, paragraph 2 (b), of the Covenant, encompasses taking steps on a non-discriminatory basis to prevent threats to health from unsafe and toxic water conditions. For example, States parties should ensure that natural water resources are protected from contamination by harmful substances and pathogenic microbes. Likewise, States parties should monitor and combat situations where aquatic eco-systems serve as a habitat for vectors of diseases wherever they pose a risk to human living environments.

9. With a view to assisting States parties' implementation of the Covenant and the fulfilment of their reporting obligations, this General Comment focuses in Part II on the normative content of the right to water in articles 11, paragraph 1, and 12, on States parties' obligations (Part III), on violations (Part IV) and on implementation at the national level (Part V), while the obligations of actors other than States parties are addressed in Part VI.

Reservations to the Convention on the Prevention and Punishment of the Crime of Genocide

Advisory Opinion of 28 May 1951

The question concerning reservations to the Convention on the Prevention and Punishment of the Crime of Genocide had been referred for an advisory opinion to the Court by the General Assembly of the United Nations (G.A. resolution of November 16, 1950) in the following terms:

"In so far as concerns the Convention on the Prevention and Punishment of the Crime of Genocide in the event of a State ratifying or acceding to the Convention subject to a reservation made either on ratification or on accession, or on signature followed by ratification:

I. Can the reserving State be regarded as being a party to the Convention while still maintaining its reservation if the reservation is objected to by one or more of the parties to the Convention but not by others?

II. If the answer to question I is in the affirmative, what is the effect of the reservation as between the reserving State and:

(a) The parties which object to the reservation?
(b) Those which accept it?

III. What would be the legal effect as regards the answer to question I if an objection to a reservation is made:

(a) By a signatory which has not yet ratified?

(b) By a State entitled to sign or accede but which has not yet done so?"

Written statements on the matter were submitted to the Court by the following States and Organizations:

The Organization of American States, the Union of Soviet Socialist Republics, the Hashemite Kingdom of Jordan, the United States of America, the United Kingdom of Great Britain

as incompatible with the purpose of the Convention, and might wish to settle the dispute either by special agreement or by the procedure laid down in the Convention itself.

The disadvantages which result from this possible divergence of views are real. They could have been remedied by an article on reservations. They are mitigated by the common duty of the contracting States to be guided in their judgment by the compatibility or incompatibility of the reservation with the object and purpose of the Convention. It must clearly be assumed that the contracting States are desirous of preserving intact at least what is essential to the object of the Convention.

The Court finally turned to question III concerning the effect of an objection made by a State entitled to sign and ratify but which had not yet done so, or by a State which has signed but has not yet ratified. In the former case, it would be inconceivable that a State possessing no rights under the Convention could exclude another State. The case of the signatory States is more favourable. They have taken certain steps necessary for the exercise of the right of being a party. This provisional status confers upon them a right to formulate as a precautionary measure objections which have themselves a provisional character. If signature is followed by ratification, the objection becomes final. Otherwise, it disappears. Therefore, the objection does not have an immediate legal effect but expresses and proclaims the attitude of each signatory State on becoming a party.

Chapter 2: Integrity Rights

Integrity rights is a somewhat artificial name to group together the right to life and the right to be free from torture (or inhuman or degrading treatment). The word integrity here is used in the sense of continuity of existence, of "remaining in one-piece", as what is at stake in these rights is of course preventing unlawful killing or traumatic harm, physical, mental or moral. What is meant by physical or mental is self-explanatory. As the jurisprudence makes clear, torture does not need to be physical, it can be purely psychological (cite xxxx). What is meant by moral is somewhat novel and will be discussed further below.

What is most interesting regarding the right to life is that it is not absolute. Life can be legitimately taken away in a variety of scenarios, that are perhaps best put forward in Article 2 to the ECHR. The case of xxxxx provides an excellent example of the Court admitting that in principle, an attack that foresees and tolerates civillian death as an outcome (in times of peace) is in principle compliant with human rights, even if some violations arise in some inefficiencies in how the attack was planned. It is legitimate to take lives, even innocent lives, to save lives, if the balance is proportional and necessary.

Our present laxity with regard to the right to life may deserve some reconsideration in the light of comparative jurisprudence. In a case that closely parallels xxxxx, the German Constitutional Court strikingly opposed ever targetting a civillian, not even he is being used as a human shield as all lives are of equal value and the ammount of lives to be lost cannot be numerically compared to the amount of lives to be saved.

By contrast, the prohibition of torture however remains absolute. There is regrettably some vagueness about the details here. Courts will emphasize that torture and inhuman and degrading treatment are always prohibited, but may feel shy about characterizing as "inhuman and degrading treatment" some imposed suffering or degradation that may seem to them to effectively and proportionately pursue a legitimate aim. Likewise, there is vagueness regarding the upshot of finding some practice to be tantamount to torture or inhuman or degrading treatment: does the perpetrator need to be punished? If so, does the punishment need to have a seriousness that is conmeasurate with what nominally is the crime? If prison conditions are found to reach the threshold of torture or inhuman or degrading treatment does release need to be ordered immediately?

It is also problematic that the fierceness with which the absolute prohibition of torture is defended is not necessarily matched by social and cultural resources that would back it up. We live in a highly pragmatic era, and even within the field of human rights, we relentlessly search for, and unqualifiedly applaud "what works". But then what if torture works? What if it works better than the alternative? It is honorable to stomp one's foot and simply be unwilling to budge when it comes to this topic. Yet this is not a safe place to stop in our pragmatic age. We seem to lack and need a clear moral language to explain why torture is something we should never even consider. The laxity we have with the right to life may in fact make it harder to remain fiercely unmovable when it comes to torture. If we are already weighting lives, why should we not do it with less-than-lethal means?

The prohibition of torture or inhuman or degrading treatment has an interesting penumbra. At times court have considered that while the word "torture" is reserve for particularly odious cases

of where intense suffering is intentionally caused, there are cases that fall short of torture but nonetheless trigger "inhuman or degrading treatment". In fact some conducts may only trigger "degrading treatment" and fail to clearly hit the mark of "inhuman treatment". This is not settled jurisprudence, but it is an interesting development for the reasons that will be explained below:

The idea that harm can be moral and not just mental refers to the idea that harm is a more multidimensional concept than that of "pain". There are forms of humiliation that are starting to register in case law that one cannot imagine realistically cause mental suffering. A modern example here could be putting criminal defendants in a "metal cage" if they were dangerous animals (cite xxxx), even when other means such as handcuffs were possible. I would be more concerned about the psychology of the judge or jury being tainted with prejudice, than with some sort of psychological trauma on the defendant. If anything the "normal" alternative of handcuffs is surely more physically painful than the metal cage. The point of finding this case to be a violation of the right to be free from inhuman or degrading treatment is perhaps elsewhere. It is to say that some form of "moral harm" is done to to the victim, whereby his honor or dignity is damaged, even if no physical **or mental** scars are to be found.

The idea that we can be harmed morally and not just psychological is one that should be of particular interest within the field of human rights. Some issues are seen in a distorted light if the idea of harm remains tied to physical or mental pain or disability. In this day and age it is common to see complaints that plaques honoring the names of slavers or terrorists should be taken out of public buildings. However, if harm is reduced to physical or mental pain or disability, such complaints appear to be "tempests in a teapot". Even less persuasive are attempts to frame these complaints as trying to prevent the repetition of such historical events; the law cannot concern itself with remote chains of causation. But these complaints are surely made on another register, and fit ill with the language of harm when this is strictly related only to pain or disability. Harm has another dimension, and purely moral harms (perhaps better dignitarian harm) may enter the penumbra of the prohibition of inhuman and degrading treatment.

It may be proposed that if anything, this dignitarian dimension seems to always be present in torture. A medical procedure, say done in an emergency situation where anesthesia is not available, is never torture even if extremely painful. Such procedure leaves the dignity of the person untouched. Real torture, on the other hand, embodies dignitarian harm in physical and mental suffering.

ECHR, Case of Nachova and others v. Bulgaria

CASE OF NACHOVA AND OTHERS v. BULGARIA (Applications nos. 43577/98 and 43579/98)

6 July 2005

Summary

The Facts

13. In 1996 Mr Angelov and Mr Petkov, who were both 21 years old, were conscripts in the Construction Force (Строителни войски), a division of the army dealing with the construction of apartment blocks and other civilian projects.

14. Early in 1996 Mr Angelov and Mr Petkov were arrested for being repeatedly absent without leave. On 22 May 1996 Mr Angelov was sentenced to nine months' imprisonment and Mr Petkov to five months' imprisonment. Both had previous convictions for theft.

15. On 15 July 1996 they fled from a construction site outside the prison where they had been brought to work and travelled to the home of Mr Angelov's grandmother, Ms Tonkova, in the village of Lesura. Neither man was armed.

16. Their absence was reported the following day and their names put on the military police's wanted list. A warrant for their arrest was received on 16 July 1996 by the Vratsa Military Police Unit.

17. At around twelve noon on 19 July 1996, the officer on duty in the Vratsa Military Police Unit received an anonymous telephone message that Mr Angelov and Mr Petkov were hiding in the village of Lesura. On at least one of the previous occasions when he had been absent without leave, it was there that Mr Angelov had been found and arrested.

18. The commanding officer, Colonel D., decided to dispatch four military police officers, under the command of Major G., to locate and arrest the two men. At least two of the officers knew one or both of them. Major G. apparently knew Lesura because, according to a secretary who worked at the town hall and was heard later as a witness, his mother was from the village.

19. Colonel D. told the officers that "in accordance with the rules" they should carry their handguns and automatic rifles and wear bullet-proof vests. He informed them that Mr Angelov and Mr Petkov were "criminally active" (криминално проявени) - an expression used to denote persons with previous convictions or persons suspected of an offence - and that they had escaped from detention. The officers were instructed to use whatever means were dictated by the circumstances to arrest them.

20. The officers immediately left for Lesura in a jeep. Two officers wore uniforms while the others were in civilian clothes. Only Major G. wore a bullet-proof vest. He was armed with a personal handgun and a 7.62 mm calibre Kalashnikov automatic rifle. The other men carried handguns. Three Kalashnikov automatic rifles remained in the boot of the vehicle throughout the operation.

21. The officers were briefed orally by Major G. on their way to Lesura. Sergeant N. was to cover the east side of the house, Major G. the west side and Sergeant K. was to go into the house. Sergeant S., the driver, was to remain with the vehicle and keep watch over the north side.

22. At around 1 p.m. the officers arrived in Lesura. They asked a secretary at the town hall and one of the villagers, Mr T.M., to join them and show them Mr Angelov's grandmother's house. The vehicle drove into Lesura's Roma district.

23. Sergeant N. recognised the house since he had previously arrested Mr Angelov there for being absent without leave.

24. As soon as the jeep drew up in front of the house, between 1 and 1.30 p.m., Sergeant K. recognised Mr Angelov, who was inside, behind the window. Having noticed the vehicle, the fugitives tried to escape. The officers heard the sound of a window pane being broken. Major G. and Sergeants K. and N. jumped out of the vehicle while it was still moving. Major G. and Sergeant K. went through the garden gate, the former going to the west side of the house, and the latter entering the house. Sergeant N. headed towards the east side of the house. Sergeant S. remained with the car, together with the secretary who worked at the town hall and Mr T.M.

25. Sergeant N. later testified that, having noticed Mr Angelov and Mr Petkov escaping through the window and running towards a neighbour's yard, he had shouted: "Stop, military police!" He had pulled out his gun, but had not fired any shots. The two men had carried on running. Sergeant N. had run out into the street in an effort to intercept them by going round several houses. While running, he had heard Major G. shout: "Freeze, military police, freeze [or] I'll shoot!" It was then that the shooting had started.

26. Major G. stated in his testimony:

… I heard Sergeant N. shouting: 'Freeze, police' … I saw the conscripts; they were running and then stopped in front of the fence between Ms Tonkova's and the neighbour's yards … I saw that they were trying to jump over the [chain- link] fence, so I shouted: 'Freeze, or I'll shoot!' I released the safety catch and loaded the automatic gun. Then I fired a shot in the air, holding the automatic rifle upwards with my right hand, almost perpendicular to the ground … The conscripts climbed over the [chain- link] fence and continued to run, I followed them, then I fired one, two or three more times in the air and shouted: 'Freeze!', but they continued running. I again fired shots in the air with the automatic and shouted: 'Freeze, or I will shoot with live cartridges.' I warned them again, but they continued running without turning back. I fired to the right [of the two men] with the automatic after the warning, aiming at the ground, hoping that this would make them stop running. I again shouted 'Freeze!' when they were at the corner of the other house and then I aimed and fired at them as they were scaling the fence. I aimed at their feet. The ground where I stood was at a lower level … [B]y jumping over the second fence they would have escaped and I did not have any other means of stopping them. The gradient there was a bit steep, [I] was standing on lower ground … the second fence was on the highest ground, that is why when I fired the first time I aimed to the side [of the two men], as I considered that nobody from the neighbouring houses would be hurt, and the second time I aimed at the conscripts, but fired at their feet. Under Regulation 45 we can use firearms to arrest members of the military forces who have committed a publicly prosecutable offence and do not surrender after a warning, but in accordance with paragraph 3 of [that regulation] we have to protect the lives of the persons against whom [we use firearms] - for that reason I fired at [the victims'] feet - with the intention of avoiding fatal injury. The last time that I shot at the conscripts' feet, I was twenty metres away from them and they were exactly at the south- east corner of the neighbouring yard. After the shooting they both fell down … They were both lying on their stomachs, and both gave signs of life, … moaning … then Sergeant S. appeared, I called him … and handed him my automatic rifle …"

27. According to the statements of the three subordinate officers, Mr Angelov and Mr Petkov were lying on the ground in front of the fence, with their legs pointing in the direction of the house from which they had come. One of them was lying on his back and the other on his stomach.

28. A neighbour, Mr Z., who lived opposite Mr Angelov's grandmother, also gave evidence. At about 1 or 1.30 p.m. he had seen a military jeep pull up in front of Ms Tonkova's house. Then he had heard somebody shout: "Don't run, I am using live cartridges." He had then heard shots. He had looked into the next yard and seen Mr Angelov, whom he knew, and another man leap over the chain-link fence between Ms Tonkova's and another neighbour's yards. He had not seen the man who had shouted as he was hidden from view behind Ms Tonkova's house. Then he had seen Mr Angelov and Mr Petkov fall to the ground and the man who had shot them emerge, holding an automatic rifle. Mr Z. further stated:

"The other men in uniform then started remonstrating with [the man who had shot Mr Angelov and Mr Petkov], telling him that he should not have fired, that he should not have come with them. Of those who came in the jeep, only the senior officer fired … I know him by sight, he has relatives in Lesura."

29. Sergeant S. stated that on arriving at the house he had remained with the vehicle and had heard Sergeant N. shouting from the east side of the house: "Freeze, police!" He had also heard Major G. shout "Freeze, police!" several times from the west side of the house. Then Major G. had started shooting with his automatic weapon, while continuing to shout. Sergeant S. had then entered the yard. He had seen Major G. leap over the chain- link fence and heard him shouting. He had gone up to him, had taken his automatic rifle and seen Mr Angelov and Mr Petkov lying on the ground next to the fence. They were still alive. At that moment Sergeant K. had come out of the house. Major G. had gone to get the jeep and had reported the incident over the vehicle radio. When they returned, Sergeant N. had appeared from the neighbouring street and helped them put the wounded men in the vehicle.

30. The head of the Vratsa Military Police Unit and other officers were informed of the incident at around (1.30)

31. Sergeant K. testified that he had entered the house and had been speaking to Mr Angelov's grandmother and another woman when he heard Major G. shouting at Mr Angelov and Mr Petkov to stop. In the house, he had noticed that a window pane in the room overlooking the yard had been broken. He had been on the verge of leaving the house when he heard shooting coming from behind the house. On his way to the yard he had met Major G., who had told him that the fugitives had been wounded. Sergeant K. had then climbed over the chain-link fence and approached the wounded men, who were still alive and moaning. He had found himself holding the automatic rifle, but could not remember how it had come into his possession. He had opened the magazine and seen no cartridges in it. There was only one cartridge left in the barrel.

32. Immediately after the shooting, a number of people from the vicinity gathered. Sergeant K. and Sergeant S. took the wounded men to Vratsa Hospital, while Major G. and Sergeant N. remained at the scene.

33. Mr Angelov and Mr Petkov died on the way to Vratsa. They were pronounced dead on arrival at the hospital.

34. Mr Angelov's grandmother, Ms Tonkova, gave the following account of the events. Her grandson and Mr Petkov had been in her house when they had noticed a jeep approaching. She had gone outside and seen four men in uniform. They had all entered the yard. One of them had gone round the house and started shooting with an automatic rifle for a very long time. The other three men were also armed but had not fired any shots. She had been in the yard, pleading with the man who had been shooting to stop. However, he had walked towards the back of the house. Then she had heard shooting in the backyard. She had followed and then seen her grandson and Mr Petkov lying in the neighbours' yard with bullet wounds.

35. According to another neighbour, Mr M.M., all three policemen were shooting. Two of them had fired shots in the air and the third officer - who had been on the west side of the house (Major G.) - had been aiming at someone. Mr M.M. had heard some fifteen to twenty shots, perhaps more. Then he had seen the military policemen go to the neighbouring yard, where Mr Angelov and Mr Petkov had fallen. That yard belonged to Mr M.M. and his daughter. On seeing his grandson - a young boy - standing there, Mr M.M. had asked Major G. for permission to approach and to take him away. Major G. had pointed his gun at him in a brutal manner and had insulted him, saying: "You damn Gypsies!" ("мамка ви цганска").

36. On 19 July 1996 all the officers involved made separate reports on the incident to the Vratsa Military Police Unit. None of them was tested for alcohol.

37. A criminal investigation into the deaths was opened the same day, and between 4 and (4.30) . a military investigator inspected the scene. In his report he described the scene, including the respective positions of Ms Tonkova's house, the first chain-link fence, and the spent cartridges and bloodstains found there. He indicated that the structure of the first chain-link fence was damaged and the fence had been torn down in one place.

38. A sketch map was appended to the report. It showed the yard of Ms Tonkova's house and the neighbouring yard where Mr Angelov and Mr Petkov had fallen. The places where spent cartridges had been found were indicated. The sketch map and the report gave only some of the measurements of the yards. The gradient and other characteristics of the terrain and the surrounding area were not described.

39. Nine spent cartridges were retrieved. One cartridge was found in the street, in front of Ms Tonkova's house (apparently not far from where the jeep had stopped). Four cartridges were discovered in Ms Tonkova's yard, behind the house, close to the first chain-link fence separating her yard from the neighbour's yard. Three cartridges were found in the yard of the neighbour (Mr M.M), close to the place where the bloodstains

were found. The exact distance between those cartridges and the bloodstains was not given. A ninth cartridge was found subsequently and handed in to the military police by Mr Angelov's uncle. There is no record of where it was found.

40. The bloodstains were a metre apart. They were marked on the sketch map as being slightly more than nine metres from the first chain-link fence. The distance between the bloodstains and the second fence that Mr Angelov and Mr Petkov had apparently been trying to scale when they were shot was not indicated. Samples of the bloodstains were taken by the investigator.

41. On 21 July 1996, a pathologist carried out an autopsy.

According to autopsy report no. 139/96, the cause of Mr Petkov's death was "a wound to the chest", the direction of the shot having been "from front to back". The wound was described as follows:

"There is an oval- shaped wound of (2.5) by (1) in the chest, at a distance of (144) from the feet, with missing tissues, and jagged and compressed edges in the area of the left shoulder. There is an oval- shaped wound of (3) in the back, to the left of the infrascapular line at a distance of (123) from the feet with missing tissues, jagged and torn edges turned outwards."

42. As regards Mr Angelov, the report found that the cause of death had been "a gunshot wound, which [had] damaged a major blood vessel" and that the direction of the shot had been "from back to front". It was further stated:

"There is a round wound on the left of the buttocks at a distance of (90) from the feet … with missing tissue, jagged walls and edges, and a diameter of about (0.8) … There is an oval wound of (2.1) with jagged torn edges and walls turned outwards and missing tissues on the border between the lower and middle third [of the abdomen], at a distance of (95) from the feet, slightly to the left of the navel."

43. The report concluded that the injuries had been caused by an automatic rifle fired from a distance.

IV. RELEVANT INTERNATIONAL AND COMPARATIVE LAW

A. United Nations principles on the use of force

71. The United Nations Basic Principles on the Use of Force and Firearms by Law Enforcement Officials were adopted on 7 September 1990 by the Eighth United Nations Congress on the Prevention of Crime and the Treatment of Offenders.

72. Paragraph 9 provides:

"Law enforcement officials shall not use firearms against persons except in selfdefence or defence of others against the imminent threat of death or serious injury, to prevent the perpetration of a particularly serious crime involving grave threat to life, to arrest a person presenting such a danger and resisting their authority, or to prevent his or her escape, and only when less extreme means are insufficient to achieve these objectives. In any event,

intentional lethal use of firearms may only be made when strictly unavoidable in order to protect life."

73. According to other provisions of the Principles, law enforcement officials shall "act in proportion to the seriousness of the offence and the legitimate objective to be achieved" (paragraph 5). Also, "Governments shall ensure that arbitrary or abusive use of force and firearms by law enforcement officials is punished as a criminal offence under their law" (paragraph 7). National rules and regulations on the use of firearms should "ensure that firearms are used only in appropriate circumstances and in a manner likely to decrease the risk of unnecessary harm".

The Law

98. Mr Angelov and Mr Petkov were shot and killed by a military police officer who was trying to arrest them following their escape from detention. It follows that the case falls to be examined under Article 2 § 2 (b) of the Convention.

99. The Court notes as a matter of grave concern that the relevant regulations on the use of firearms by the military police effectively permitted lethal force to be used when arresting a member of the armed forces for even the most minor offence. Not only were the regulations not published, they contained no clear safeguards to prevent the arbitrary deprivation of life. Under the regulations, it was lawful to shoot any fugitive who did not surrender immediately in response to an oral warning and the firing of a warning shot in the air (see paragraph 60 above). The laxity of the regulations on the use of firearms and the manner in which they tolerated the use of lethal force were clearly exposed by the events that led to the fatal shooting of Mr Angelov and Mr Petkov and by the investigating authorities' response to those events. The Court will revert to these matters later.

100. Such a legal framework is fundamentally deficient and falls well short of the level of protection "by law" of the right to life that is required by the Convention in present-day democratic societies in Europe (see paragraphs 94-97 above setting out the principles on which the relevant legal framework must be based).

101. It is true that the Supreme Court had stated that a proportionality requirement was inherent in the domestic criminal law. However, the Supreme Court's interpretation was not applied in the present case (see paragraphs 50-54 and 64 above).

102. The Court thus finds that there was a general failure by the respondent State to comply with its obligation under Article 2 of the Convention to secure the right to life by putting in place an appropriate legal and administrative framework on the use of force and firearms by military police.

103. The Chamber gave separate consideration to the manner in which the arrest operation had been planned. The Grand Chamber endorses the Chamber's finding that the authorities failed to comply with their obligation to minimise the risk of loss of life since the arresting officers were instructed to use all available means to arrest Mr Angelov and Mr Petkov, in disregard of the fact that the fugitives were unarmed and

posed no danger to life or limb. As the Chamber rightly stated (see paragraph 110 of the Chamber judgment):

"… [A] crucial element in the planning of an arrest operation … must be the analysis of all the available information about the surrounding circumstances, including, as an absolute minimum, the nature of the offence committed by the person to be arrested and the degree of danger - if any - posed by that person. The question whether and in what circumstances recourse to firearms should be envisaged if the person to be arrested tries to escape must be decided on the basis of clear legal rules, adequate training and in the light of that information."

104. The Grand Chamber for its part would again highlight the absence of a clear legal and regulatory framework defining the circumstances in which military police officers may have recourse to potentially deadly force (see paragraphs 99-102 above). It agrees with the Chamber's finding (see paragraph 112 of the Chamber judgment) that the relevant regulations

"… did not make use of firearms dependent on an assessment of the surrounding circumstances, and, most importantly, did not require an evaluation of the nature of the offence committed by the fugitive and of the threat he or she posed".

105. In the event, the regulations in place permitted a team of heavily armed officers to be dispatched to arrest the two men in the absence of any prior discussion of the threat, if any, they posed or of clear warnings on the need to minimise any risk to life. In short, the manner in which the operation was planned and controlled betrayed a deplorable disregard for the pre-eminence of the right to life.

106. It was undisputed that Mr Angelov and Mr Petkov had served in the Construction Force, a special army institution in which conscripts discharged their duties as construction workers on non-military sites. They had been sentenced to short terms of imprisonment for non-violent offences. They had escaped without using violence, simply by leaving their place of work, which was outside the detention facility. While they had previous convictions for theft and had repeatedly been absent without leave, they had no record of violence (see paragraphs 13-15 above). Neither man was armed or represented a danger to the arresting officers or third parties, a fact of which the arresting officers must have been aware on the basis of the information available to them. In any event, upon encountering the men in the village of Lesura, the officers, or at least Major G., observed that they were unarmed and not showing any signs of threatening behaviour (see paragraphs 15-26 above).

107. Having regard to the above, the Court considers that in the circumstances that obtained in the present case any resort to potentially lethal force was prohibited by Article 2 of the Convention, regardless of any risk that Mr Angelov and Mr Petkov might escape. As stated above, recourse to potentially deadly force cannot be considered as "absolutely necessary" where it is known that the person to be arrested poses no threat to life or limb and is not suspected of having committed a violent offence.

108. In addition, the conduct of Major G., the military police officer who shot the victims, calls for serious criticism in that he used grossly excessive force.

(i) It appears that there were other means available to effect the arrest: the officers had a jeep, the operation took place in a small village in the middle of the day and the behaviour of Mr Angelov and Mr Petkov was apparently predictable, since, following a previous escape, Mr Angelov had been found at the same address (see paragraphs 17, 18, 23 and 24 above).

(ii) Major G. chose to use his automatic rifle and switched it to automatic mode although he also carried a handgun (see paragraph 26 above). He could not possibly have aimed with any reasonable degree of accuracy using automatic fire.

(iii) Mr Petkov was wounded in the chest, a fact for which no plausible explanation was provided (see paragraphs 41 and 50-54 above). In the absence of such an explanation, the possibility that Mr Petkov had turned to surrender at the last minute but had nevertheless been shot cannot be excluded.

109. The Court finds that the respondent State failed to comply with its obligations under Article 2 of the Convention in that the relevant legal framework on the use of force was fundamentally flawed and Mr Angelov and Mr Petkov were killed in circumstances in which the use of firearms to effect their arrest was incompatible with Article 2 of the Convention. Furthermore, grossly excessive force was used. There has therefore been a violation of Article 2 of the Convention as regards the deaths of Mr Angelov and Mr Petkov.

Inter-American Court of Human Rights, Case of Hilaire, Constantine and Benjamin et al. v. Trinidad and Tobago

Inter-American Court of Human Rights, Case of Hilaire, Constantine and Benjamin et al. v. Trinidad and Tobago Judgment of June 21, 2002 (Merits, Reparations and Costs)

Facts

84. The Court now proceeds to consider the relevant facts that it deems to be proven and which result from the analysis of the proceedings, as well as the documentary evidence (which highlights the domestic legislation of Trinidad and Tobago) and expert testimonial evidence provided.

a) All the alleged victims were tried and convicted of murder in Trinidad and Tobago, and sentenced to death pursuant to the Offences Against the Person Act in force in the State since April 3, 1925.89

b) The Offences Against the Person Act prescribes the death penalty as the only applicable sentence for the crime of murder.90

c) Section 3 of the Offences Against the Person Act adopts the English common law definition of murder, which in turn provides that a defendant may be convicted of murder if

it is established that he unlawfully caused the death of another person with the intention to kill or to cause serious bodily injury.91

d) The Offences Against the Person Act permits the jury to consider certain determinative circumstances of the killing for the purpose of establishing whether the accused should be found guilty of murder or of a lesser crime.92

e) Once an offender is found guilty of murder, the Offences Against the Person Act does not permit the judge or jury to consider the particular circumstances of the offence or offender for the purpose of determining the appropriate penalty.93

f) Article 6 of the Constitution of the Republic of Trinidad and Tobago precludes individuals from challenging, under Sections 4 and 5 of the Constitution, all laws or acts carried out pursuant to any law in force in Trinidad and Tobago before 1976, the year the Constitution entered into force.94

g) The 32 persons comprised in this case all invoked the appropriate domestic recourses for the review of their convictions (supra para. 60).

h) In accordance with the Constitution of the Republic of Trinidad and Tobago, the President of the Republic retains a discretionary power to pardon those sentenced to death.95

i) The Constitution of the Republic of Trinidad and Tobago provides for an Advisory Committee on the Power of Pardon, which is charged with considering and making recommendations to the relevant Minister as to whether an offender sentenced to death should benefit from discretionary pardon.96

IX VIOLATION OF ARTICLE 4(1) and 4(2), IN RELATION TO ARTICLES 1(1) AND 2 OF THE AMERICAN CONVENTION (Mandatory Death Penalty)

88. The Commission added that the use of the "mandatory death penalty" by Trinidad and Tobago results in its imposition on all persons convicted of murder, without taking into account the mitigating and aggravating circumstances of the case or the varying degrees of culpability. In the Commission's opinion, the foregoing contravenes the inherent dignity of the human being and the right to humane treatment protected in Article 5(1) and 5(2) of the American Convention.

89. The Commission added that the "mandatory imposition of the death penalty," that is, where the death penalty is the only imposable punishment for murder cases, eliminates the possibility of determining individualised sentences and prevents a rational and proportional relation between the offender, the crime and the punishment imposed and does not allow judicial review of the judgment, according to the terms of the American Convention.

90. In light of the general spirit evident in Article 4 of the American Convention, considered in its entirety, the Court has found that:

> [t]hree types of limitations can be seen to be applicable to States Parties which have not abolished the death penalty. First, the imposition or application of this sanction is

subject to certain procedural requirements whose compliance must be strictly observed and reviewed. Second, the application of the death penalty must be limited to the most serious common crimes not related to political offenses. Finally, certain considerations involving the person of the defendant, which may bar the imposition or application of the death penalty, must be taken into account.108

101. The Court is aware of the pain and suffering inflicted upon the direct victims and their next of kin by the perpetrators in murder cases, and is cognizant of the State's duty to protect potential victims of this crime, punish those responsible and generally maintain public order, which may be affected by the proliferation of these types of crimes. The Court also considers that the State's struggle against murder should be carried out with the utmost respect for the human rights of the persons under their jurisdiction and in compliance with the applicable human rights treaties.109

102. The intentional and illicit deprivation of another's life (intentional or premeditated murder, in the broad sense) can and must be recognised and addressed in criminal law under various categories (criminal classes) that correspond with the wide range of gravity of the surrounding facts, taking into account the different facets that can come into play: a special relationship between the offender and the victim, motives for the behaviour, the circumstances under which the crime is committed, the means employed by the offender, etc. This approach allows for a graduated assessment of the gravity of the offence, so that it will bear an appropriate relation to the graduated levels of gravity of the applicable punishment.

103. The Court finds that the Offences Against the Person Act of 1925 of Trinidad and Tobago automatically and generically mandates the application of the death penalty for murder and disregards the fact that murder may have varying degrees of seriousness. Consequently, this Act prevents the judge from considering the basic circumstances in establishing the degree of culpability and individualising the sentence since it compels the indiscriminate imposition of the same punishment for conduct that can be vastly different. In light of Article 4 of the American Convention, this is exceptionally grave, as it puts at risk the most cherished possession, namely, human life, and is arbitrary according to the terms of Article 4(1) of the Convention.110

104. The Court finds that the Offences Against the Person Act has two principal aspects: a) in the determination of criminal responsibility, it only authorizes the competent judicial authority to find a person guilty of murder solely based on the categorization of the crime, without taking into account the personal conditions of the defendant or the individual circumstances of the crime; and b) in the determination of punishment, it mechanically and generically imposes the death penalty for all persons found guilty of murder and prevents the modification of the punishment through a process of judicial review.

105. The Court concurs with the view that to consider all persons responsible for murder as deserving of the death penalty, "treats all persons convicted of a designated offense not

as uniquely individual human beings, but as members of a faceless, undifferentiated mass to be subjected to the blind infliction of the death penalty."111

106. In countries where the death penalty still exists, one of the ways in which the deprivation of life can be arbitrary under Article 4(1) of the Convention is when it is used, as is the case in Trinidad and Tobago due to the Offences Against the Person Act, to punish crimes that do not exhibit characteristics of utmost seriousness, in other words, when the application of this punishment is contrary to the provisions of Article 4(2) of the American Convention.

107. In light of these facts, the Court concludes that because the Offences Against the Person Act submits all persons charged with murder to a judicial process in which the individual circumstances of the accused and the crime are not considered, the aforementioned Act violates the prohibition against the arbitrary deprivation of life, in contravention of Article 4(1) and 4(2) of the Convention.

108. Therefore, the Court considers that Trinidad and Tobago has violated Article 4(1) and 4(2) in conjunction with Article 1(1) of the Convention, to the detriment of Haniff Hilaire, George Constantine, Wenceslaus James, Denny Baptiste, Clarence Charles, Keiron Thomas, Anthony Garcia, Wilson Prince, Darrin Roger Thomas, Mervyn Edmund, Samuel Winchester, Martin Reid, Rodney Davis, Gangadeen Tahaloo, Noel Seepersad, Wayne Matthews, Alfred Frederick, Natasha De Leon, Vijay Mungroo, Phillip Chotalal, Naresh Boodram, Joey Ramiah, Nigel Mark, Wilberforce Bernard, Steve Mungroo, Peter Benjamin, Krishendath Seepersad, Allan Phillip, Narine Sooklal, Amir Mowlah, Mervyn Parris and Francis Mansingh.

Basic Principles on the Use of Force and Firearms by Law Enforcement Officials

Adopted by the Eighth United Nations Congress on the Prevention of Crime and the Treatment of Offenders, Havana, Cuba, 27 August to 7 September 1990.

Whereas the work of law enforcement officials[1] is a social service of great importance and there is, therefore, a need to maintain and, whenever necessary, to improve the working conditions and status of these officials,

Whereas a threat to the life and safety of law enforcement officials must be seen as a threat to the stability of society as a whole,

Whereas law enforcement officials have a vital role in the protection of the right to life, liberty and security of the person, as guaranteed in the Universal Declaration of Human Rights and reaffirmed in the International Covenant on Civil and Political Rights,

[1] In accordance with the commentary to article 1 of the Code of Conduct for Law Enforcement Officials, the term "law enforcement officials" includes all officers of the law, whether appointed or elected, who exercise police powers, especially the powers of arrest or detention. In countries where police powers are exercised by military authorities, whether uniformed or not, or by State security forces, the definition of law enforcement officials shall be regarded as including officers of such services.

Whereas the Standard Minimum Rules for the Treatment of Prisoners provide for the circumstances in which prison officials may use force in the course of their duties,

Whereas article 3 of the Code of Conduct for Law Enforcement Officials provides that law enforcement officials may use force only when strictly necessary and to the extent required for the performance of their duty,

Whereas the preparatory meeting for the Seventh United Nations Congress on the Prevention of Crime and the Treatment of Offenders, held at Varenna, Italy, agreed on elements to be considered in the course of further work on restraints on the use of force and firearms by law enforcement officials,

Whereas the Seventh Congress, in its resolution 14, inter alia, emphasizes that the use of force and firearms by law enforcement officials should be commensurate with due respect for human rights,

Whereas the Economic and Social Council, in its resolution 1986/10, section IX, of 21 May 1986, invited Member States to pay particular attention in the implementation of the Code to the use of force and firearms by law enforcement officials, and the General Assembly, in its resolution 41/149 of 4 December 1986, inter alia, welcomed this recommendation made by the Council,

Whereas it is appropriate that, with due regard to their personal safety, consideration be given to the role of law enforcement officials in relation to the administration of justice, to the protection of the right to life, liberty and security of the person, to their responsibility to maintain public safety and social peace and to the importance of their qualifications, training and conduct,

The basic principles set forth below, which have been formulated to assist Member States in their task of ensuring and promoting the proper role of law enforcement officials, should be taken into account and respected by Governments within the framework of their national legislation and practice, and be brought to the attention of law enforcement officials as well as other persons, such as judges, prosecutors, lawyers, members of the executive branch and the legislature, and the public.

General provisions

1. Governments and law enforcement agencies shall adopt and implement rules and regulations on the use of force and firearms against persons by law enforcement officials. In developing such rules and regulations, Governments and law enforcement agencies shall keep the ethical issues associated with the use of force and firearms constantly under review.

2. Governments and law enforcement agencies should develop a range of means as broad as possible and equip law enforcement officials with various types of weapons and ammunition that would allow for a differentiated use of force and firearms. These should include the development of non-lethal incapacitating weapons for use in appropriate situations, with a view to increasingly restraining the application of means capable of causing death or injury to persons. For the same purpose, it should also be possible for

law enforcement officials to be equipped with self-defensive equipment such as shields, helmets, bullet-proof vests and bullet-proof means of transportation, in order to decrease the need to use weapons of any kind.

3. The development and deployment of non-lethal incapacitating weapons should be carefully evaluated in order to minimize the risk of endangering uninvolved persons, and the use of such weapons should be carefully controlled.

4. Law enforcement officials, in carrying out their duty, shall, as far as possible, apply non-violent means before resorting to the use of force and firearms. They may use force and firearms only if other means remain ineffective or without any promise of achieving the intended result.

5. Whenever the lawful use of force and firearms is unavoidable, law enforcement officials shall:

6. Exercise restraint in such use and act in proportion to the seriousness of the offence and the legitimate objective to be achieved;

7. Minimize damage and injury, and respect and preserve human life;

8. Ensure that assistance and medical aid are rendered to any injured or affected persons at the earliest possible moment;

9. Ensure that relatives or close friends of the injured or affected person are notified at the earliest possible moment.

6. Where injury or death is caused by the use of force and firearms by law enforcement officials, they shall report the incident promptly to their superiors, in accordance with principle 22.

7. Governments shall ensure that arbitrary or abusive use of force and firearms by law enforcement officials is punished as a criminal offence under their law.

8. Exceptional circumstances such as internal political instability or any other public emergency may not be invoked to justify any departure from these basic principles.

Special provisions

9. Law enforcement officials shall not use firearms against persons except in self-defence or defence of others against the imminent threat of death or serious injury, to prevent the perpetration of a particularly serious crime involving grave threat to life, to arrest a person presenting such a danger and resisting their authority, or to prevent his or her escape, and only when less extreme means are insufficient to achieve these objectives. In any event, intentional lethal use of firearms may only be made when strictly unavoidable in order to protect life.

10. In the circumstances provided for under principle 9, law enforcement officials shall identify themselves as such and give a clear warning of their intent to use firearms, with sufficient time for the warning to be observed, unless to do so would unduly place the law enforcement officials at risk or would create a risk of death or serious harm to

other persons, or would be clearly inappropriate or pointless in the circumstances of the incident.

11. Rules and regulations on the use of firearms by law enforcement officials should include guidelines that:

12. Specify the circumstances under which law enforcement officials are authorized to carry firearms and prescribe the types of firearms and ammunition permitted;

13. Ensure that firearms are used only in appropriate circumstances and in a manner likely to decrease the risk of unnecessary harm;

14. Prohibit the use of those firearms and ammunition that cause unwarranted injury or present an unwarranted risk;

15. Regulate the control, storage and issuing of firearms, including procedures for ensuring that law enforcement officials are accountable for the firearms and ammunition issued to them;

16. Provide for warnings to be given, if appropriate, when firearms are to be discharged;

17. Provide for a system of reporting whenever law enforcement officials use firearms in the performance of their duty.

Policing unlawful assemblies

12. As everyone is allowed to participate in lawful and peaceful assemblies, in accordance with the principles embodied in the Universal Declaration of Human Rights and the International Covenant on Civil and Political Rights, Governments and law enforcement agencies and officials shall recognize that force and firearms may be used only in accordance with principles 13 and 14.

13. In the dispersal of assemblies that are unlawful but non-violent, law enforcement officials shall avoid the use of force or, where that is not practicable, shall restrict such force to the minimum extent necessary.

14. In the dispersal of violent assemblies, law enforcement officials may use firearms only when less dangerous means are not practicable and only to the minimum extent necessary. Law enforcement officials shall not use firearms in such cases, except under the conditions stipulated in principle 9.

Policing persons in custody or detention

15. Law enforcement officials, in their relations with persons in custody or detention, shall not use force, except when strictly necessary for the maintenance of security and order within the institution, or when personal safety is threatened.

16. Law enforcement officials, in their relations with persons in custody or detention, shall not use firearms, except in self-defence or in the defence of others against the immediate threat of death or serious injury, or when strictly necessary to prevent the escape of a person in custody or detention presenting the danger referred to in principle 9.

17. The preceding principles are without prejudice to the rights, duties and responsibilities of prison officials, as set out in the Standard Minimum Rules for the Treatment of Prisoners, particularly rules 33, 34 and 54.

Reporting and review procedures

23. Persons affected by the use of force and firearms or their legal representatives shall have access to an independent process, including a judicial process. In the event of the death of such persons, this provision shall apply to their dependants accordingly.

24. Governments and law enforcement agencies shall ensure that superior officers are held responsible if they know, or should have known, that law enforcement officials under their command are resorting, or have resorted, to the unlawful use of force and firearms, and they did not take all measures in their power to prevent, suppress or report such use.

25. Governments and law enforcement agencies shall ensure that no criminal or disciplinary sanction is imposed on law enforcement officials who, in compliance with the Code of Conduct for Law Enforcement Officials and these basic principles, refuse to carry out an order to use force and firearms, or who report such use by other officials.

26. Obedience to superior orders shall be no defence if law enforcement officials knew that an order to use force and firearms resulting in the death or serious injury of a person was manifestly unlawful and had a reasonable opportunity to refuse to follow it. In any case, responsibility also rests on the superiors who gave the unlawful orders.

Chapter 3: Civil Liberties

Civil Liberties are a cluster of human rights that create space for civil society and put a limit on state totalitarianism. The best way to expound this is by beginning with the concept of totalitarianism. This well chosen word describes a state that is "total": there is a perfect overlap between the state and society: media is state media, education is state education, religion is state religion, and all opinions that the state is unwilling to hear are not to be heard. To have a non-totalitarian state means to recognize a space (hopefully a big space) for civil association outside the bounds of what the state may prefer. Citizens have their media, their opinions, their religion, their associations and clubs, set apart from the whims of the state, and the state must respect them.

It is not possible to study modern human rights without noticing the centrality of proportionality analysis. This is especialy true in the field of Civil Liberties. In the modern liberal West, the limits of my freedom of expression, of religion, of my privacy, etc. are always defined by reference to the rights and interests of others, and not to some overarching value system.

The main section of most judgments on Civil Liberties (but also elsewhere) is assessing whether a particular rights restrictive measure (1) follows a legitimate aim, (2) is provided by law, (3) is proportional and necessary in a democratic society. Steps 1 and 2 are almost always regarded as satisfied. Most goals adduced by the state are regarded as legitimate, and for a measure being provided by law, it does not need to have the backing of a parliamentary statute, some for of general regulation laid for in advance suffices. This means that all the assessment depends on step 3. Moreover, what counts as necessary is today understood as a dimension of proportionality: if it was completely unnecessary then it was disproportionate. So then all that is left is to analyze proportionality. Roughly: did the benefits obtained by the measure offset the cost of the rights restricted or lost.

One must concede that proportionality analysis has some merit. It recognizes that just claiming rights is not enough. One's rights must be somehow balanced or harmonized with the rights and interests of others. That said, proportionality analysis also feels very subjective and unpredictable. What is proportional to one may not be proportional to others. And it will be very difficult to know ahead of time what the Court will regard proportional.

There is also an issue of optics. Proportionality is judged from the vantage point of the judges. Theoretically it should be assessed from the vantage point of a "democratic society", but this phrase has been rarely cashed out into something concrete. What is missing then is the vantage point of the victim, or at least, of the losing party. THis can be seen most clearly in the PETA vs. Germany case below. To put oneself into the shoes of a believer in animal rights is to see that the comparison they made, regarded as offensive and dehumanizing by some, was exactly the comparison that PETA members ideologically (and perhaps existentially) needed to make. From the perspective of PETA, the campaign is not gratuitous in comparing factory farming with the holocaust, it is eloquent. To state the point in a more tame way, would be to betray the intensity with which this particular group sees this aspect of our ethics and economy.

It has been intimated that one must rely on proportionality analysis in the liberal West, because the idea is to have a society that values individual freedom above everything else, and recognizing no higher value than freedom, it must regulate the excercise of freedom by reference to

the freedom's of others. However this framing can be disingenous. The liberal West is perhaps not a unique meta-society, that is committed to nothing above its own neutrality. Arguably it has a heirarchal system of values just like very other society, but is not willing to accept this as such. That is one reading one may have of the Lindholm case. The reality is that health is one of the highest values of the liberal West, and while nominally it appears as one value amongst others, it will reliably trump cases of conscience that we are likely to find eccentric or unwarranted. Here again we have the problem of optics. What is proportional or not is seen in the eyes of an insufficiently characterized vantage point of the judiciary. This vantage point is bound to reflect not pure neutrality, but what is hegemonic in our cultures.

Navigating the world of Civil Liberties requires sensitivity and patience. Sensitivity to the idea that what appears to be the right balance between x and y is a reflection of our own biases and prejudices and not visible from the eyes of the underdog. Patience because the meaning and extent of civil liberties perhaps can only be ironed out through the passage of time.

PETA Deutschland vs. Germany

CASE OF PETA DEUTSCHLAND v. GERMANY (Application no. 43481/09)

THE FACTS

6. The applicant association is the German branch of the animal rights organisation PETA (People for the Ethical Treatment of Animals). It pursues, inter alia, the aims of preventing animal suffering and of encouraging the public to abstain from using animal products.

7. In March 2004 the applicant association planned to start an advertising campaign under the head "The Holocaust on your plate". The intended campaign, which had been carried out in a similar way in the United States of America, consisted of a number of posters, each of which bore a photograph of concentration camp inmates along with a picture of animals kept in mass stocks, accompanied by a short text. One of the posters showed a photograph of emaciated, naked concentration camp inmates alongside a photograph of starving cattle under the heading "walking skeletons". Other posters showed a photograph of piled up human dead bodies alongside a photograph of a pile of slaughtered pigs under the heading "final humiliation" and of rows of inmates lying on stock beds alongside rows of chicken in laying batteries under the heading "if animals are concerned, everybody becomes a Nazi". Another poster depicting a starving, naked male inmate alongside a starving cattle bore the title "The Holocaust on your plate" and the text "Between 1938 and 1945, 12 million human beings were killed in the Holocaust. As many animals are killed every hour in Europe for the purpose of human consumption".

8. In March 2004, three individual persons, P.S., C. K. and S. Korn, filed a request with the Berlin Regional Court to be granted an injunction ordering the applicant association to desist from publishing or from allowing the publication of seven specified posters via the internet, in a public exhibition or in any other form. The plaintiffs were at the time the president and the two vice-presidents of the Central Jewish Council in Germany. All of them had survived the Holocaust when they were children; C.K. lost her family

through the Holocaust. They submitted that the intended campaign was offensive and violated their human dignity as well as the personality rights of C. K.'s dead family members.

9. On 18 March 2004 the Berlin Regional Court granted the injunction. By judgment of 22 April 2004, that same court confirmed the interim injunction. The court considered that the plaintiffs had a claim to be granted injunctive relief under section 823 §§ 1 and 2 in conjunction with section 1004 of the Civil Code, sections 185 et seq. of the Criminal Code and Article 1 §§ 1 and 2 of the German Basic Law (see relevant domestic law, below). According to the Regional Court, the plaintiffs were concerned by the impugned statements in their capacity as former victims of the Holocaust.

10. The Regional Court further considered that the impugned representations constituted expressions of opinion and were thus protected under Article 5 of the Basic Law. This right protected expressions of opinion even if they were formulated in a polemic or offensive way. The depictions were particularly disturbing and drew a high degree of media attention because the pictures combined on the posters showed seemingly similar situations, which could only be discerned by the fact that one side showed coloured photographs of animals and the other black-and-white photos of humans, both alive and dead. Seen from the point of view of an ordinary spectator, the impugned posters had to be interpreted as putting the fate of the depicted animals and of the depicted humans on the same level.

11. There was no indication that the applicant association's primary aim was to debase the victims of the Holocaust, as the posters obviously intended to criticise the conditions under which animals were kept and to encourage the spectator to reflect upon these conditions. It followed that the expression of opinion related to questions of public interest and would thus generally enjoy a higher degree of protection when weighing the competing interests. However, in the instant case it had to be taken into account that concentration camp inmates and Holocaust victims had been put on the same level as animals. In the light of the image of man conveyed by the Basic Law, which put human dignity in its centre and only marginally referred to the protection of animals, this comparison appeared arbitrary because the Holocaust victims were confronted with their suffering and their fate of persecution in the interest of animal protection. The debasement of concentration camp inmates was thus exploited in order to militate for better accommodation of laying hens and other animals.

12. However, the Federal Constitutional Court did not find it necessary to decide whether the intended campaign violated the plaintiffs' human dignity, as the impugned decisions contained sufficient arguments which justified the injunction without reference to a violation of the plaintiff's human dignity. It was, in particular, acceptable that the domestic courts based their decisions on the assumption that the Basic Law drew a clear distinction between human life and dignity on one side and the interests of animal protection on the other and that the campaign was banalising the fate of the victims of the Holocaust. It was, furthermore, acceptable to conclude that this content of the campaign affected the plaintiffs' personality rights. Referring to its earlier case law, the

Federal Constitutional Court considered that it was part of the self-image of the Jews living in Germany that they belonged to a group which had been sampled out by their fate and that a special moral obligation was owed to them by all others, which formed part of their dignity.

THE LAW

27. The applicant association submitted, in particular, that the impugned decision was based on a wrong assessment of the facts. It was not true that the impugned posters equalised the pictures of the Holocaust and the pictures of intensive mass animal farming, they merely showed disturbing similarities of the treatment of Holocaust victims and animals. Even if one should assume that the representations postulated equality between the depicted humans and animals, this was not suited to debase the depicted Holocaust victims. According to the applicant association's conviction, which was increasingly shared within society, animals had to be regarded as equal fellow creatures.

28. The poster campaign was in no way intended to debase or insult the persons represented on the posters and did not violate any of the plaintiffs' rights. It was neither trivialising the suffering, nor did it have any antiSemitic background. The applicant association pointed out that the posters did not depict the applicants and that it was not even certain that all the persons depicted on the photographs were of Jewish Faith. Many persons of Jewish origin would not consider that such a comparison would violate their personality rights and had even made such comparisons in their own publications or had participated in the original planning of the campaign. Holocaust comparisons were not unlawful and had been widely used in public debate. The Supreme Court of Austria, in its decision given on 12 October 2006 (see paragraph 23, above) had rejected a request for granting a civil injunction against the publication of the impugned posters in Austria.

29. The applicant association further submitted that the interference with their Convention rights had not been necessary in a democratic society. The domestic courts had failed to consider that, under the Court's case-law, freedom of expression constituted one of the essential foundations of a democratic society and that a special degree of protection was afforded to expressions of opinions which were made in the course of a debate on matters of public interest. The applicant association accepted that the historical background in Germany made it necessary to apply specific criteria enabling every person of Jewish origin to take steps against anti-Semitic discrimination. However, this approach was taken too far if every depiction of a person of Jewish origin was automatically considered collective insult.

30. The applicant association considered that it was thus not even necessary to strike a balance between any competing interests. Even if such a balance was to be struck, the applicant association's right to freedom of expression had to take precedence. The German courts had failed to weigh the competing interests, having particular regard to the fact that the applicant association pursued objectives of the highest ethical and moral standards, as was further supported by the fact that the protection of animal rights was

expressly mentioned in Article 20 a of the German Basic Law. Due to sensory overload through commercials and advertisements, the applicant association was dependent on gaining attention for its cause in drastic ways. It thus did not matter that the applicant association would have had other means at its disposal to express its opinion.

31. According to the Government, the domestic courts had given extensive and relevant reasons for letting the plaintiffs' personality rights prevail over the applicant's right to freedom of expression. They had, in particular, taken into account that the applicant association intended to express itself on a subject of public interest and that it did neither intend to debase the victims of the Holocaust nor to banalise their suffering. On the other hand, the domestic courts had taken into account the gravity of the violation of the plaintiffs' personality rights. Furthermore, it had to be considered that the sanction imposed on the applicant association had not been very severe and that the applicant association had numerous other possibilities to express their protest against mass animal farming.

32. The Court notes that it is common ground between the parties that the impugned measure constituted an "interference by [a] public authority" with the applicant's right to freedom of expression as guaranteed under Article 10 of the Convention. The Court endorses this assessment. Such interference contravenes the Convention if it does not satisfy the requirements of paragraph 2 of Article 10. It therefore falls to be determined whether the interference was "prescribed by law", had an aim or aims that is or are legitimate under Article 10 § 2 and was "necessary in a democratic society" for the aforesaid aim or aims.

33. The Court notes that the interference had a legal basis in section 823 §§ 1 and 2 in conjunction with section 1004 of the Civil Code, and section 185 of the Criminal Code (compare paragraph 21, above). The Court observes that the applicant association did not contest that these provisions, under the established domestic case-law, grant any person whose personality rights risk being violated by another person a claim to compel that other person to refrain from performing the impugned action. There is no doubt that the relevant texts were accessible to the applicant association. As to the question of whether the domestic courts correctly applied these provisions, the Court reiterates that the application and the interpretation of the domestic law primarily fall within the competency of the domestic authorities which are, in the nature of things, particularly well placed to settle the issues arising in this connection (compare inter alia Barthold v. Germany, 25 March 1985, § 48, Series A no. 90). The Court observes that the applicant association's argument primarily evince its disagreement with the domestic courts' decisions. Accordingly, the Court is satisfied that the injunction complained of was "prescribed by law".

34. The Court is further satisfied that the interference pursued the legitimate aim of protecting the plaintiffs' personality rights and thus "the reputation or rights of others".

35. It thus remains to be determined whether the interference was "necessary in a democratic society". In the judgment of Pedersen and Baadsgaard v. Denmark [GC], no.

49017/99 ECHR 2004-XI, the Court summarised the general principles in its case law as follows:

"68. The test of 'necessity in a democratic society' requires the Court to determine whether the interference complained of corresponded to a 'pressing social need'. The Contracting States have a certain margin of appreciation in assessing whether such a need exists, but it goes hand in hand with European supervision, embracing both the legislation and the decisions applying it, even those given by an independent court. The Court is therefore empowered to give the final ruling on whether a 'restriction' is reconcilable with freedom of expression as protected by Article 10 (see, among many other authorities, Perna v. Italy [GC], no. 48898/99, § 39, ECHR 2003-V, and Association Ekin v. France, no. 39288/98, § 56, ECHR 2001-VIII).

69. The Court's task in exercising its supervisory function is not to take the place of the competent domestic courts but rather to review under Article 10 the decisions they have taken pursuant to their power of appreciation (see Fressoz and Roire v. France [GC], no. 29183/95, § 45, ECHR 1999-I). This does not mean that the supervision is limited to ascertaining whether the respondent State exercised its discretion reasonably, carefully or in good faith; what the Court has to do is to look at the interference complained of in the light of the case as a whole, including the content of the comments held against the applicants and the context in which they made them (see News Verlags GmbH & Co. KG v. Austria, no. 31457/96, § 52, ECHR 2000-I).

70. In particular, the Court must determine whether the reasons adduced by the national authorities to justify the interference were 'relevant and sufficient' and whether the measure taken was 'proportionate to the legitimate aims pursued' (see Chauvy and Others v. France, no. 64915/01, § 70, ECHR 2004-VI). In doing so, the Court has to satisfy itself that the national authorities, basing themselves on an acceptable assessment of the relevant facts, applied standards which were in conformity with the principles embodied in Article 10 (see, among many other authorities, Zana v. Turkey, judgment of 25 November 1997, Reports 1997-VII, pp. 2547-48, § 51)."

46. The Court recalls that the domestic authorities have a variety of tools at their disposal allowing them to strike a fair balance between the various interests at stake. In assessing the proportionality of the measure at issue they have, beyond the complete prohibition or authorisation of the expression of an opinion, in particular the option of setting specific limits to the authorisation or to the prohibition. Moreover, freedom of expression is applicable to not only "information" or "ideas" that are favourably received or regarded as inoffensive or as a matter of indifference, but also to those that offend, shock or disturb. As set forth in Article 10, this freedom is subject to exceptions, which must,

however, be construed strictly, and the need for any restrictions must be established convincingly (see Axel Springer AG v. Germany [GC], no. 39954/08, § 78, 7 February 2012, with further references). Furthermore, there is little scope under Article 10 § 2 of the Convention for restrictions on political speech or on debate on matters of public interest (see, among other authorities, Ceylan v. Turkey [GC], no. 23556/94, § 33, ECHR 1999-IV; Verein gegen Tierfabriken Schweiz (VgT) v. Switzerland (no. 2) [GC], no. 32772/02, § 92, ECHR 2009 and Mouvement raëlien v. Switzerland [GC], no. 16354/06, § 61, 13 July 2012).

47. Turning to the circumstances of the instant case, the Court observes, at the outset, that the applicant association's intended poster campaign concerned battery animal-farming. Accordingly, as it related to animal and environmental protection, it was undeniably in the public interest (compare Verein gegen Tierfabriken Schweiz, ibid.). It follows that only weighty reasons can justify the interference with the applicant's right to freedom of expression in this context. The Court further observes that the domestic courts adjudicating the applicant's case carefully examined whether the issue of the requested civil injunction would violate the applicant association's right to freedom of expression. In doing so, the domestic courts applied the standards developed by the Court as set out above. They expressly accepted that the impugned representations constituted expressions of opinion and where thus protected under the right to freedom of expression. They further acknowledged that this right protected expressions even if they were formulated in a polemic or offensive way (compare paragraph 10, above) and that the impugned posters related to questions of public interest, as they were obviously intended to criticise the conditions under which animals were kept (compare paragraph 11, above).

48. The Court further observes that the domestic courts considered that the intended poster campaign did not pursue the aim to debase the depicted concentration camp inmates, as the pictures merely implied that the suffering inflicted upon the depicted humans and animals was equal. The domestic courts considered, however, that the applicant association confronted the plaintiffs with their suffering and their fate of persecution in the interest of animal protection. It was this "instrumentalisation" of the plaintiffs' suffering that violated their personality rights in their capacity as Jews living in Germany and as survivors of the Holocaust. This violation was aggravated by the fact that the depicted Holocaust victims were shown in a most vulnerable state. Having regard to the seriousness of this violation, the courts considered that the applicant association's interests in publishing the impugned pictures had to cede. While expressing its doubts as to whether the intended campaign violated the human dignity of either the depicted persons or the plaintiffs, the Federal Constitutional Court endorsed the lower courts' assessment that the campaign banalised the fate of the Holocaust victims and that the violation of the plaintiffs' personal honour was particularly serious.

49. The Court considers that the facts of this case cannot be detached from the historical and social context in which the expression of opinion takes place (compare Hoffer and Annen, cited above, § 48 and Rekvényi v. Hungary [GC], no. 25390/94, §§ 46 et seq.,

ECHR 1999-III). It observes that a reference to the Holocaust must also be seen in the specific context of the German past (see Hoffer and Annen, ibid.) and respects the Government's stance that they deem themselves under a special obligation towards the Jews living in Germany (compare paragraph 36, above). In the light of this, the Court considers that the domestic courts gave relevant and sufficient reasons for granting the civil injunction against the publication of the posters. This is not called into question by the fact that courts in other jurisdictions might address similar issues in a different way (also compare Müller v. Switzerland, 24 May 1988, § 36, Series A no. 133).

50. The Court further recalls that the nature and severity of any sanction imposed are also factors to be taken into account when assessing the proportionality of the interference (see, among other authorities, Ceylan, cited above, § 37 and Annen II v. Germany (dec.), nos. 2373/07 and 2396/07, 30 March 2010). Turning to the circumstances of the instant case, the Court notes that the proceedings at issue did not concern any criminal sanctions, but a civil injunction preventing the applicant association from publishing seven specified posters. The Court finally observes that the applicant has not established that it did not have other means at their disposal of drawing public attention to the issue of animal protection.

51. Having regard to the foregoing considerations and, in particular, to the careful examination of the case by the domestic courts, the Court accepts that the civil injunctions issued against the applicant association were a proportionate means to protect the plaintiffs' personality rights.

There has accordingly been no violation of Article 10 of the Convention.

Case of Lindholm and the Estate after Leif Lindholm v. Denmark

(Application no. 25636/22)

THE FACTS

6. L had been a Jehovah's Witness since he was fifteen years old. In 1970 he married his wife, the first applicant, who was also a Jehovah's Witness. They had five children.

7. On 19 September 2014, in the afternoon, L, aged 67, was admitted to the emergency unit of a local hospital (Odense Universitetshospital, medicinsk afdeling Ærø) having fallen about two metres through a roof. The medical records showed that he was admitted at 3.28 p.m. and was then conscious. The first applicant estimated that L might have been lying unconscious for up to an hour before he was found. He was transported by helicopter from the local hospital to the main hospital, it was noted in the medical records at 10.22 p.m. that on his arrival at the hospital L had been awake and could give his name but that he was disoriented and had no recollection of the fall. All information came from the first applicant. A CT scan was carried out and showed a small subarachnoid haemorrhage (bleeding between the membranes that surround the brain) and bleeding on the left side of the thorax (chest) and on the left side of the gluteal muscles (buttock muscles).

8. Prior to his hospital admission, L had been taking blood thinners in the form of warfarin (Marevan 2.5mg) on prescription to reduce the risk of cerebral thrombosis from atrial fibrillation. One of the known side effects of warfarin is that it generally increases a patient's tendency to bleed. Any bumps, blows or jolts to the body will therefore have a risk of increased bleeding.

9. During the night of 19 - 20 September 2014, L began to have difficulty breathing. A new CT scan revealed that a massive accumulation of blood had developed by his left lung. A drain was inserted into the lung late in the morning of 20 September 2014. L's medical records show that his condition at that time did not indicate a need for a blood transfusion.

10. An entry in L's medical records on 20 September 2014 at 9.05 a.m. stated that L was able to give his name and date of birth and that he understood that he was in hospital, but that he otherwise seemed disoriented.

11. According to entries in the medical records made on 20 September 2014 at 2.08 p.m. and 2.38 p.m., L's daughter had informed the healthcare staff that L, as a Jehovah's Witness, did not wish to receive a blood transfusion. In the afternoon of the same day, the healthcare staff were presented with an advance medical directive and a Health Care Power of Attorney (forhåndsdirektiv og fuldmagt angående lægebehandling), which were entered into L's medical records. L had been carrying the document on his person when the accident happened. The advance medical directive had been signed by L on 11 February 2012 and stated as follows (emphasis in the original):

"I, L … am one of Jehovah's Witnesses, and I direct that NO TRANSFUSIONS of whole blood, red cells, white cells, platelets, or plasma be given me under any circumstances, even if healthcare providers believe that they are necessary to preserve my life. I refuse to pre-donate and store my blood for later infusion."

12. According to the medical records, a doctor was called at 4.33 p.m. because L had lost consciousness. L was transferred to the hospital's neurosurgical intensive care unit and a new CT scan was carried out.

13. At 6.15 p.m. a note was added that L's haemoglobin level (blood cell count) had dropped from 10.0 to 6.1. and that "[t]he patient may not be given blood products because of his religious beliefs".

14. A further note at 7.40 p.m. recorded that "the patient is still not fully conscious".

15. From the medical records of 20 September 2014 at 11.42 p.m. it appeared that the unit's healthcare staff had had a conversation with L's family (the first applicant and some of the children). The family repeated that L was a Jehovah's Witness and did not wish to receive any transfusions of blood or blood components. The healthcare staff informed them that L was being treated in accordance with their wishes, but that he was in a very serious condition because of the atrial fibrillation, the blood accumulation near his lungs, and the added strain on his circulation. The family understood the gravity of his condition.

16. In the afternoon of 21 September 2014, L was transferred to the intensive care unit because the condition of his lungs was very poor. […]

17. On 22 September 2014, the chief physician, X, consulted the medical health officer (ombudslægen) regarding L's immediate need for treatment. His decreasing haemoglobin level, the swelling in his brain and the subarachnoid haemorrhage made it necessary to increase his haemoglobin to a level between 4.3 and 4.5. L was unconscious and unable to give consent. In an e-mail send at 12.19 p.m., the medical health officer gave the following reply:

"… Advice given:

The chief physician, X, was reminded (guidet) of sections 19 and 24 of the Health Act (sundhedsloven)

[a]s the patient is not competent and has not expressed his wishes in the current situation (but did so in 2012 in another context), there may be a need to give blood according to section 19 (if, however, there may be any possible way to avoid giving him blood, this should be sought in the light of the hospital's knowledge of the patient). For the sake of the patient, his relatives and the staff (including a potential subsequent complaint), it is important that record keeping is done with great care and conscientiousness."

20. According to the medical records of 22 September 2014 at 2.20 p.m., L's haemoglobin level had dropped to 3.4, and increasing intracranial pressure (elevated pressure in the brain) had been observed.

21. The healthcare staff discussed the situation with L's family again and explained the risk of suboptimal brain perfusion (marginally reduced oxygenation and a reduction in the supply of blood to the brain) and an increased risk of bleeding in the brain. The family maintained that L did not wish to receive a blood transfusion.

22. On 22 September 2014 at 3.28 p.m., the chief physician X decided to increase the haemoglobin level to between 4.3 and 4.5 by administering a blood transfusion. L was given one bag of blood which was prescribed on 22 September 2014 at 4.44 p.m. His haemoglobin level rose to 4.5.

23. Seven days later, L showed no signs of returning to consciousness, for which there was no neurosurgical explanation.

24. On 9 October 2014, L was transferred to the intensive care unit at another hospital (Svendborg Hospital).

25. On 20 October 2014, the healthcare staff had a conversation with L's wife and daughter about L's condition and explained that permanent damage seemed unavoidable. In consultation with the family, active treatment was discontinued later that day, after which L received only palliative care.

26. L died on 21 October 2014. It is not in dispute that the cause of death was not linked to the blood transfusion administered on 22 September 2014 (see paragraph 22 above).

27. By a judgment of 7 December 2020, the High Court [of Denmark] found partly for the applicants. The majority (two out of three judges) found, on the one hand, that previous information, such as an advance medical directive, could not be conclusive when doctors had to decide whether a blood transfusion was required under section 19 of the Health Act (see paragraph 39 below). On the other hand, making an unconditional, formal requirement of informed refusal "in the current course of illness" a condition for not administering a blood transfusion would mean that a person who was hospitalised in an unconscious state could not object to the treatment, no matter how unambiguous and well-documented their previous refusal of blood might be. Moreover, in the present case, the doctors had had no doubt about L's absolute refusal of blood transfusion. Accordingly, there had been a violation of Articles 8 and 9 of the Convention. The wording of the reasoning was as follows:

"All the essential evidence in the case - in particular L's advance directive of 11 February 2012, his refusal of a possible blood transfusion during his hospitalisation in 2010, the available medical records, the statements given by [the first applicant and her daughter] and the statement by chief physician X - points unequivocally to the fact that L's refusal to receive blood was a personal, religious decision. In particular, it is noted that at no time during the hospitalisation or afterwards has there been any doubt at all that the advance directive was completed and signed by L of his own free will on 11 February 2012, and that he was at that time capable of acting rationally. It must also be stressed that L decided to renew his advance directive after his hospitalisation in 2010. This is information which was essentially available when chief physician X decided that a blood transfusion should be carried out. He has explained, among other things, that he"at no time [doubted] the family's statements about the patient's wishes, but he had to do the right thing and follow the medical rules."

There was therefore no doubt about L's decision, apart from the - in the light of the other evidence - theoretical doubt connected with the fact that L was unconscious when it first appeared advisable to carry out a blood transfusion, and that the doctors were therefore unable at that time to follow the procedure laid down in section 24, subsection 2 of the Health Act. Moreover, L was not found to have had an opportunity to make it known at the time of his admission, when he was still conscious, that he did not want blood. We note here that he was at that point dazed [omtåget] and suffering from amnesia, that it does not appear that he was questioned by the health professionals, and that he was carrying the advance directive on his person, which in itself indicates that he stood by his decision to refuse blood.

After an overall assessment of the information available, we therefore find that at the time of the decision to give blood to L there was no reasonably justified doubt that he did not wish to receive blood even in the current situation of illness. There is no

evidence of such special circumstances that chief physician … otherwise had grounds for disregarding the wish.

In these circumstances, we consider that it has been established that the decision to allow blood transfusion on 22 September 2014 was not necessary for reasons of critical social need, see Article 8, paragraph 2, and Article 9, paragraph 2, of the European Convention on Human Rights."

33. On appeal, in a judgment of 1 February 2022 a seven-judge panel of the Supreme Court (Højesteret) unanimously found against the applicants for the following reasons:

[…]

Under Article 8, paragraph 1, of the Convention on Human Rights, everyone has the right to private life, and according to paragraph 2 there can be interference with this right only where it is necessary for the protection of the health or of the rights of others etc. Article 9, paragraph 1 establishes that everyone has the right to freedom of religion and to manifest his religion, and under Article 9, paragraph 2 this freedom can only be subject to such limitations as are prescribed by law and are necessary in a democratic society in the interests of for example health or for the protection of the rights and freedom of others. Article 14 of the Convention contains a prohibition on discrimination on the grounds of, inter alia, religion.

In its judgment of 10 June 2019 in case 302/02 (Jehovah's Witnesses of Moscow and Others v. Russia), the Court found that the Russian authorities had violated the Convention on Human Rights by dissolving the association the Jehovah's Witnesses of Moscow and banning the association's activities, inter alia, with reference to the association's encouragement of its members to refuse certain forms of medical treatment, such as blood transfusions. The judgment states that refusing potentially life-saving medical treatment on religious grounds is a problem of considerable legal complexity, involving a conflict between, on the one hand, the State's interest in protecting the lives and health of its citizens and, on the other, the individual's right to personal autonomy in the sphere of physical integrity and religious beliefs, cf. paragraph 134. Furthermore, it is stated that the genuineness of a patient's refusal of medical treatment constitutes "a legitimate concern", given that health and possibly life itself are at stake in such situations, see paragraph 138.

The Supreme Court thirdly finds that the judgment does not provide a basis for holding that the national legislature is precluded from establishing, as part of a combined balancing of different considerations, further conditions under which directives from members of Jehovah's Witnesses refusing blood transfusions would be binding on health personnel.

The requirement in section 24, subsection 2 of the Health Act that a refusal of blood transfusions must be given in the context of a current course of illness in order to be binding on health staff is further supported in a reply from the Minister of Health at the time, during Parliament's consideration of the bill about the corresponding rule in section 15 of the previous Patients' Legal Status Act (the Minister of Health's reply to question number 4 of 2 April 1998 from the Parliament's Health Committee, Bill no. L 15 annex 25). It is stated in the reply that an advance medical directive setting out that the patient - who by then is unconscious or otherwise incapable - refuses treatment that involves blood transfusion is not binding on the physician, but shall obviously be taken seriously and be included in the considerations to be taken into account when deciding on treatment. In that connection, it is mentioned that both the Council of Europe's Convention on Human Rights and Biomedicine and a number of other declarations only make it obligatory to take advance directives into consideration, and do not require that they are binding on treating staff. It is then stated in the reply that whether the issue is a refusal of blood transfusions or directions about psychiatric treatment or other medical intervention, introducing rules that advance directives shall be binding on treating personnel, including in situations where the patient's situation is not hopeless, would give rise to serious concerns about patient safety and would involve immeasurable problems with the documentation needed in order to reasonably determine that those were indeed the patient's settled wishes. Furthermore, the Minister said in his reply that it could not be ruled out that in the current situation the patient, had he or she been conscious, would have preferred to go on living.

The present position is that an advance directive refusing blood transfusions or other medical treatment has a persuasive influence but is not binding if it is a matter of life-saving treatment of for example an unconscious patient. The requirement in section 24, subsection 2 of the Health Act that a refusal of a blood transfusion must be made in the context of the current course of illness in order to be binding on health staff is, as described, there to enable the balancing of personal autonomy, patient safety, and the documentation of a patient's settled wishes. The legislature has found it proper to have a regulation that can prevent the risk that for example an unconscious patient dies because of insufficient vital treatment which, in the context of the current course of illness, he or she would have consented to.

During the first days after L's admission to hospital, he was treated with, inter alia, blood-forming medication in order to take into account his previous directives about not wanting a blood transfusion. It was not until it was thought to be required for his survival that a blood transfusion was given. Against that background, the Supreme Court finds that there are no grounds for determining that the blood transfusion that was given to L on the basis of the provisions of section 24 of the Health Act in conjunction with section 19 was a violation of Articles 8 or 9 of the Convention on Human Rights.

As stated, section 19 of the Health Act allows life-saving treatment to be administered to an unconscious patient regardless of any advance directive from him or her about not wanting to be treated. The rule is general and is not restricted to blood transfusions. Therefore, the blood transfusion that was given to L was not a violation of Article 14 of the Convention on Human Rights, read in conjunction with Articles 8 and 9.

THE LAW

ALLEGED VIOLATION OF ARTICLES 8 AND 9 OF THE CONVENTION

55. The applicants complained that the Supreme Court judgment of 1 February 2022 (see paragraph 33 above), approving the lawfulness of administering the blood transfusion to L despite his previously expressed refusal of this form of treatment, was in violation of Articles 8 and 9 of the Convention, which in so far as relevant provide as follows:

Article 8

"1. Everyone has the right to respect for his private … life… 2. There shall be no interference by a public authority with the exercise of this right except such as is in accordance with the law and is necessary in a democratic society in the interests of national security, public safety or the economic well-being of the country, for the prevention of disorder or crime, for the protection of health or morals, or for the protection of the rights and freedoms of others."

Article 9

"1. Everyone has the right to freedom of thought, conscience and religion; this right includes freedom to change his religion or belief and freedom, either alone or in community with others and in public or private, to manifest his religion or belief, in worship, teaching, practice and observance. 2. Freedom to manifest one's religion or beliefs shall be subject only to such limitations as are prescribed by law and are necessary in a democratic society in the interests of public safety, for the protection of public order, health or morals, or for the protection of the rights and freedoms of others."

65. As to the proportionality test, the first applicant submitted that given the fundamental importance of respecting patient autonomy and personal integrity, any margin of appreciation for the domestic authorities in this respect would have to be very narrow. Moreover, referring to, among other things, the Oviedo Convention, and the Court's finding in Jehovah's Witnesses of Moscow and Others v. Russia (no. 302/02, §§ 135, 136, 139 and 142, 10 June 2010), the interference had not been necessary in a democratic society. The State's interest in the preservation of life or health under Article 2 of the Convention must yield to the patient's Article 8 right to personal integrity and autonomy, unless there is sufficient evidence to prove that the patient's will was "overborne" or was the product of "improper pressure or influence". In the present case, referring particularly to the conclusion of the High Court in its judgment of 7 December 2020 (see paragraph 32 above), there was no doubt about the genuineness of L's refusal of blood transfusions. It was clear on the facts of the case that there had been no reason whatsoever to doubt the validity of L's refusal of blood transfusions.

There was therefore nothing in the facts of the case that could be taken as revealing a pressing social need or as constituting a relevant and sufficient reason for interfering with his right to respect for his private life.

66. The Government submitted that that there had been no violation of the provisions relied on. The interference had been "in accordance with the law", had "a legitimate aim" and "was necessary in a democratic society".

67. The Danish legislation was founded on the fundamental principle of self-determination based on informed consent in the context of current medical treatment, only yielding for situations, such as that in the present case, where a refusal of potentially life-saving treatment could not be immediately obtained due to the patient's condition.

68. The Danish legislation only gave binding effect to a so-called "advance directive on medical treatment" or "living will" (behandlingstestamenter) in which a terminally ill patient wanted to decline life-prolonging treatment.

69. Other advance medical directives, for example about not wishing to receive blood transfusions or psychiatric treatment, had no binding effect under Danish law, but had to be included in decisions on medical treatment.

70. In 1998, and again in 2005, when the provisions from the Patients' Rights Act were repeated in the Health Act (see paragraph 34 above), the Danish legislature had properly balanced the State's interest in protecting the lives and health of its citizens against the individual's right to personal autonomy in the sphere of physical integrity and religious beliefs. It took account of the Convention and the Oviedo Convention, and the legislature had given reasons for not making advance medical directives binding, including that it would give rise to serious concerns about patient safety and would entail unmanageable issues with the documentation needed to determine that the advance directive did indeed represent what the patient wanted. Furthermore, it could not be ruled out that in a given situation a patient, had he or she been conscious, would have preferred to go on living. The Government referred, among other things, to the Supreme Court judgment of 1 February 2022 (see paragraph 33 above), and the written reply of 21 April 1998 from the former Minister of Health to Parliament about advance medical directives (see paragraph 49 above).

71. The Court is satisfied, having regard to the wording of sections 19, 20 and 24 of the Health Act, and the preparatory notes, that the interference, in the form of administering a blood transfusion, was clearly defined in the law and fulfilled the requirements of accessibility and foreseeability, and that there are no elements indicating that the Supreme Court interpreted and applied domestic law in an arbitrary or manifestly unreasonable way.

(ii) Aim of the interference

82. The first applicant argued that both the blood transfusion administered to L without his consent and the Supreme Court's judgment had failed to pursue any of the aims recognised in Article 8 § 2, including "the lives and health of … citizens" since there

was no reasonably justified doubt that L had unconditionally rejected blood transfusion (see paragraph 64 above).

83. The Government argued that the legal aim was the State's interest in protecting the life and health of its citizens.

84. The Court accepts the Government's position on this point. It observes that the exception in domestic law for emergencies corresponds very closely in substance to the Oviedo Convention, read in light of the explanatory report (see also to similar effect paragraph 7.4 of Resolution 1859(2012) of the Parliamentary Assembly, and the World Medical Association's Declaration of Lisbon). All of these texts share the concern that vital medical treatment must be permitted in emergency situations, in order to save the lives of patients when their own wishes cannot be sufficiently established. Furthermore, the State's duty under Articles 2 and 8 to ensure the protection of hospital patients must also be borne in mind in this connection. It can therefore be said that the interference had as its aim "the protection of health" (see Pindo Mulla, cited above, §§ 135-36).

(iii) Necessity of the interference

(α) Non-binding effect of advance medical directives

85. The Court recently examined the issue of the "previously expressed wishes of the patient" in the light of the Convention, the Oviedo Convention, and a comparative survey undertaken for the purpose of the case in Pindo Mulla (cited above, §§ 151-53). The survey showed a diversity of practice in Europe when it came to the way the right to life and the right to respect for the autonomy of the patient were reconciled by taking account of the patient's previously expressed views.

86. The Court pointed out that both the principle of giving binding legal effect to advance directives and the formal and practical way of doing so come within the margin of appreciation of the Contracting States (ibid., §§ 153 and 156). In other words, the Member States are under no obligation under Article 8 of the Convention to give binding effect to advance directives, for example that signed by L on 11 February 2012 (see paragraph 11 above).

- **The legislative and policy framework**

87. As pointed out by the Supreme Court and the Government (see paragraphs 33 and 70 above), when the Danish legislature adopted the Patients' Rights Act in 1998, the former section 15 (now section 24 of the Health Act) was inserted specifically to accommodate the wishes of Jehovah's Witnesses, who do not, for religious reasons, wish to receive blood or blood products during surgery or other procedures. The provision reflected that the importance of the integrity and right to autonomy of the individual was considered more important than the preservation of life (see paragraph 47 above). It was however made conditional on the patient's refusal of blood or blood products being given in the context of his or her current course of illness and being based on information provided by the healthcare professional about the consequences to the patient's health of not administering blood or blood products as part of the treatment (see the current section

24, subsection 2 of the Health Act, cited in paragraph 46 above). During Parliament's reading of Bill no. L 15 of 26 March 1998 on the Legal Rights of Patients, the former Minister of Health was asked by a member of Parliament to comment on a letter from the Watch Tower Bible and Tract Society, which recommended that medical directives be binding on healthcare staff. The Minister's written reply of 21 April 1998 emphasised that the legislature did not want to give binding effect to advance medical directives, since it would "give rise to serious concerns about patient safety and would entail unmanageable issues with the documentation needed to determine that the advance directive does in fact represent the patient's settled wishes. Furthermore, it cannot be ruled out that the patient, had he or she been conscious, would have preferred at that point to go on living, or that new treatment methods developed after the advance directive could have so improved the patient's life that the patient would have accepted the treatment" (see paragraph 49 above).

88. The legislation was re-assessed in 2005 (see paragraph 34 above). The legislature took account of the Convention and the Oviedo Convention (which had been in force since 1 December 1999) and decided to repeat the provisions from the Patients' Rights Act in the Health Act.

89. As described above the requirement under Section 24, subsection 2, of the Health act that a patient's refusal of blood products is only binding if given in the course of the patient's current illness and based on information provided by health care professionals on the consequences of this refusal aims to ensure that the patient's decision is current and informed and that an unconscious patient, who might want to live, is not denied lifesaving treatment. The Court finds that this requirement falls within the State's margin of appreciation when balancing the State's duty to protect life and the patient's right to autonomy.

- **L's individual case**

90. As already stated, (see paragraph 75 above), following the accident on 19 September 2014, L was unable to state his own wishes "in the context of his current course of illness".

91. The fact that during his fall and admission to hospital L carried on his person his advance medical directive of 11 February 2012, stating that he refused blood transfusions (see paragraph 11 above), did not meet the requirement in section 24, subsection 2 of the Health Act that a refusal of a blood transfusion must be given on an informed basis and in connection with the current course of illness (see paragraphs 33 and 46 above).

92. The question remains whether the advance medical directive was treated as relevant and taken into account in the health staff's treatment decisions as required by section 20 of the Health Act (see paragraph 41 above).

93. In this respect the Supreme Court gave weight to the fact that "during the first days after L's admission to hospital, he was treated with, inter alia, blood-forming medication in order to take into account his previous directives about not wanting a blood transfusion.

It was not until it was thought to be required for his survival that a blood transfusion was given" (see paragraph 33 above).

94. The Court finds no reason to question that finding. It further notes the entry in L's medical records on 20 September 2014 at 6.15 p.m. (see paragraph 13 above) that L's haemoglobin level had dropped from 10.0 to 6.1 and that "the patient may not be given blood products because of his religious beliefs".

95. On 21 September 2014 at 5.45 p.m. L's haemoglobin level had dropped to 4.2 (see paragraph 16 above).

96. On 22 September 2014, L's haemoglobin level had dropped to 3.7 at around noon (see paragraph 18 above) and to 3.4 at 2.20 p.m. (see paragraph 20 above).

97. On 22 September 2014 the doctor treating L sought guidance from the medical health officer and was informed that there might be a need to give blood to save L's life but that if there were any possible way to avoid giving him blood, this should be sought in the light of the hospital's knowledge of the patient. The Court does not question that the doctors treating L acted in accordance with this guidance and sought to avoid giving blood until it was found necessary for L's survival.

98. In addition, every day from 20 to 22 September 2014 the healthcare staff met with the first applicant and some of her and L's children (see paragraphs 15, 17 and 21 above) and took note of L's expressed wishes, including those expressed in his advance medical directive. In keeping with that, the healthcare personnel tried to avoid allowing L's haemoglobin level to fall to a life-threatening level by using inter alia blood-forming medication (see paragraph 33 above).

99. It was not until 3.28 p.m. on 22 September 2014 that the healthcare staff found it necessary to administer a blood transfusion in order to save L's life (see paragraph 22 above).

Overall conclusion

100. In the light of all the above-mentioned considerations, the Court considers that the reasons relied upon by the Supreme Court in its judgment of 1 February 2022 (see paragraph 33 above) were both relevant and sufficient to establish that the interference complained about can be regarded as having been "necessary in a democratic society" and proportionate to the aims pursued, namely the protection of health, and that the authorities of the respondent State acted within their margin of appreciation, having taken into account the criteria set out in the Court's case-law, notably Pindo Mulla (cited above, §§ 146-53).

101. It therefore follows that there has been no violation of Article 8 of the Convention read in the light of Article 9.

Report of the United Nations High Commissioner for Human Rights on the expert workshops on the prohibition of incitement to national, racial or religious hatred

III. Implementing the prohibition of incitement to hatred

13. Against this background, the following conclusions and recommendations constitute the synthesis of this long, transparent and deep reflection by experts. The conclusions — in the area of legislation, judicial infrastructure, and policy — are intended to better guide all stakeholders in implementing the international prohibition of any advocacy of national, racial or religious hatred that constitutes incitement to discrimination, hostility or violence.

A. Legislation

Conclusions

14. Under international human rights standards, which are intended to guide legislation at the national level, expression labelled as "hate speech" can be restricted under articles 18 and 19 of the International Covenant on Civil and Political Rights on different grounds, including respect for the rights of others, public order or sometimes national security. States are also obliged to "prohibit" expression that amounts to "incitement" to discrimination, hostility or violence (art. 20, para. 2, of the Covenant and, under some different conditions, art. 4 of the International Convention on the Elimination of All Forms of Racial Discrimination).

15. Discussions in the various workshops demonstrated the absence of a legal prohibition of incitement to hatred in many domestic legal frameworks worldwide, while legislation that prohibits incitement to hatred uses variable terminology and is often inconsistent with article 20 of the Covenant. The broader the definition of incitement to hatred is in domestic legislation, the more it opens the door for arbitrary application of the laws. The terminology relating to offences on incitement to national, racial or religious hatred varies from country to country and is increasingly vague, while new categories of restrictions or limitations to freedom of expression are being incorporated in national legislation. This contributes to the risk of misinterpretation of article 20 of the Covenant and additional limitations to freedom of expression that are not contained in article 19 of the Covenant.

16. Some countries consider incitement to racial and religious hatred as offences, while others consider incitement to hatred along racial/ethnic lines only as offences. Some countries also recognize prohibition of incitement to hatred on other grounds. National provisions vary between civil law and criminal law: in many countries, incitement to hatred is a criminal offence, while in some countries, it is an offence under both criminal and civil law or under civil law only.

17. At the international level, the prohibition of incitement to hatred is clearly established in article 20 of the International Covenant on Civil and Political Rights and article 4 of the International Convention on the Elimination of All Forms of Racial Discrimination. In

its general comment No. 34 (2011) on freedoms of opinion and expression, the Human Rights Committee stresses that

> "[p]rohibitions of displays of lack of respect for a religion or other belief system, including blasphemy laws, are incompatible with the Covenant, except in the specific circumstances envisaged in article 20, paragraph 2, of the Covenant. Such prohibitions must also comply with the strict requirements of article 19, paragraph 3, as well as such articles as 2, 5, 17, 18 and 26 of the ICCPR. Thus, for instance, it would be impermissible for any such laws to discriminate in favour of or against one or certain religions or belief systems, or their adherents over another, or religious believers over non-believers. Nor would it be permissible for such prohibitions to be used to prevent or punish criticism of religious leaders or commentary on religious doctrine and tenets of faith" (para. 48).

18. Article 20 of the Covenant requires a high threshold because, as a matter of fundamental principle, limitation of speech must remain an exception. Such threshold must take into account the provisions of article 19 of the Covenant. Indeed the three-part test (legality, proportionality and necessity) for restrictions also applies to cases involving incitement to hatred, in that such restrictions must be provided by law, be narrowly defined to serve a legitimate interest, and be necessary in a democratic society to protect that interest. This implies, among other things, that restrictions are clearly and narrowly defined and respond to a pressing social need; are the least intrusive measure available; are not overly broad, so that they do not restrict speech in a wide or untargeted way; and are proportionate so that the benefit to the protected interest outweighs the harm to freedom of expression, including with respect to the sanctions they authorize.[2]

19. At the national level, blasphemy laws are counterproductive, since they may result in de facto censure of all inter-religious or belief and intra-religious or belief dialogue, debate and criticism, most of which could be constructive, healthy and needed. In addition, many blasphemy laws afford different levels of protection to different religions and have often proved to be applied in a discriminatory manner. There are numerous examples of persecution of religious minorities or dissenters, but also of atheists and non-theists, as a result of legislation on what constitutes religious offences or overzealous application of laws containing neutral language. Moreover, the right to freedom of religion or belief, as enshrined in relevant international legal standards, does not include the right to have a religion or a belief that is free from criticism or ridicule.

Recommendations

20. In terms of general principles, a clear distinction should be made between three types of expression: expression that constitutes a criminal offence; expression that is not criminally punishable, but may justify a civil suit or administrative sanctions; expression that does not give rise to criminal, civil or administrative sanctions, but still raises concern in terms of tolerance, civility and respect for the rights of others.

[2] Note 4 in the original document.

21. Bearing in mind the interrelationship between articles 19 and 20 of the International Covenant on Civil and Political Rights, States should ensure that their domestic legal framework on incitement to hatred is guided by express reference to article 20, paragraph 2, of the Covenant ("…advocacy of national, racial or religious hatred that constitutes incitement to discrimination, hostility or violence…"), and should consider including robust definitions of key terms such as hatred, discrimination, violence, hostility, among others. In this regard, legislation can draw, inter alia, from the guidance and definitions provided in the Camden Principles.[3]

22. States should ensure that the three-part test — legality, proportionality and necessity — for restrictions to freedom of expression also applies to cases of incitement to hatred.

23. States should make use of the guidance provided by international human rights expert mechanisms, including the Human Rights Committee and the Committee on the Elimination on Racial Discrimination and their general comment No. 34 (2011) and general recommendation No. 15 (1993) respectively, as well as the respective special procedures mandate holders of the Human Rights Council.

24. States are encouraged to ratify and effectively implement the relevant international and regional human rights instruments, remove any reservations thereto and honour their reporting obligations thereunder.

25. States that have blasphemy laws should repeal them, as such laws have a stifling impact on the enjoyment of freedom of religion or belief, and healthy dialogue and debate about religion.

26. States should adopt comprehensive anti-discrimination legislation that includes preventive and punitive action to effectively combat incitement to hatred.

B. Jurisprudence

Conclusions

27. An independent judicial infrastructure that is regularly updated with regard to international standards and jurisprudence and with members acting in an impartial and objective manner, as well as respect for the rules of due process, are crucial for ensuring that the facts and legal qualifications of any individual case are assessed in a manner consistent with international human rights standards. This should be complemented by other checks and balances to protect human rights, such as independent national human rights institutions established in accordance with the Paris Principles.

28. There is often very low recourse to judicial and quasi-judicial mechanisms in alleged cases of incitement to hatred. In many instances, victims are from disadvantaged or vulnerable groups and case law on the prohibition of incitement to hatred is not readily available. This is due to the absence or inadequacy of legislation or lack of judicial assistance for minorities and other vulnerable groups who constitute the majority of victims of incitement to hatred. The weak jurisprudence can also be explained by the

[3] Note 6 in the original document.

absence of accessible archives, but also lack of recourse to courts owing to limited awareness among the general public as well as lack of trust in the judiciary.

29. It was suggested that a high threshold be sought for defining restrictions on freedom of expression, incitement to hatred, and for the application of article 20 of the International Covenant on Civil and Political Rights. In order to establish severity as the underlying consideration of the thresholds, incitement to hatred must refer to the most severe and deeply felt form of opprobrium. To assess the severity of the hatred, possible elements may include the cruelty or intent of the statement or harm advocated, the frequency, quantity and extent of the communication. In this regard, a six-part threshold test was proposed for expressions considered as criminal offences:

30. **Context:** Context is of great importance when assessing whether particular statements are likely to incite discrimination, hostility or violence against the target group, and it may have a direct bearing on both intent and/or causation. Analysis of the context should place the speech act within the social and political context prevalent at the time the speech was made and disseminated;

31. **Speaker:** The speaker's position or status in the society should be considered, specifically the individual's or organization's standing in the context of the audience to whom the speech is directed;

32. **Intent:** Article 20 of the International Covenant on Civil and Political Rights anticipates intent. Negligence and recklessness are not sufficient for an act to be an offence under article 20 of the Covenant, as this article provides for "advocacy" and "incitement" rather than the mere distribution or circulation of material. In this regard, it requires the activation of a triangular relationship between the object and subject of the speech act as well as the audience.

33. **Content and form:** The content of the speech constitutes one of the key foci of the court's deliberations and is a critical element of incitement. Content analysis may include the degree to which the speech was provocative and direct, as well as the form, style, nature of arguments deployed in the speech or the balance struck between arguments deployed;

34. **Extent of the speech act:** Extent includes such elements as the reach of the speech act, its public nature, its magnitude and size of its audience. Other elements to consider include whether the speech is public, what means of dissemination are used, for example by a single leaflet or broadcast in the mainstream media or via the Internet, the frequency, the quantity and the extent of the communications, whether the audience had the means to act on the incitement, whether the statement (or work) is circulated in a restricted environment or widely accessible to the general public;

35. **Likelihood, including imminence:** Incitement, by definition, is an inchoate crime. The action advocated through incitement speech does not have to be committed for said speech to amount to a crime. Nevertheless, some degree of risk of harm must be identified. It means that the courts will have to determine that there was a reasonable

probability that the speech would succeed in inciting actual action against the target group, recognizing that such causation should be rather direct.

Recommendations

30. National and regional courts should be regularly updated about international standards and international, regional and comparative jurisprudence relating to incitement to hatred because when confronted with such cases, courts need to undertake a thorough analysis based on a well thought through threshold test.

31. States should ensure the right to a fair and public hearing by a competent, independent and impartial tribunal established by law.

32. Due attention should be given to minorities and vulnerable groups by providing legal and other types of assistance for their members.

33. States should ensure that persons who have suffered actual harm as a result of incitement to hatred have a right to an effective remedy, including a civil or non-judicial remedy for damages.

34. Criminal sanctions related to unlawful forms of expression should be seen as last resort measures to be applied only in strictly justifiable situations. Civil sanctions and remedies should also be considered, including pecuniary and non-pecuniary damages, along with the right of correction and the right of reply. Administrative sanctions and remedies should also be considered, including those identified and put in force by various professional and regulatory bodies.

C. Policies

Conclusions

35. While a legal response is important, legislation is only part of a larger toolbox to respond to the challenges of hate speech. Any related legislation should be complemented by initiatives from various sectors of society geared towards a plurality of policies, practices and measures nurturing social consciousness, tolerance and understanding change and public discussion. This is with a view to creating and strengthening a culture of peace, tolerance and mutual respect among individuals, public officials and members of the judiciary, as well as rendering media organizations and religious/community leaders more ethically aware and socially responsible. States, media and society have a collective responsibility to ensure that acts of incitement to hatred are spoken out against and acted upon with the appropriate measures, in accordance with international human rights law.

36. Political and religious leaders should refrain from using messages of intolerance or expressions which may incite violence, hostility or discrimination; but they also have a crucial role to play in speaking out firmly and promptly against intolerance, discriminatory stereotyping and instances of hate speech. It should be made clear that violence can never be tolerated as a response to incitement to hatred.

37. To tackle the root causes of intolerance, a much broader set of policy measures is necessary, for example in the areas of intercultural dialogue — reciprocal knowledge and interaction —, education on pluralism and diversity, and policies empowering minorities and indigenous people to exercise their right to freedom of expression.

38. States have the responsibility to ensure space for minorities to enjoy their fundamental rights and freedoms, for instance by facilitating registration and functioning of minority media organizations. States should strengthen the capacities of communities to access and express a range of views and information and embrace the healthy dialogue and debate that they can encompass.

39. Certain regions have a marked preference for a non-legislative approach to combating incitement to hatred through, in particular, the adoption of public policies and the establishment of various types of institutions and processes, including truth and reconciliation commissions. The important work of regional human rights mechanisms, specialized bodies, a vibrant civil society and independent monitoring institutions is fundamentally important in all regions of the world. In addition, positive traditional values, compatible with internationally recognized human rights norms and standards, can also contribute towards countering incitement to hatred.

40. The importance of the media and other means of public communication in enabling free expression and the realization of equality is fundamental. The traditional media continue to play an important role globally, but they are undergoing significant transformation. New technologies — including digital broadcasting, mobile telephony, the Internet and social networks — vastly enhance the dissemination of information and open up new forms of communication, such as the blogosphere.

41. Steps taken by the Human Rights Council, in particular the adoption without a vote of resolution 16/18 on combating intolerance, negative stereotyping and stigmatization of, and discrimination, incitement to violence, and violence against persons based on religion or belief, which constitutes a promising platform for effective, integrated and inclusive action by the international community. This resolution requires implementation and constant follow-up at the national level by States, including through the Rabat Plan of Action which contributes to its fulfilment.

Recommendations to States

42. States should enhance their engagement in broad efforts to combat negative stereotypes of and discrimination against individuals and communities on the basis of their nationality, ethnicity, religion or belief.

43. States should promote intercultural understanding, including on gender sensitivity. In this regard, all States have the responsibility to build a culture of peace and a duty to put an end to impunity.

44. States should promote and provide teacher training on human rights values and principles, and introduce or strengthen intercultural understanding as part of the school curriculum for pupils of all ages.

45. States should build the capacity to train and sensitize security forces, law-enforcement agents and those involved in the administration of justice on issues concerning the prohibition of incitement to hatred.

46. States should consider creating equality bodies, or enhance this function within national human rights institutions (that have been established in accordance with the Paris Principles) with enlarged competencies in fostering social dialogue, but also in relation to accepting complaints about incidents of incitement to hatred. In order to render such functions efficient, new adapted guidelines, tests and good practices are needed so as to avoid arbitrary practices and improve international coherence.

47. States should ensure the necessary mechanisms and institutions in order to guarantee the systematic collection of data in relation to incitement to hatred offences.

48. States should have in place a public policy and a regulatory framework which promote pluralism and diversity of the media, including new media, and which promotes universal and non-discrimination in access to and use of means of communication.

49. States should strengthen the current international human rights mechanisms, particularly the human rights treaty bodies such as the Human Rights Committee and the Committee on the Elimination of Racial Discrimination, as well as the special procedures mandate holders, as they provide advice and support to States with regard to national policies for implementing human rights law.

Recommendations to the United Nations

50. The Office of the High Commissioner for Human Rights (OHCHR) should be properly resourced to adequately support the international expert mechanisms working to protect freedom of expression and freedom of religion, and prevent incitement to hatred and discrimination and on related topics. In this regard, States should support the efforts of the High Commissioner for Human Rights with a view to strengthening the human rights treaty bodies.

51. OHCHR is invited to work together with States that wish to avail themselves of its services in order to enhance their domestic normative and policy framework regarding the prohibition of incitement to hatred. In this regard, OHCHR should consider — inspired by the four regional expert workshops — developing tools, including a compilation of best practices and elements of a model legislation on the prohibition of incitement to hatred as reflected in international human rights law. OHCHR should also consider organizing regular judicial colloquia in order to update national judicial authorities and stimulate the sharing of experiences relating to the prohibition of incitement to hatred which would enrich the progressive development of national legislation and case law on this evolving issue.

52. Relevant human rights treaty bodies and special procedures mandate holders should enhance their synergies and cooperation, including through joint action, as appropriate, to denounce instances of advocacy of national, racial or religious hatred that constitutes incitement to discrimination, hostility or violence.

53. Various entities of the United Nations system, including OHCHR, United Nations Alliance of Civilizations, and the Office of the Special Advisor on the Prevention of Genocide should enhance their cooperation in order to maximize synergies and stimulate joint action.

54. Cooperation and information-sharing (a) between various regional and cross-regional mechanisms, such as the Council of Europe, the Organization for Security and Cooperation in Europe, the European Union, the Organization of American States, the African Union, the Association of Southeast Asian Nations, as well as the Organisation of Islamic Cooperation, and (b) between these organizations and the United Nations Organization should be further enhanced.

55. Consider implementing, at the national level and in cooperation with States, measures to realize the recommendations addressed to States.

Recommendations to other stakeholders

56. Non-governmental organizations, national human rights institutions as well as other civil society groups should create and support mechanisms and dialogues to foster intercultural and interreligious understanding and learning.

57. Political parties should adopt and enforce ethical guidelines in relation to the conduct of their representatives, particularly with respect to public speech.

58. Self-regulation, where effective, remains the most appropriate way to address professional issues relating to the media. In line with principle 9 of the Camden Principles, all media should, as a moral and social responsibility and through self-regulation, play a role in combating discrimination and promoting intercultural understanding, including by considering the following:

59. Taking care to report in context and in a factual and sensitive manner, while ensuring that acts of discrimination are brought to the attention of the public.

60. Being alert to the danger of furthering discrimination or negative stereotypes of individuals and groups in the media.

61. Avoiding unnecessary references to race, religion, gender and other group characteristics that may promote intolerance.

62. Raising awareness of the harm caused by discrimination and negative stereotyping.

63. Reporting on different groups or communities and giving their members the opportunity to speak and to be heard in a way that promotes a better understanding of them, while at the same time reflecting the perspectives of those groups or communities.

59. Furthermore, voluntary professional codes of conduct for the media and journalists should reflect the principle of equality, and effective steps should be taken to promulgate and implement such codes.

IV. Conclusion

60. While the concept of freedom of expression has received systematic attention in international human rights law and in many national legislations, its practical application and recognition is not fully respected by all countries worldwide. At the same time, international human rights standards on the prohibition of incitement to national, racial or religious hatred still need to be integrated into domestic legislation and policies in many parts of the world. This explains both the objective difficulty and political sensitivity of defining this concept in a manner that respects the freedom of expression.

61. The preceding conclusions and recommendations are steps towards addressing these challenges. It is hoped that they will boost both national efforts and international cooperation in this area.

Chapter 4: Fair Trial

IACtHR, Case of Lori Berenson-Mejía v. Peru

Inter-American Court of Human Rights Case of Lori Berenson-Mejía v. Peru Judgment of November 25, 2004 (Merits, Reparations and Costs)

Facts

88(1) From 1980 to 1994 Peru experienced serious social upheaval as a result of terrorist acts.25

88(2) In 1992, Decree Laws Nos. 25,47526 and 25,65927 were issued, which defined the crimes of terrorism and treason, respectively.

88(3) When the facts of the instant case occurred, the body responsible for preventing, denouncing and combating terrorist activities and treason was DINCOTE, attached to the National Police.28

88(4) Both the investigation and the prosecution of cases of treason fell exclusively within the military jurisdiction,29 which applied a summary proceeding known as the "theater of operations," before "faceless" judges.30 Actions seeking judicial guarantees were not permitted.31

88(9) During the afternoon of November 30, 1995, Lori Berenson was observed by members of the National Police leaving the building located on Avenida Alameda del Corregidor, and "for this reason she was subjected to careful surveillance and, given her suspicious behavior, she was detained."44

88(10) The same November 30, 1995, Lori Berenson and Nancy Gloria Gilvonio Conde45 were detained in Lima and placed in the custody of the Peruvian police authorities.46 After her detention, Lori Berenson was transferred to the building located on Avenida Alameda del Corregidor, where the National Police carried out a police raid.47

88(11) The same day, during "anti-terrorist police raid […] ALACRAN 95,"48 members of DINCOTE entered the building located on Avenida Alameda del Corregidor. A group of individuals responded from inside with armed resistance. The confrontation lasted several hours;49 as a result, some people died and others were arrested.50

88(12) When Lori Berenson was detained, there was a state of emergency in force in the Department of Lima and in the Constitutional Province of Callao together with the suspension of the exercise of the rights established in Articles 9 (inviolability of a domicile), 11 (freedom of movement in national territory), 12 (freedom of association) and 24(f) (detention with a judicial order or by the police authorities in flagrante delicto) of Article 2 of the 1993 Constitution of Peru.51

88(13) On November 30, 1995, the Special Military Judge opened the preliminary investigation against Miguel Wenceslao Rincón Rincón et al. for the crime of treason.52 On December 1, 1995, the procedure was expanded to include Pacífico Abdiel Castrellón Santamaría, Lori Berenson, Manuel Rolando Serna Ponce and Nancy Gloria Gilvonio Conde, for the alleged crime of treason.53 The Special Military Judge ordered that "the preliminary

statements of the defendants" should be taken and also "other measures necessary to clarify the reported facts."54

88(15) The following steps were taken during the DINCOTE investigation; removal of corpses;57 detentions;58 legal medicine examinations;59 personal60 and house61 searches and reconstructions;62 seizures and freezing of assets;63 preliminary statements from those detained;64 and examination of the seized documentation, including expert reports, requests for police records65 and requisitions.66

88(19) The record of the domicile search of December 4, 1995, indicates, inter alia, that documents, cash, bills for the purchase of goods and services, rental contracts of the raided building, electrical appliances, home furnishings and "two uniforms […] apparently from the Peruvian Army […] wrapped up in a black bag" were found.71 At the time, Lori Berenson refused to sign the search record, "because it contained Articles that [did] not belong to her, such as the torn-up documents [and] the uniforms with accessories."72

88(21) On December 14 and 16, 1995, Lori Berenson made a "pre-trial statement" in the DINCOTE offices in the presence of the Army's Special Military Judge and her defense lawyer.74 In this statement, when referring, inter alia, to the record of the house search of December 4, 1995 (supra para. 88(19)), the alleged victim clarified that "the keys [and] the exact address of the [building located on Calle La Técnica] had been in the possession of D[INCOTE] since 8 p.m. on Thursday, November 30, [de 1995]."75 Regarding the Voter's Identity Card found in the building on Avenida Alameda del Corregidor (supra para. 88(17)), the alleged victim affirmed that she did not know why her photograph was "stuck in this forged identity card," and did not know where it had been found.76

88(23) On December 17, 1995, Lori Berenson's defense lawyer presented a brief in which he requested the Special Military Examining Judge to "waive competence" and forward the case to the "ordinary jurisdiction," because there had been an "inappropriate assessment of the figure of the crime of treason."78

88(27) The defense lawyer's access to the case file was hampered in the proceeding held in the military jurisdiction against Lori Berenson. The defense lawyer only had two hours to study it and prepare arguments;83 he was not allowed to speak freely and in private to his client;84 he was only allowed a few minutes for the oral defense;85 some of the proceedings in the military criminal trial were not notified to the defense lawyer;86 and he had difficulty in accessing the evidence and contesting it.87

88(28) On January 8, 1996, the Peruvian Police presented Lori Berenson to the media, and she was not given the opportunity to consult her defense lawyer.88

88(29) The video of the presentation to the media of January 8, 1996, was offered by the Prosecutor of the Special Military Court as evidence "that confirm[ed] without doubt, [the alleged victim's] express acknowledgement of her"membership" in a subversive group.89 The alleged victim's defense lawyer contested this presentation, because he considered it "an open violation of procedural norms."90

88(30) On January 11, 1996, the Special Military Court delivered judgment (hereinafter "judgment of January 11, 1996"),91 in which it considered that it had been proved, inter alia, that the alleged victim:

88(30)(a) Was a "member of M[RTA] and a leader of the said group," and that her participation in subversive activities had been ratified;

88(30)(b) Had passed herself off as a "correspondent" of the newspapers Modern Times and Third World Viewpoint in order to have free access to the Congress of the Republic of Peru;

88(30)(c) Had provided information for "planning a terrorist attack against the Congress of the Republic";

88(30)(d) Had purchased various "electrical devices and computer equipment for the terrorist organization" with money provided by the co-defendant;

88(30)(e) "Had leased the building on Avenida La Alameda del Corregidor […] and acquired a Nissan truck";

88(30)(f) "Was in contact with foreign terrorist criminals who trafficked in arms";

88(30)(g) "A Voter's Identity Card with her photograph and stamps in the name of Ana Gión Mansini Flores was seized from her";

88(30)(h) She lived in the building located on Avenida Alameda del Corregidor;

88(30)(i) She took part in the "importation of the weapons that were taken […] to the La Molina building";

88(30)(j) "She prepared and distributed food and gave talks to terrorist criminals from the M[RTA] Armed Unit";

88(30)(k) She leased an apartment on "Calle La Técnica," from where documentation of a subversive nature was seized and also uniforms and military supplies" and "the co-defendant, Nancy Gloria Gilvonio Conde, visited [this apartment] and stayed overnight on several occasions"; and

88(30)(l) She "demonstrated her affiliation and membership in the M[RTA] terrorist organization publicly, when she [was] presented to the media, as is seen in the video in the case file."

88(31) The judgment of January 11, 1996, sentenced the alleged victim "to LIFE IMPRISONMENT, as perpetrator of the crime of treason against the Peruvian State."92

88(33) On January 30, 1996, the Army's Special Military Court, whose members were unidentified, delivered judgment, in which it:

Declare[d] inadmissible the objection on jurisdiction filed by the defense lawyer of Lori Helene BERENSON MEJIA [… and] confirm[ed][the judgment handed down by the Army's Special Military Judge [on January 11, 1996 …] which sentence[d] Lori Helene

BERENSON MEJIA to LIFE IMPRISONMENT, […] as perpetrator of the crime of treason[.]94

GA Eventually she was sent to the ordinary civilian jurisdiction on appeal from the military tribunals. What follows refers to the civilian jurisdiction.

88(57) On March 14, 2001, the alleged victim's defense lawyer offered as evidence: a video of the presentation of Lori Berenson to the press and media on January 8, 1996, in which she was introduced as "A MEMBER OF THE M[RTA] TERRORIST MOVEMENT"; and a video of the visual inspection of the building located on Avenida Alameda del Corregidor on October 20, 2000, and requested that an official letter be addressed "to the Supreme Council of Military Justice requesting it to forward the original of the case file for treason against [Lori Berenson,] in order to verify that the trial complied with the norms of due process of law and to examine the proceedings of the military court, from a judicial perspective."164

88(68) In relation to the applicable penalty, the National Terrorism Chamber indicated that, bearing in mind "the gravity of the results of her act of collaboration (armed confrontation, three deaths and hostage-taking); taking into account, nevertheless, that she did not participate in any armed or similar activity, […] the penalty to be imposed should be the lowest possible established in the norm, which was reasonable, despite its length."191

88(69) The judgment handed down by the National Terrorism Chamber on June 20, 2001, decided that for the "reasons stated, the aspects relating to the facts and the penalty having been described and voted on, and with the moral integrity authorized by Article 283 of the Code of Criminal Procedure," it ruled:

CONVICTING: LORI HELENE BERENSON MEJÍA, as perpetrator of the crime of terrorism, characterized by acts of collaboration against the State (described and sanctioned in paragraphs (a) and (b) of Article 4 of Decree Law 25,475), to TWENTY YEARS' IMPRISONMENT […] ESTABLISH[ING]: in one hundred thousand new soles the amount corresponding to the civil reparation that the defendant must pay to the Peruvian State; and, ABSOLVING LORI HELENE BERENSON MEJÍA from the charge of committing the crime of terrorism, characterized by acts of collaboration (referred to in paragraphs (d) and (f) of Article 4 of Decree Law 25,475)[…]

GA this means she is found guilty of cooperation with terrorism, not per-se terrorism. This is still within the scope of law against terrorism and thus has a 20 years sentence, which is about the maximum you see in the region

88(71) On February 13, 2002, the Supreme Court of Justice of Peru, when examining the alleged victim's degree of participation, stated:

The defendant did not have functional control over the act, which is an element that defines the conduct of co-perpetrators. Consequently, the defendant should be considered a secondary accomplice or accessory under paragraph 2 of Article 28 of the Penal Code, since her collaboration consisted in causal support, without which it would also have been possible to meet the requirements of that type of crime, and this should be considered an extenuating circumstance pursuant to the final part of this provision.194

88(72) Finally, the Supreme Court of Justice of Peru declared that "IT WOULD NOT ANNUL the appealed judgment of June 20, 2001, CONVICT[ING] LORI HELENE BERENSON MEJÍA as perpetrator of the crime of terrorism against the State characterized by acts of collaboration, described in paragraph (a) and (b) of Article 4 of Decree Law 25,475, to TWENTY YEARS' IMPRISONMENT […]"195 (The highlighting appears in the original).

The Court's finding

ARTICLE 9 OF THE AMERICAN CONVENTION IN RELATION TO ARTICLE 1(1) THEREOF (FREEDOM FROM EX POST FACTO LAWS)

The relevant Peruvian legislation in this case establishes different categories of crime, such as: terrorism,230 treason,231 and collaboration with terrorism.232 In turn, the latter has various manifestations. The Inter-American Court has noted that the definition of the crime of treason is incompatible with the American Convention.233 This category of crime was not considered as regards Lori Berenson in the ordinary criminal proceeding (supra para. 88(69)); nor was the crime of terrorism applied in that trial. However, some forms of collaboration with terrorism were invoked and applied, and the sentence handed down was based on them. According to Peruvian legislation, collaboration does not constitute a form of participation in terrorism, but rather, it is an autonomous crime committed by anyone who carries out specific acts which support terrorist activities. Evidently, the assessment of the existence, when applicable, of acts of collaboration, must be made in relation to the definition of terrorism. In the Court's opinion, the definition of the crime of collaboration with terrorism does not have the same defects that, at one time, were observed with regard to the crime of treason. This Court does not consider that these categories of crime are incompatible with the provisions of Article 9 of the American Convention.

ARTICLE 8 OF THE AMERICAN CONVENTION IN RELATION TO ARTICLE 1(1) THEREOF (RIGHT TO A FAIR TRIAL)

A. A competent, independent and impartial judge

a) Criminal proceeding in the military jurisdiction

Article 173 of the 1993 Constitution of Peru established that:

In cases of crimes committed in the course of duty, members of the Armed Forces and the National Police are subject to the respective jurisdiction and to the Code of Military Justice. The provisions of the latter are not applicable to civilians, except in the case of crimes of treason and terrorism determined by law. The cassation referred to in Article 141 is only applicable when the death penalty has been imposed.

Those who violate the norms of obligatory military service are also subject to the Code of Military Justice.

When examining the crime of treason, this Court noted that Decree Law No. 25,744 of September 21, 1992, referring to trials for this crime, granted DINCOTE competence to investigate, and determined that the trial would be held before military courts, even if the

crime had been committed by civilians, under a very summary proceeding "in the theater of operations," as established in the Code of Military Justice.238

It should be indicated, as in other cases, that the military jurisdiction is established to keep order and discipline among the armed forces. Accordingly, its application is reserved to soldiers who have committed a crime or fault in the exercise of their functions and under certain circumstances.239 Article 282 of the 1979 Peruvian Constitution regulated the military jurisdiction in this way; but this situation was modified by Article 173 of the 1993 Constitution (supra para. 139). The transfer of competences from the ordinary courts to the military courts and the subsequent trying of civilians for the crime of treason in the latter courts, as in the instant case, excludes a competent, independent, and impartial tribunal, previously established by law from hearing these cases. The Court has said that "[w]hen the military courts assume jurisdiction over a matter that should be heard by the civil courts, the right to a competent, independent, and impartial tribunal, previously established by law is violated as is, a fortiori, due process"; this, in turn, is intimately linked to the right to access to justice itself.240

This Court has established that:

Under the democratic rule of law, the military criminal jurisdiction should have a very restricted and exceptional scope and be designed to protect special juridical interests associated with the functions assigned by law to the military forces. Hence, it should only try military personnel for committing crimes or misdemeanors that, due to their nature, harm the juridical interests of the military system.241

The right to be judged by civil courts under legally established procedures constitutes a basic principle of due process of law. The State should not create "courts that do not apply duly established procedural norms in substitution of the jurisdiction that would normally correspond to the civil courts."242

This Court has also stated that due process "entails the intervention of an independent and impartial judicial organ, having the power to determine the lawfulness of measures adopted in a state of emergency."243

In a case such as this one, the impartiality of the judge is affected by the fact that the armed forces have the double function of combating the subversive groups with military means, and judging and imposing penalties on the members of these groups. On another occasion, this Court has indicated that:

Under the Statute of Military Justice, members of the Supreme Council of Military Justice, the highest body in the military judiciary, are appointed by the minister of the pertinent sector. Moreover, members of the Supreme Court of Military Justice decide who among their subordinates will be promoted and what incentives will be offered to whom; they also assign their functions. This alone is enough to call the independence of the military judges into question.244

Consequently, the Court considers that the military tribunals that tried the alleged victim for treason did not meet the requirements implicit in the guarantees of independence and

impartiality that Article 8(1) of the American Convention recognizes as essentials of due process of law.245

In addition, because judges who preside over the treason trials are "faceless," defendants have no way of knowing the identity of their judges and, hence, of assessing their competence. Compounding the problem is the fact that the law does not allow these judges to be challenged.246

Furthermore, after declaring that the special appeal for review of res judicata was admissible, the Supreme Council of Military Justice transferred the main case records to the Supreme Military Tribunal, which delivered judgment on August 24, 2000 (supra para. 88(44)).

In this regard, the Court has stated that, in doing so:

[…] the military tribunal acted ultra vires[,] usurped jurisdiction and arrogated to itself the powers of the regular judicial organs, inasmuch as Decree-Law 25,475 (crime of terrorism) stipulates that the aforesaid crime is to be investigated by the National Police and the Ministry of the Interior, and tried in the civil courts. Further, the regular judicial authorities were the only organs with the power to order the detention and imprisonment of the person accused.247

In view of the above, the Court declares that the State violated Article 8(1) of the Convention, in relation to Article 1(1) thereof, by trying the alleged victim in the military jurisdiction for the crime of treason.

B. Presumption of innocence

a) Criminal proceeding in the military jurisdiction

During the military proceeding, DINCOTE exhibited Lori Berenson before the media as the perpetrator of the crime of treason, when she had not been duly prosecuted and convicted (supra para. 88(28)).

The European Court has stated that:

[the right to] the presumption of innocence may be infringed not only by a judge or court but also by other public authorities.

[…]

Article 6 paragraph 2 (of the European Convention) cannot therefore prevent the authorities from informing the public about criminal investigations in progress, but it requires that they do so with all the discretion and circumspection necessary if the presumption of innocence is to be respected.250

The right to presumption of innocence, as it is understood from Article 8(2) of the Convention, requires that the State should not convict an individual informally or emit an opinion in public that contributes to forming public opinion, while the criminal responsibility of that individual has not been proved.251

Consequently, the Court considers that the State violated Article 8(2) of the American Convention, in relation to Article 1(1) thereof, to the detriment of Lori Berenson, in the criminal proceeding in the military jurisdiction.

b) Criminal proceeding in the ordinary jurisdiction

The alleged victim's representatives stated that, during the processing of the civil trial, the right to presumption of innocence had not been respected (supra paras. 130(2)(d))

In this regard, the Court considers that, there are elements in the body of evidence before the Court, which prove that the right to presumption of innocence was respected in the processing of the proceeding in the ordinary criminal jurisdiction, in the pre-trial investigation and during the oral proceeding.

Consequently, this Court considers that it has not been proven that the State violated Article 8(2) of the Convention to the detriment of the alleged victim in relation to the trial against her in the ordinary jurisdiction

C. Public proceeding

Article 8(5) of the Convention establishes that:

Criminal proceedings shall be public, except insofar as may be necessary to protect the interests of justice.

a) Criminal proceeding in the military jurisdiction

The Court considers that it has been proved that military trials of civilians who had allegedly committed crimes of treason were held with "faceless" judges and prosecutors, and were subject to restrictions which meant that they violated due process. Such restrictions included the fact that these trials were held on military premises, to which the public did not have access. The trial proceedings, including the hearing on merits, were held in these circumstances of secrecy and isolation. Evidently the right to the public nature of the proceeding embodied in the Convention was not respected.265

In view of the above, the Court considers that the State violated Article 8(5) of the Convention to the detriment of Lori Berenson, in relation to Article 1(1) thereof, in the criminal proceeding in the military jurisdiction

Human Rights Committee, Dimitry Leonudovich Gridin v. Russian Federation

1. The author of the communication

The author of the communication is Mr. Dimitriy Leonodovich Gridin, a Russian student, born on 4 March 1968. He claims to be a victim of a violation by Russia of articles 14, paragraphs 1, 2, 3(b), (e) and (g). The case also appears to raise issues under articles 9 and 10 of the Covenant. He is represented by Mr. A. Manov of the Centre for Assistance to the International Protection.

The facts as submitted by the author

2. The author was arrested on 25 November 1989 on charges of attempted rape and murder of one Ms. Zykina. Once in detention, he was also charged with six other assaults. On 3 October 1990, the Chelyabinsk Regional Court found him guilty of the charges and sentenced him to death. His appeal to the Supreme Court was rejected on 21 June 1991. Further appeals were rejected on 21 October 1991 and 1 July 1992. Appeals to the Prosecutor's Office were likewise rejected, respectively on 12 December 1991, 16 January and 11 March 1992. On 3 December 1993, the author's death sentence was commuted to life imprisonment.

The complaint

3.1 The author alleges that a warrant for his arrest was only issued on 29 November 1989, over three days after he was detained. He further states that he was denied access to a lawyer, despite his requests, until 6 December 1989.

3.2 He claims that he was interrogated during 48 hours, without being given any food and without being allowed to sleep. His glasses had also been taken away from him and he could not see much because of his shortsightedness. During the interrogation, he was beaten.[4] He states that he was told that his family was letting him down and that the only way to avoid the death penalty would be to confess. He then confessed to the six charges as well as to three other charges.

3.4 The author claims that the handling of the evidence violated the Russian Code of Criminal Procedure. It is said that the author's clothes were transported to the laboratory in the same bag as the victims', and that therefore no value can be attached to the outcome of the examination that fibers of his clothes were found on the victims'. It is also claimed that there were irregularities in the identification process. The author alleges that he was led through the hall where the victims were sitting on the day of the identification. When one of the victims failed to point him out as the perpetrator, allegedly the investigator took her hand and pointed to the author. It is further submitted that the description by the victims of their attacker completely differs with the author's appearance.

3.5 The author claims that his right to presumption of innocence was violated. Between 26 and 30 November 1989 radio stations and newspapers announced that the author was the feared "lift-boy" murderer, who had raped several girls and murdered three of them. Also, on 9 December 1989, the head of the police announced that he was sure that the author was the murderer, and this was broadcasted on television. Furthermore, the author alleges that the investigator pronounced the author guilty in public meetings before the court hearing and called upon the public to send prosecutors. As a consequence, the author states that at his trial ten social prosecutors were present whereas he was defended by one social defender[5],

[4] It is said that medical expert opinions of 18 January and 30 August confirm this.

[5] The author refers to social prosecutors and social defenders as provided for under the Russian system, who act in addition to the public prosecutor and defence counsel.

[6] From the file it appears that two social defenders were available to the author and that it was one of these who was forced to leave the court room.

who was later forced to leave the court room.[6] According to the author, the court room was crowded with people who were screaming that the author should be sentenced to death. He also states that the social prosecutors and the victims were threatening the witnesses and the defense and that the judge did not do anything to stop this. Because of this, there was no proper opportunity to examine the main witnesses in court.

3.6 At the first day of the hearing, the author pleaded not guilty.[7] He was then placed in a lock-up. He complains that he was never allowed to discuss things with his lawyer in private.

3.7 He also complains that the witnesses who could have confirmed his alibi were not examined in court. Moreover, some statements given during the preliminary examination disappeared from the record.

3.8 It is further claimed that in violation of Russian law, the records of the trial were only compiled and signed on 25 February 1991, whereas the hearing finished on 3 October 1990. Three witnesses filed complaints to the Supreme Court, because of discrepancies between the record and what they had in fact testified.

3.9 The above is said to constitute violations of article 14, paragraphs 1, 2, 3(b), (e) and (g).

The State party's submission and the author's comments thereon

4.2 In a further submission, dated 26 February 1999, the State party addresses the merits of the communication. In this respect it submits that in order to respond to the Committee's request the Russian Federation Procurator's Office reviewed the author's case. It verified the statements of the victims and witnesses, the inspection of the place where the incidents took place, and the conditions under which the author was identified. In this respect, the State party contends that the argument that the author was innocent of the charges and that the investigation methods used violated his rights to a defence, as well as the issue of public pressure were all reviewed by the Supreme Court in its capacity as an Appeal Court, which considered them to be unfounded.

4.3 The State party contends that neither the author nor his lawyer ever raised the issue of police coercion before the courts. It further contends that the author was represented by a lawyer throughout the preliminary investigation, during which the author provided detailed information in respect of the crimes. According to the State party the author only retracted from these statements in court due to pressure placed on him by members of his family.

4.4 With respect to the allegation that the author was unable to read the statements since he was denied reading glasses, the State party notes that from the court records the author stated that he could read at a distance of 10 to 15 centimetres without glasses and furthermore, the investigators provided the author with glasses. Consequently, the State party rejects any violation of the Covenant in this respect.

4.5 Finally, the State party states that Mr. Gridin was questioned in the presence of the defence lawyer who was assigned to him in accordance with the law. The State party notes

[7] From the file it appears that the author pleaded not guilty of all charges except for the assault on Ms Zykina.

that Mr. Gridin was arrested on 25 November 1989 and on 1 December 1989 his mother V.V. Gridina, wrote requesting that the defence lawyer should be invited to participate in the investigations. On 5 December 1989 an agreement was concluded between Gridin's relatives and the lawyer who, from that time, was allowed to participate.

5. The author's counsel in a letter dated 14 September 1999, reiterates the claims of the original submission and points out that by the State party's own admission the author was unrepresented from 25 November to 1 December 1989.

Issues and proceedings before the Committee

6.1 Before considering any claim contained in a communication, the Human Rights Committee must, in accordance with rule 87 of its rules of procedure, decide whether or not it is admissible under the Optional Protocol to the Covenant.

6.2 The committee has ascertained as required under article 5, paragraph 2, (a) of the Optional Protocol that the same matter is not being examined under another procedure of international investigation or settlement.

6.3 The Committee observes that the State party has objected to the admissibility of the communication, since the communication had been submitted by counsel and not by the author himself. The Committee, points out that according to its rules and practice the author may be represented by counsel and it is not therefore precluded form examining the merits of the communication. The Committee rejects the States party's contention that the communication should be declared inadmissible in this respect.

6.4 With respect to the allegations of ill-treatment and police coercion during the investigation period including denying the author the use of reading glasses, it appears from the material before it that most of these allegations were not raised before the trial court. All the arguments were raised on appeal but the Supreme Court found them to be unsubstantiated. In these circumstances, the Committee finds that the author has not substantiated a claim within the meaning of article 2 of the Optional Protocol.

6.5 With regard to the allegation that his lawyer was not informed of the dates of the court actions which dealt with medical issues the Committee notes that this matter was reviewed by the Supreme Court which found it to be in accordance with law and consequently considers that this claim remains unsubstantiated for purposes of admissibility.

7. The Committee declares the remaining claims admissible, and proceeds with the examination of the merits of all admissible claims, in the light of the information made available to it by the parties, as required by article 5 paragraph 1, of the Optional Protocol.

8.1 With respect to the allegation that the author was arrested without a warrant and that this was only issued more than three days after the arrest, in contravention of national legislation which stipulates that a warrant must be issued within 72 hours of arrest, the Committee notes that this matter has not been addressed by the State party. In this regard, the Committee considers that in the circumstances of the present case the author was deprived of his liberty in violation of a procedure as established by law and consequently it finds that the facts before it disclose a violation of article 9, paragraph 1.

8.2 With regard to the author's claim that he was denied a fair trial in violation of article 14, paragraph 1, in particular because of the failure by the trial court to control the hostile atmosphere and pressure created by the public in the court room, which made it impossible for defence counsel to properly cross-examine the witnesses and present his defence, the Committee notes that the Supreme Court referred to this issue, but failed to specifically address it when it heard the author's appeal. The Committee considers that the conduct of the trial, as described above, violated the author's right to a fair trial within the meaning of article 14, paragraph 1.

8.3 With regard to the allegation of a violation of the presumption of innocence, including public statements made by high ranking law enforcement officials portraying the author as guilty which were given wide media coverage, the Committee notes that the Supreme Court referred to the issue, but failed to specifically deal with it when it heard the author's appeal. The Committee refers to its General Comment No 13 on article 14, where it has stated that: "It is, therefore, a duty for all public authorities to refrain from prejudging the outcome of a trial". In the present case the Committee considers that the authorities failed to exercise the restraint that article 14, paragraph 2, requires of them and that the author's rights were thus violated.

8.4 With regard to the remaining allegations contained in paragraphs 3.4 and 3.7 supra, the Committee notes that the Supreme Court addressed the specific allegations by the author that, the evidence was tampered with, that he was not properly identified by the witnesses and that there were discrepancies between the trial and its records. However, the rejection by the court of these specific allegations did not address the fairness of the trial as a whole and therefore does not affect the Committee's finding that article 14, paragraph 1, of the Covenant was violated.

8.5 With respect to the allegation that the author did not have a lawyer available to him for the first 5 days after he was arrested, the Committee notes that the State party has responded that the author was represented in accordance with the law. It has not, however, refuted the author's claim that he requested a lawyer soon after his detention and that his request was ignored. Neither has it refuted the author's claim that he was interrogated without the benefit of consulting a lawyer after he repeatedly requested such a consultation. The Committee finds that denying the author access to legal counsel after he had requested such access and interrogating him during that time constitutes a violation of the author's rights under article 14, paragraph 3 (b). Furthermore, the Committee considers that the fact that the author was unable to consult with his lawyer in private, allegation which has not been refuted by the State party, also constitutes a violation of article 14, paragraph 3 (b) of the Covenant.

9. The Human Rights Committee, acting under article 5, paragraph 4, of the Optional Protocol to the International Covenant on Civil and Political Rights, is of the view that the facts before it disclose a violation of article 14, paragraphs 2 and 3(b), of the Covenant.

10. In accordance with article 2, paragraph 3 (a), of the Covenant, the State party is under an obligation to provide Mr. Gridin with an effective remedy, entailing compensation

and his immediate release. The State party is under an obligation to ensure that similar violations do not occur in the future.

11. Bearing in mind that, by becoming a party to the Optional Protocol, the State party has recognized the competence of the Committee to determine whether there has been a violation of the Covenant or not and that, pursuant to article 2 of the Covenant, the State party has undertaken to ensure to all individuals within its territory and subject to its jurisdiction the rights recognized in the Covenant, and to provide an effective and enforceable remedy in case a violation has been established, the Committee wishes to receive from the State party, within 90 days, information about the measures taken to give effect to the Committee's Views.

Chapter 5: Non-Discrimination

ECHR, Case of Eweida and Others vs. the United Kingdom

THE FACTS

Eweida

9. The first applicant, who spent the first eighteen years of her life in Egypt, is a practising Coptic Christian. From 1999 she worked as a member of the check-in staff for British Airways Plc, a private company.

10. British Airways required all their staff in contact with the public to wear a uniform. Until 2004 the uniform for women included a high-necked blouse. In 2004 British Airways introduced a new uniform, which included an open-necked blouse for women, to be worn with a cravat that could be tucked in or tied loosely at the neck. A wearer guide was produced, which set out detailed rules about every aspect of the uniform. It included the following passage, in a section entitled "Female Accessories":

"Any accessory or clothing item that the employee is required to have for mandatory religious reasons should at all times be covered up by the uniform. If however this is impossible to do given the nature of the item and the way it is to be worn, then approval is required through local management as to the suitability of the design to ensure compliance with the uniform standards, unless such approval is already contained in the uniform guidelines. … NB No other items are acceptable to be worn with the uniform. You will be required to remove any item of jewellery that does not conform to the above regulations."

11. When an employee reported for work wearing an item which did not comply with the uniform code, it was British Airways' practice to ask the employee to remove the item in question or, if necessary, to return home to change clothes. The time spent by the employee in putting right the uniform would be deducted from his or her wages. Of the items of clothing considered by British Airways to be mandatory in certain religions and which could not be concealed under the uniform, authorisation was given to male Sikh employees to wear a dark blue or white turban and to display the Sikh bracelet in summer if they obtained authorisation to wear a short-sleeved shirt. Female Muslim ground staff members were authorised to wear hijab (headscarves) in British Airways approved colours.

12. Until 20 May 2006 Ms Eweida wore a cross at work concealed under her clothing. On 20 May 2006 she decided to start wearing the cross openly, as a sign of her commitment to her faith. When she arrived at work that day her manager asked her to remove the cross and chain or conceal them under the cravat. Ms Eweida initially refused, but eventually agreed to comply with the instruction after discussing the matter with a senior manager. On 7 August 2006 Ms Eweida again attended work with the cross visible and again agreed to comply with the uniform code only reluctantly, having been warned that if she refused she would be sent home unpaid. On 20 September 2006 she refused to conceal or remove the cross and was sent home without pay until such time as she chose to comply with her contractual obligation to follow the uniform code. On

23 October 2006 she was offered administrative work without customer contact, which would not have required her to wear a uniform, but she rejected this offer.

Chaplin

18. The second applicant is also a practising Christian. She has worn a cross visibly on a chain around her neck since her confirmation in 1971, as an expression of her belief. She believes that to remove the cross would be a violation of her faith.

19. Ms Chaplin qualified as a nurse in 1981 and was employed by the Royal Devon and Exeter NHS Foundation Trust, a State hospital, from April 1989 to July 2010, with an exceptional employment history. At the time of the events in question she worked on a geriatric ward. The hospital had a uniform policy, based on guidance from the Department of Health. The hospital's uniform policy provided in paragraph 5.1.5 that "If worn, jewellery must be discreet" and in paragraph 5.3.6:

"5.3.6 To minimise the risk of cross infection will be [sic] keep jewellery to a minimum (see 5.1.11). That is:

One plain smooth ring which will not hinder hand hygiene,

One pair of plain discreet earrings.

No necklaces will be worn to reduce the risk of injury when handling patients.

Facial piercing if present should be removed or covered."

Paragraph 5.1.11 provided:

"Any member of staff who wishes to wear particular types of clothes or jewellery for religious or cultural reasons must raise this with their line manager who will not unreasonably withhold approval."

There was evidence before the Employment Tribunal that, on health and safety grounds, another Christian nurse had been requested to remove a cross and chain and two Sikh nurses had been informed that they could not wear a bangle or kirpan, and that they had complied with these instructions. Two female Muslim doctors were given permission to wear close-fitting "sports" hijab, resembling a balaclava helmet.

20. In June 2007 new uniforms were introduced at the hospital, which for the first time included a V-necked tunic for nurses. In June 2009 Ms Chaplin's manager requested her to remove her "necklace". Ms Chaplin insisted that the cross was a religious symbol and sought approval to wear it. This was refused, on the ground that the chain and cross might cause injury if an elderly patient pulled on it. Ms Chaplin then proposed wearing the cross on a chain secured with magnetic catches, which would immediately break apart if pulled by a patient. However, the health authority rejected this on the ground that the cross itself would still create a risk to health and safety if it were able to swing free; for example, it could come into contact with open wounds. Finally, it was suggested that she could secure her cross and chain to the lanyard which held her identity badge. All staff were required to wear an identity badge clipped to a pocket

or on a lanyard. However, they were also required to remove the badge and lanyard when performing close clinical duties and, for this reason, the applicant rejected this suggestion also. In November 2009 Ms Chaplin was moved to a non-nursing temporary position which ceased to exist in July
2010.

21. She applied to the Employment Tribunal in November 2009, complaining of both direct and indirect discrimination on religious grounds. In its judgment of 21 May 2010, the Employment Tribunal held that there was no direct discrimination since the hospital's stance was based on health and safety rather than religious grounds. As regards the complaint of indirect discrimination, it held that there was no evidence that "persons", other than the applicant, had been put at particular disadvantage. Moreover, the hospital's response to Ms Chaplin's request to wear the crucifix visibly had been proportionate.

Ladele

23. The third applicant is a Christian. She holds the view that marriage is the union of one man and one woman for life, and sincerely believes that same-sex civil partnerships are contrary to God's law.

24. Ms Ladele was employed by the London Borough of Islington, a local public authority, from 1992. Islington had a "Dignity for All" equality and diversity policy, which stated inter alia:

"Islington is proud of its diversity and the council will challenge discrimination in all its forms. 'Dignity for all' should be the experience of Islington staff, residents and service users, regardless of the age, gender, disability, faith, race, sexuality, nationality, income or health status. …

The council will promote community cohesion and equality for all groups but will especially target discrimination based on age, disability, gender, race, religion and sexuality. …

In general, Islington will:

(a) Promote community cohesion by promoting shared community values and understanding, underpinned by equality, respect and dignity for all. …

It is the council's policy that everyone should be treated fairly and without discrimination. Islington aims to ensure that:

Staff experience fairness and equity of treatment in the workplace Customers receive fair and equal access to council services Staff and customers are treated with dignity and respect The council will actively remove discriminatory barriers that can prevent people from obtaining the employment opportunities and services to which they are entitled. The council will not tolerate processes, attitudes and behaviour that amount to discrimination, including harassment, victimisation and bullying through prejudice, ignorance, thoughtlessness and stereotyping. …

All employees are expected to promote these values at all times and to work within the policy. Employees found to be in breach of this policy may face disciplinary action."

25. In 2002 Ms Ladele became a registrar of births, deaths and marriages. Although she was paid by the local authority and had a duty to abide by its policies, she was not employed by it but instead held office under the aegis of the Registrar General. The Civil Partnership Act 2004 came into force in the United Kingdom on 5 December 2005. The Act provided for the legal registration of civil partnerships between two people of the same sex, and accorded to them rights and obligations equivalent to those of a married couple. In December 2005 Islington decided to designate all existing registrars of births, deaths and marriages as civil partnership registrars. It was not required to do this; the legislation simply required it to ensure that there was a sufficient number of civil partnership registrars for the area to carry out that function. Some other United Kingdom local authorities took a different approach, and allowed registrars with a sincerely held religious objection to the formation of civil partnerships to opt out of designation as civil partnership registrars.

26. Initially, Ms Ladele was permitted to make informal arrangements with colleagues to exchange work so that she did not have to conduct civil partnership ceremonies. In March 2006, however, two colleagues complained that her refusal to carry out such duties was discriminatory. In a letter dated 1 April 2006 Ms Ladele was informed that, in the view of the local authority, refusing to conduct civil partnerships could put her in breach of the Code of Conduct and the equality policy. She was requested to confirm in writing that she would henceforth officiate at civil partnership ceremonies. The third applicant refused to agree, and requested that the local authority make arrangements to accommodate her beliefs. By May 2007 the atmosphere in the office had deteriorated. Ms Ladele's refusal to carry out civil partnerships was causing rota difficulties and putting a burden on others and there had been complaints from homosexual colleagues that they felt victimised. In May 2007 the local authority commenced a preliminary investigation, which concluded in July 2007 with a recommendation that a formal disciplinary complaint be brought against Ms Ladele that, by refusing to carry out civil partnerships on the ground of the sexual orientation of the parties, she had failed to comply with the local authority's Code of Conduct and equality and diversity policy. A disciplinary hearing took place on 16 August 2007. Following the hearing, Ms Ladele was asked to sign a new job description requiring her to carry out straightforward signings of the civil partnership register and administrative work in connection with civil partnerships, but with no requirement to conduct ceremonies.

27. [The applicant's application to the Employment Tribunal and subsequent appeals are described in paragraphs 27-30 of the judgment.]

McFarlane

31. The fourth applicant is a practising Christian, and was formerly an elder of a large multicultural church in Bristol. He holds a deep and genuine belief that the Bible states

that homosexual activity is sinful and that he should do nothing which directly endorses such activity.

32. Relate Avon Limited ("Relate") is part of the Relate Federation, a national private organisation which provides a confidential sex therapy and relationship counselling service. Relate and its counsellors are members of the British Association for Sexual and Relationship Therapy (BASRT). That Association has a Code of Ethics and Principles of Good Practice which Relate and its counsellors abide by. Paragraphs 18 and 19 of the Code provide as follows:

"Recognising the right to self-determination, for example:

18. Respecting the autonomy and ultimate right to self-determination of clients and of others with whom clients may be involved. It is not appropriate for the therapist to impose a particular set of standards, values or ideals upon clients. The therapist must recognise and work in ways that respect the value and dignity of clients (and colleagues) with due regard to issues such as religion, race, gender, age, beliefs, sexual orientation and disability.

Awareness of one's own prejudices, for example:

19. The therapist must be aware of his or her own prejudices and avoid discrimination, for example on grounds of religion, race, gender, age, beliefs, sexual orientation, disability. The therapist has a responsibility to be aware of his or her own issues of prejudice and stereotyping and particularly to consider ways in which this may be affecting the therapeutic relationship."

Relate also has an Equal Opportunities Policy which emphasises a positive duty to achieve equality. Part of it reads:

"Relate Avon is committed to ensuring that no person – trustees, staff, volunteers, counsellors and clients, receives less favourable treatment on the basis of personal or group characteristics, such as race, colour, age, culture, medical condition, sexual orientation, marital status, disability [or] socio-economic grouping. Relate Avon is not only committed to the letter of the law, but also to a positive policy that will achieve the objective of ensuring equality of opportunity for all those who work at the Centre (whatever their capacity), and all our clients."

33. Mr McFarlane worked for Relate as a counsellor from May 2003 until March 2008. He initially had some concerns about providing counselling services to same-sex couples, but following discussions with his supervisor, he accepted that simply counselling a homosexual couple did not involve endorsement of such a relationship and he was therefore prepared to continue. He subsequently provided counselling services to two lesbian couples without any problem, although in neither case did any purely sexual issues arise.

34. In 2007 Mr McFarlane commenced Relate's post-graduate diploma in psycho-sexual therapy. By the autumn of that year there was a perception within Relate that he was

unwilling to work on sexual issues with homosexual couples. In response to these concerns, Relate's General Manager, a Mr B, met with Mr McFarlane in October 2007. The applicant confirmed he had difficulty in reconciling working

with couples on same-sex sexual practices and his duty to follow the teaching of the Bible. Mr B expressed concern that it would not be possible to filter clients, to prevent Mr McFarlane from having to provide psycho-sexual therapy to lesbian, gay or bisexual couples.

35. On 5 December 2007 Mr B received a letter from other therapists expressing concerns that an unnamed counsellor was unwilling, on religious grounds, to work with gay, lesbian and bi-sexual clients. On 12 December 2007 Mr B wrote to Mr McFarlane stating that he understood that he had refused to work with same-sex couples on certain issues, and that he feared that this was discriminatory and contrary to Relate's Equal Opportunities Policies. He asked for written confirmation by 19 December 2007 that Mr McFarlane would continue to counsel same-sex couples in relationship counselling and psycho-sexual therapy, failing which he threatened disciplinary action. On 2 January 2008 Mr McFarlane responded by confirming that he had no reservations about counselling same-sex couples. His views on providing psycho-sexual therapy to same-sex couples were still evolving, since he had not yet been called upon to do this type of work. Mr B interpreted this as a refusal by Mr McFarlane to confirm that he would carry out psycho-sexual therapy work with same-sex couples and he therefore suspended him, pending a disciplinary investigation. At an investigatory meeting on 7 January 2008 the applicant acknowledged that there was a conflict between his religious beliefs and psycho-sexual therapy with same-sex couples, but said that if he were asked to do such work, then he would do so and if any problems arose then he would speak to his supervisor. Mr B understood by this that Mr McFarlane undertook to comply with Relate's policies, and he therefore halted the disciplinary investigation.

36. Following a telephone conversation with the fourth applicant, his supervisor contacted Mr B to express deep concern. She considered that Mr McFarlane was either confused over the issue of same-sex psycho- sexual therapy or was being dishonest. When these concerns were put to him, Mr McFarlane stated that his views had not changed since the earlier discussion and that any issue would be addressed as it arose. He was called to a further disciplinary meeting on 17 March 2008, at which he was asked whether he had changed his mind, but he simply replied that he had nothing further to add to what he had said on 7 January 2008.

37. On 18 March 2008 Mr B dismissed Mr McFarlane summarily for gross misconduct, having concluded that the applicant had said he would comply with Relate's policies and provide sexual counselling to same-sex couples without having any intention of doing so. He could therefore not be trusted to perform his role in compliance with the Equal Opportunities Policies. An appeal meeting took place on 28 April. The appeal was rejected on the basis that Mr B's lack of trust in Mr McFarlane to comply with the relevant policies was justified.

The Law

85. The Court recalls that Article 14 of the Convention has no independent existence, since it has effect solely in relation to the rights and freedoms safeguarded by the other substantive provisions of the Convention and its Protocols. However, the application of Article 14 does not presuppose a breach of one or more of such provisions and to this extent it is autonomous. For Article 14 to become applicable it suffices that the facts of a case fall within the ambit of another substantive provision of the Convention or its Protocols (see, for example, Thlimmenos v. Greece [GC], no. 34369/97, § 40, ECHR 2000-IV).

86. The Court has established in its case-law that only differences in treatment based on an identifiable characteristic, or "status", are capable of amounting to discrimination within the meaning of Article 14 (Carson and Others v. the United Kingdom [GC], no. 42184/05, § 61, ECHR 2010). "Religion" is specifically mentioned in the text of Article 14 as a prohibited ground of discrimination.

87. Generally, in order for an issue to arise under Article 14 there must be a difference in the treatment of persons in analogous, or relevantly similar, situations (Burden v. the United Kingdom [GC], no. 13378/05, § 60, ECHR 2008-). However, this is not the only facet of the prohibition of discrimination in Article 14. The right not to be discriminated against in the enjoyment of the rights guaranteed under the Convention is also violated when States, without an objective and reasonable justification, fail to treat differently persons whose situations are significantly different (Thlimmenos, cited above, § 44; see also D.H. and Others v. the Czech Republic [GC], no. 57325/00, § 175, ECHR 2007; Runkee and White v. the United Kingdom, nos. 42949/98 and 53134/99, § 35, 10 May 2007).

88. Such a difference of treatment between persons in relevantly similar positions - or a failure to treat differently persons in relevantly different situations - is discriminatory if it has no objective and reasonable justification; in other words, if it does not pursue a legitimate aim or if there is not a reasonable relationship of proportionality between the means employed and the aim sought to be realised. The Contracting State enjoys a margin of appreciation in assessing whether and to what extent differences in otherwise similar situations justify a different treatment (Burden, cited above, § 60). The scope of this margin will vary according to the circumstances, the subject-matter and the background (Carson and Others, cited above, § 61).

Eweida

89. It was not disputed in the proceedings before the domestic tribunals and this Court that Ms Eweida's insistence on wearing a cross visibly at work was motivated by her desire to bear witness to her Christian faith. Applying the principles set out above, the Court considers that Ms Eweida's behaviour was a manifestation of her religious belief, in the form of worship, practice and observance, and as such attracted the protection of Article 9.

90. Ms Eweida was employed by a private company, British Airways. On 20 September 2006 she was sent home from work because of her refusal to conceal her cross, in breach of the company's uniform code. Just over a month later she was offered an administrative post which would not have required her to wear a uniform. However, she chose not to accept this offer and instead remained at home without pay until 3 February 2007, when British Airways amended its rules on uniform and allowed her to display the cross.

91. The Court considers that the refusal by British Airways between September 2006 and February 2007 to allow the applicant to remain in her post while visibly wearing a cross amounted to an interference with her right to manifest her religion. Since the interference was not directly attributable to the State, the Court must examine whether in all the circumstances the State authorities complied with their positive obligation under Article 9; in other words, whether Ms Eweida's right freely to manifest her religion was sufficiently secured within the domestic legal order and whether a fair balance was struck between her rights and those of others.

92. In common with a large number of Contracting States (see paragraph 47 above), the United Kingdom does not have legal provisions specifically regulating the wearing of religious clothing and symbols in the workplace. Ms Eweida brought domestic proceedings for damages for direct and indirect discrimination contrary to regulation 3 of the 2003 Regulations (see paragraph 41 above). It was accepted before the Employment Tribunal that it had no jurisdiction to consider any separate or free-standing claim under Article 9 of the Convention. The applicant was able to invoke Article 9 before the Court of Appeal, although that court held that there had been no interference with her rights under Article 9. Nonetheless, while the examination of Ms Eweida's case by the domestic tribunals and court focused primarily on the complaint about discriminatory treatment, it is clear that the legitimacy of the uniform code and the proportionality of the measures taken by British Airways in respect of Ms Eweida were examined in detail. The Court does not, therefore, consider that the lack of specific protection under domestic law in itself meant that the applicant's right to manifest her religion by wearing a religious symbol at work was insufficiently protected.

93. When considering the proportionality of the steps taken by British Airways to enforce its uniform code, the national judges at each level agreed that the aim of the code was legitimate, namely to communicate a certain image of the company and to promote recognition of its brand and staff. The Employment Tribunal considered that the requirement to comply with the code was disproportionate, since it failed to distinguish an item worn as a religious symbol from a piece of jewellery worn purely for decorative reasons. This finding was reversed on appeal to the Court of Appeal, which found that British Airways had acted proportionately. In reaching this conclusion, the Court of Appeal referred to the facts of the case as established by the Employment Tribunal and, in particular, that the dress code had been in force for some years and had caused no known problem to the applicant or any other member of staff; that Ms Eweida lodged a formal grievance complaint but then decided to arrive at work displaying her cross,

without waiting for the results of the grievance procedure; that the issue was conscientiously addressed by British Airways once the complaint had been lodged, involving a consultation process and resulting in a relaxation of the dress code to permit the wearing of visible religious symbols; and that Ms Eweida was offered an administrative post on identical pay during this process and was in February 2007 reinstated in her old job.

94. It is clear, in the view of the Court, that these factors combined to mitigate the extent of the interference suffered by the applicant and must be taken into account. Moreover, in weighing the proportionality of the measures taken by a private company in respect of its employee, the national authorities, in particular the courts, operate within a margin of appreciation. Nonetheless, the Court has reached the conclusion in the present case that a fair balance was not struck. On one side of the scales was Ms Eweida's desire to manifest her religious belief. As previously noted, this is a fundamental right: because a healthy democratic society needs to tolerate and sustain pluralism and diversity; but also because of the value to an individual who has made religion a central tenet of his or her life to be able to communicate that belief to others. On the other side of the scales was the employer's wish to project a certain corporate image. The Court considers that, while this aim was undoubtedly legitimate, the domestic courts accorded it too much weight. Ms Eweida's cross was discreet and cannot have detracted from her professional appearance. There was no evidence that the wearing of other, previously authorised, items of religious clothing, such as turbans and hijabs, by other employees, had any negative impact on British Airways' brand or image. Moreover, the fact that the company was able to amend the uniform code to allow for the visible wearing of religious symbolic jewellery demonstrates that the earlier prohibition was not of crucial importance.

95. The Court therefore concludes that, in these circumstances where there is no evidence of any real encroachment on the interests of others, the domestic authorities failed sufficiently to protect the first applicant's right to manifest her religion, in breach of the positive obligation under Article 9. In the light of this conclusion, it does not consider it necessary to examine separately the applicant's complaint under Article 14 taken in conjunction with Article 9.

Chaplin

96. Ms Chaplin is also a practising Christian, who has worn a cross on a chain around her neck since her confirmation in 1971. At the time of the events in question she worked as a nurse on a geriatric ward which had a uniform policy based on guidance from the Department of Health. That policy provided, inter alia, that "no necklaces will be worn to reduce the risk of injury when handling patients" and that any member of staff who wished to wear a particular item for religious or cultural reasons had first to raise this with the line manager who would not unreasonably withhold approval. In 2007 new tunics were introduced, which replaced the previous collar with a V-neck, so that the applicant's cross was now more visible and accessible, both at the back of her neck and in front. The applicant was asked to remove the cross and chain. When she refused, she was moved in November 2009 to a non-nursing position, which

ceased to exist in July 2010. She complained to the Employment Tribunal of direct and indirect discrimination. The Tribunal rejected the complaint of direct discrimination since it found that there was no evidence that the applicant was treated less favourably than colleagues who wished to wear other items on religious grounds. It also rejected the claim of indirect discrimination, finding that the health authority's policy was proportionate to the aim pursued.

97. As with Ms Eweida, and in accordance with the general principles set out above, the Court considers that the second applicant's determination to wear the cross and chain at work was a manifestation of her religious belief and that the refusal by the health authority to allow her to remain in the nursing post while wearing the cross was an interference with her freedom to manifest her religion.

98. The second applicant's employer was a public authority, and the Court must determine whether the interference was necessary in a democratic society in pursuit of one of the aims set out in Article 9 § 2. In this case, there does not appear to be any dispute that the reason for the restriction on jewellery, including religious symbols, was to protect the health and safety of nurses and patients. The evidence before the Employment Tribunal was that the applicant's managers considered there was a risk that a disturbed patient might seize and pull the chain, thereby injuring herself or the applicant, or that the cross might swing forward and could, for example, come into contact with an open wound. There was also evidence that another Christian nurse had been requested to remove a cross and chain; two Sikh nurses had been told they could not wear a bangle or kirpan; and that flowing hijabs were prohibited. The applicant was offered the possibility of wearing a cross in the form of a brooch attached to her uniform, or tucked under a high-necked top worn under her tunic, but she did not consider that this would be sufficient to comply with her religious conviction.

99. The Court considers that, as in Ms Eweida's case, the importance for the second applicant of being permitted to manifest her religion by wearing her cross visibly must weigh heavily in the balance. However, the reason for asking her to remove the cross, namely the protection of health and safety on a hospital ward, was inherently of a greater magnitude than that which applied in respect of Ms Eweida. Moreover, this is a field where the domestic authorities must be allowed a wide margin of appreciation. The hospital managers were better placed to make decisions about clinical safety than a court, particularly an international court which has heard no direct evidence.

100. It follows that the Court is unable to conclude that the measures of which Ms Chaplin complains were disproportionate. It follows that the interference with her freedom to manifest her religion was necessary in a democratic society and that there was no violation of Article 9 in respect of the second applicant.

101. Moreover, it considers that the factors to be weighed in the balance when assessing the proportionality of the measure under Article 14 taken in conjunction with Article 9 would be similar, and that there is no basis on which it can find a violation of Article 14 either in this case.

Ladele

102. The Court notes that the third applicant is a Christian, who holds the orthodox Christian view that marriage is the union of one man and one woman for life. She believed that same-sex unions are contrary to God's will and that it would be wrong for her to participate in the creation of an institution equivalent to marriage between a same-sex couple. Because of her refusal to agree to be designated as a registrar of civil partnerships, disciplinary proceedings were brought, culminating in the loss of her job.

103. The third applicant did not complain under Article 9 taken alone, but instead complained that she had suffered discrimination as a result of her Christian beliefs, in breach of Article 14 taken in conjunction with Article 9. For the Court, it is clear that the applicant's objection to participating in the creation of same-sex civil partnerships was directly motivated by her religious beliefs. The events in question fell within the ambit of Article 9 and Article 14 is applicable.

104. The Court considers that the relevant comparator in this case is a registrar with no religious objection to same-sex unions. It agrees with the applicant's contention that the local authority's requirement that all registrars of births, marriages and deaths be designated also as civil partnership registrars had a particularly detrimental impact on her because of her religious beliefs. In order to determine whether the local authority's decision not to make an exception for the applicant and others in her situation amounted to indirect discrimination in breach of Article 14, the Court must consider whether the policy pursued a legitimate aim and was proportionate.

105. The Court of Appeal held in this case that the aim pursued by the local authority was to provide a service which was not merely effective in terms of practicality and efficiency, but also one which complied with the overarching policy of being "an employer and a public authority wholly committed to the promotion of equal opportunities and to requiring all its employees to act in a way which does not discriminate against others". The Court recalls that in its case-law under Article 14 it has held that differences in treatment based on sexual orientation require particularly serious reasons by way of justification (see, for example, Karner v. Austria, no. 40016/98, § 37, ECHR 2003-IX; Smith and Grady, cited above, § 90; Schalk and Kopf v. Austria, no. 30141/04, § 97, ECHR 2010). It has also held that same-sex couples are in a relevantly similar situation to different-sex couples as regards their need for legal recognition and protection of their relationship, although since practice in this regard is still evolving across Europe, the Contracting States enjoy a wide margin of appreciation as to the way in which this is achieved within the domestic legal order (Schalk and Kopf, cited above, §§ 99-108). Against this background, it is evident that the aim pursued by the local authority was legitimate.

106. It remains to be determined whether the means used to pursue this aim were proportionate. The Court takes into account that the consequences for the applicant were serious: given the strength of her religious conviction, she considered that she had

no choice but to face disciplinary action rather than be designated a civil partnership registrar and, ultimately, she lost her job. Furthermore, it cannot be said that, when she entered into her contract of employment, the applicant specifically waived her right to manifest her religious belief by objecting to participating in the creation of civil partnerships, since this requirement was introduced by her employer at a later date. On the other hand, however, the local authority's policy aimed to secure the rights of others which are also protected under the Convention. The Court generally allows the national authorities a wide margin of appreciation when it comes to striking a balance between competing Convention rights (see, for example, Evans v. the United Kingdom [GC], no. 6339/05, § 77, ECHR 2007-I). In all the circumstances, the Court does not consider that the national authorities, that is the local authority employer which brought the disciplinary proceedings and also the domestic courts which rejected the applicant's discrimination claim, exceeded the margin of appreciation available to them. It cannot, therefore, be said that there has been a violation of Article 14 taken in conjunction with Article 9 in respect of the third applicant.

McFarlane

107. Mr McFarlane's principal complaint was under Article 9 of the Convention, although he also complained under Article 14 taken in conjunction with Article 9. Employed by a private company with a policy of requiring employees to provide services equally to heterosexual and homosexual couples, he had refused to commit himself to providing psycho-sexual counselling to same-sex couples, which resulted in disciplinary proceedings being brought against him. His complaint of indirect discrimination, inter alia, was rejected by the Employment Tribunal and the Employment Appeal Tribunal and he was refused leave to appeal by the Court of Appeal.

108. The Court accepts that Mr McFarlane's objection was directly motivated by his orthodox Christian beliefs about marriage and sexual relationships, and holds that his refusal to undertake to counsel homosexual couples constituted a manifestation of his religion and belief. The State's positive obligation under Article 9 required it to secure his rights under Article 9.

109. It remains to be determined whether the State complied with this positive obligation and in particular whether a fair balance was struck between the competing interests at stake (see paragraph 84 above). In making this assessment, the Court takes into account that the loss of his job was a severe sanction with grave consequences for the applicant. On the other hand, the applicant voluntarily enrolled on Relate's post-graduate training programme in psycho-sexual counselling, knowing that Relate operated an Equal Opportunities Policy and that filtering of clients on the ground of sexual orientation would not be possible (see paragraphs 32-34 above). While the Court does not consider that an individual's decision to enter into a contract of employment and to undertake responsibilities which he knows will have an impact on his freedom to manifest his religious belief is determinative of the question whether or not there been an interference with Article 9 rights, this is a matter to be weighed in the balance when assessing whether a fair balance was struck (see paragraph 83

above). However, for the Court the most important factor to be taken into account is that the employer's action was intended to secure the implementation of its policy of providing a service without discrimination. The State authorities therefore benefitted from a wide margin of appreciation in deciding where to strike the balance between Mr McFarlane's right to manifest his religious belief and the employer's interest in securing the rights of others. In all the circumstances, the Court does not consider that this margin of appreciation was exceeded in the present case.

110. In conclusion, the Court does not consider that the refusal by the domestic courts to uphold Mr McFarlane's complaints gave rise to a violation of Article 9, taken alone or in conjunction with Article 14.

ECHR, Case of DH vs. the Czech Republic

THE FACTS

I. THE CIRCUMSTANCES OF THE CASE

11. Details of the applicants' names and places of residence are set out in the Annex.

A. Historical background

12. According to documents available on the website of the Roma and Travellers Division of the Council of Europe, the Roma originated from the regions situated between north-west India and the Iranian plateau. The first written traces of their arrival in Europe date back to the fourteenth century. Today there are between eight and ten million Roma living in Europe. They are to be found in almost all Council of Europe member States and indeed, in some central and east European countries, they represent over 5% of the population. The majority of them speak Romany, an Indo-European language that is understood by a very large number of Roma in Europe, despite its many variants. In general, Roma also speak the dominant language of the region in which they live, or even several languages.

13. Although they have been in Europe since the fourteenth century, often they are not recognised by the majority of society as a fully fledged European people and they have suffered throughout their history from rejection and persecution. This culminated in their attempted extermination by the Nazis, who considered them an inferior race. As a result of centuries of rejection, many Roma communities today live in very difficult conditions, often on the fringe of society in the countries where they have settled, and their participation in public life is extremely limited.

14. In the Czech Republic the Roma have national-minority status and, accordingly, enjoy the special rights associated therewith. The National Minorities Commission of the Government of the Czech Republic, a governmental consultative body without executive power, has responsibility for defending the interests of the national minorities, including the Roma.

As to the number of Roma currently living in the Czech Republic, there is a discrepancy between the official, census-based, statistics and the estimated number. According to the latter, which is available on the website of the Minorities Commission of the Government of the Czech Republic, the Roma community now numbers between 150,000 and 300,000 people.

B. Special schools

15. According to information supplied by the Czech Government, the special schools (zvláštní školy) were established after the First World War for children with special needs, including those suffering from a mental or social handicap. The number of children placed in these schools continued to rise (from 23,000 pupils in 1960 to 59,301 in 1988). Owing to the entrance requirements of the primary schools (základní školy) and the resulting selection process, prior to 1989 most Roma children attended special schools.

16. Under the terms of the Schools Act (Law no. 29/1984), the legislation applicable in the present case, special schools were a category of specialised school (speciální školy) and were intended for children with mental deficiencies who were unable to attend "ordinary" or specialised primary schools. Under the Act, the decision to place a child in a special school was taken by the head teacher on the basis of the results of tests to measure the child's intellectual capacity carried out in an educational psychology centre and was subject to the consent of the child's legal guardian.

17. Following the switch to the market economy in the 1990s, a number of changes were made to the system of special schools in the Czech Republic. These changes also affected the education of Roma pupils. In 1995 the Ministry of Education issued a directive concerning the provision of additional lessons for pupils who had completed their compulsory education in a special school. Since the 1996/97 school year, preparatory classes for children from disadvantaged social backgrounds have been opened in nursery, primary and special schools. In 1998 the Ministry of Education approved an alternative educational curriculum for children of Roma origin who had been placed in special schools. Roma teaching assistants were also assigned to primary and special schools to assist the teachers and facilitate communication with the families. By virtue of amendment no. 19/2000 to the Schools Act, which came into force on 18 February 2000, pupils who had completed their compulsory education in a special school were also eligible for admission to secondary schools, provided they satisfied the entrance requirements for their chosen course.

18. According to data supplied by the applicants, which was obtained through questionnaires sent in 1999 to the head teachers of the 8 special schools and 69 primary schools in the town of Ostrava, the total number of pupils placed in special schools in Ostrava came to 1,360, of whom 762 (56%) were Roma. Conversely, Roma represented only 2.26% of the total of 33,372 primary-school pupils in Ostrava. Further, although only 1.8% of non-Roma pupils were placed in special schools, in Ostrava the proportion of

Roma pupils assigned to such schools was 50.3%. Accordingly, a Roma child in Ostrava was 27 times more likely to be placed in a special school than a non-Roma child.

According to data from the European Monitoring Centre on Racism and Xenophobia (now the European Union Agency for Fundamental Rights), more than half of Roma children in the Czech Republic attend special schools.

The Advisory Committee on the Framework Convention for the Protection of National Minorities observed in its report of 26 October 2005 that, according to unofficial estimates, the Roma represent up to 70% of pupils enrolled in special schools.

Lastly, according to a comparison of data on fifteen countries, including countries from Europe, Asia and North America, gathered by the Organisation for Economic Cooperation and Development in 1999 and cited in the observations of the International Step by Step Association, the Roma Education Fund and the European Early Childhood Education Research Association[1], the Czech Republic ranked second highest in terms of placing children with physiological impairments in special schools and in third place in the table of countries placing children with learning difficulties in such schools. Further, of the eight countries who had provided data on the schooling of children whose difficulties arose from social factors, the Czech Republic was the only one to use special schools; the other countries concerned almost exclusively used ordinary schools for the education of such children.

C. The facts of the instant case

19. Between 1996 and 1999 the applicants were placed in special schools in Ostrava, either directly or after a spell in an ordinary primary school.

20. The material before the Court shows that the applicants' parents had consented to and in some instances expressly requested their children's placement in a special school. Consent was indicated by signing a pre-completed form. In the case of applicants nos. 12 and 16, the dates on the forms are later than the dates of the decisions to place the children in special schools. In both instances, the date has been corrected by hand, and one of them is accompanied by a note from the teacher citing a typing error.

The decisions on placement were then taken by the head teachers of the special schools concerned after referring to the recommendations of the educational psychology centres where the applicants had undergone psychological tests. The applicants' school files contained the report on their examination, including the results of the tests with the examiners' comments, drawings by the children and, in a number of cases, a questionnaire for the parents.

The written decision concerning the placement was sent to the children's parents. It contained instructions on the right to appeal, a right which none of them exercised.

21. On 29 June 1999 the applicants received a letter from the school authorities informing them of the possibilities available for transferring from a special school to a primary school. It would appear that four of the applicants (nos. 5, 6, 11 and 16 in the Annex) were successful in aptitude tests and thereafter attended ordinary schools.

22. In the review and appeals procedures referred to below, the applicants were represented by a lawyer acting on the basis of signed written authorities from their parents.

III. ALLEGED VIOLATION OF ARTICLE 14 OF THE CONVENTION TAKEN IN CONJUNCTION WITH ARTICLE 2 OF PROTOCOL No. 1

124. The applicants maintained that they had been discriminated against in that because of their race or ethnic origin they had been treated less favourably than other children in a comparable situation without any objective and reasonable justification. They relied in that connection on Article 14 of the Convention taken in conjunction with Article 2 of Protocol No. 1, which provide as follows:

Article 14 of the Convention

"The enjoyment of the rights and freedoms set forth in [the] Convention shall be secured without discrimination on any ground such as sex, race, colour, language, religion, political or other opinion, national or social origin, association with a national minority, property, birth or other status."

Article 2 of Protocol No. 1

"No person shall be denied the right to education. In the exercise of any functions which it assumes in relation to education and to teaching, the State shall respect the right of parents to ensure such education and teaching in conformity with their own religious and philosophical convictions."

A. The Chamber judgment

125. The Chamber held that there had been no violation of Article 14 of the Convention taken in conjunction with Article 2 of Protocol No 1. In its view, the Government had succeeded in establishing that the system of special schools in the Czech Republic had not been introduced solely to cater for Roma children and that considerable efforts had been made in those schools to help certain categories of pupils to acquire a basic education. In that connection, it observed that the rules governing children's placement in special schools did not refer to the pupils' ethnic origin, but pursued the legitimate aim of adapting the education system to the needs, aptitudes and disabilities of the children.

126. The Chamber noted in particular that the applicants had not succeeded in refuting the experts' findings that their learning difficulties were such as to prevent them from following the ordinary primary-school curriculum. It was further noted that the applicants' parents had failed to take any action or had even requested their children's placement or continued placement in a special school themselves.

127. The Chamber accepted in its judgment that it was not easy to choose an education system that reconciled the various competing interests and that there did not appear to be an ideal solution. However, while acknowledging that the statistical evidence disclosed worrying figures and that the general situation in the Czech Republic concerning the education of Roma children was by no means perfect, it considered

that the concrete evidence before it did not enable it to conclude that the applicants' placement or, in some instances, continued placement in special schools was the result of racial prejudice.

B. The parties' submissions

1. The applicants

128. The applicants submitted that the restrictive interpretation the Chamber had given to the notion of discrimination was incompatible not only with the aim of the Convention but also with the case-law of the Court and of other jurisdictions in Europe and beyond.

129. They firstly asked the Grand Chamber to correct the obscure and contradictory test the Chamber had used for deciding whether there had been discrimination. They noted that, while reaffirming the established principle that if a policy or general measure had disproportionately prejudicial effects on a group of people, the possibility of its being considered discriminatory could not be ruled out even if it was not specifically aimed or directed at that group. The Chamber had nevertheless departed from the Court's previous case-law (see Thlimmenos v. Greece [GC], no. 34369/97, § 44, ECHR 2000-IV; Hoogendijk v. the Netherlands (dec.), no. 58641/00, 6 January 2005; and Nachova and Others v. Bulgaria [GC], nos. 43577/98 and 43579/98, § 157, ECHR 2005-VII) by erroneously requiring the applicants to prove discriminatory intent on the part of the Czech authorities. In the applicants' submission, such a requirement was unrealistic and illogical as the question whether or not special schools were designed to segregate along ethnic lines was irrelevant since that was indisputably the effect they had in practice. The reality was that well-intentioned actors often engaged in discriminatory practices through ignorance, neglect or inertia.

[…]

134. Similarly, the applicants asked the Grand Chamber to provide guidance concerning the kinds of proof, including but not limited to statistical evidence, which might be relevant to a claim of a violation of Article 14. They noted that the Chamber had discounted the overwhelming statistical evidence they had adduced, without checking whether or not it was accurate, despite the fact that it had been corroborated by independent specialised intergovernmental bodies (ECRI, the Committee on the Elimination of Racial Discrimination, and the Advisory Committee on the Framework Convention for the Protection of National Minorities) and by the government's own admission (see paragraphs 41 and 66 above). According to this data, although Roma represented only 5% of all primary-school pupils at the time the application was lodged, they made up more than 50% of the population of special schools. Whereas fewer than 2% of non-Roma pupils in Ostrava were assigned to special schools, over 50% of Roma children were sent to such schools. Overall, a Roma child was more than twenty-seven times more likely than a similarly situated non-Roma child to be assigned to a special school.

[…]

137. With respect to the Convention institutions, the applicants noted that, in finding racial discrimination in East African Asians v. the United Kingdom (nos. 4403/70-4530/70, Commission's report of 14 December 1973, Decisions and Reports 78-A, p. 5), the Commission took into account the surrounding circumstances including statistical data on the disproportionate effect the legislation had had on British citizens of Asian origin. Recently, the Court had indicated in its decision in Hoogendijk (cited above) that, while statistics alone were not sufficient to prove discrimination, they could – particularly where they were undisputed – amount to prima facie evidence requiring the Government to provide an objective explanation of the differential treatment. Further, in its judgment in Zarb Adami (cited above), the Court had relied, inter alia, on statistical evidence of disproportionate effect.

[…]

139. In view of the importance of the fight against racial and ethnic discrimination that had constantly been reaffirmed by the Strasbourg institutions, the applicants considered that the Grand Chamber should state in clear terms that the States' "margin of appreciation" could not serve to justify segregation in education. The approach adopted by the Chamber, which left an unlimited margin of appreciation to the Czech State, was unjustified in view of the serious allegations of racial and ethnic discrimination in the instant case and was inconsistent with the Court's case-law. The present case warranted all the more the Court's attention in that it concerned one of the most important substantive rights, namely the right to education.

[…]

141. There were no uniform rules at the material time governing the manner in which the tests used by the educational psychology centres were administered and the results interpreted, so that much had been left to the discretion of the psychologists and there had been considerable scope for racial prejudice and cultural insensitivity. Further, the tests which they and other Roma children had been forced to sit were scientifically flawed and educationally unsound. The documentary evidence showed that a number of the applicants had been placed in special schools for reasons other than intellectual deficiencies (such as absenteeism, bad behaviour, and even misconduct on the part of the parents). The Czech Government had themselves acknowledged the discriminatory effect of the tests (see paragraph 66 above). They had also admitted in their observations on the present case that one of the applicants had been placed in a special school despite possessing good verbal communication skills.

2. The Government

146. The Government stated that the case raised complex issues concerning the social problem of the position of Roma in contemporary society. Although the Roma ostensibly enjoyed the same rights as other citizens, in reality their prospects were limited by both objective and subjective factors. There could be no improvement in their situation without the involvement and commitment of all members of the Roma community. When they attempted to eliminate these inequalities, member States were

confronted with numerous political, social, economic and technical problems which could not be confined to the question of respect for fundamental rights. It was for this reason that the courts, including the European Court of Human Rights, had to exercise a degree of restraint when examining measures adopted in this field and confine themselves to deciding whether or not the competent authorities had overstepped their margin of appreciation.

[…]

148. The Government next turned to the applicants' argument that the instant case was one of indirect discrimination which, in some instances, could only be established with the aid of statistics. They contended that the case of Zarb Adami (cited above), in which the Court had relied extensively on statistical evidence submitted by the parties, was not comparable to the instant case. Firstly, Zarb Adami was far less complex. Secondly, the statistical disparities found in that case between the number of men and women called to perform jury service were the result of a decision by the State, whereas the statistics relied on by the applicants in the instant case reflected first and foremost the parents' wishes for their children to attend special school, not any act or omission on the part of the State. Had the parents not expressed such a wish (by giving their consent) the children would not have been placed in a special school.

Further, the statistical information that had been submitted in the instant case by the applicants was not sufficiently conclusive as the data had been furnished by the head teachers of the schools and therefore only reflected their subjective opinions. There was no official information on the ethnic origin of the pupils. The Government further considered that the statistics had no informative value without an evaluation of the socio-cultural background of the Roma, their family situation and their attitude towards education. They pointed out in that connection that the Ostrava region had one of the largest Roma populations in the Czech Republic.

As to the comparative studies on countries from central and eastern Europe and beyond cited in the observations of the third-party interveners, the Government did not consider that there was any relevant link between those statistics and the substantive issues in the case to hand. In their submission, those studies tended to confirm that creating an education system optimised for Roma children was an extremely complex task.

149. Nevertheless, even assuming that the data submitted by the applicants were reliable and that the State could be considered responsible for the situation, that did not, in the Government's submission, amount to indirect discrimination that was incompatible with the Convention. The impugned measure was consistent with the principle of non-discrimination as it pursued a legitimate aim, namely the adaptation of the education process to the capacity of children with specific educational needs. It was also objectively and reasonably justified.

[…]

155. The Government conceded that the national authorities had to take all reasonable steps to ensure that measures did not produce disproportionate effects or, if that was not feasible, to mitigate and compensate for such effects. However, neither the Convention nor any other international instrument contained a general definition of the State's positive obligations concerning the education of Roma pupils or, more generally, of children from national or ethnic minorities. The Government noted in this connection that when determining the State's positive obligations the Court sometimes referred to developments in the legislation of the Contracting Parties. However, they said that no European standard or consensus currently existed regarding the criteria to be used to determine whether children should be placed in special schools or how children with special learning needs should be educated and the special school was one of the possible and acceptable solutions to the problem.

156. Moreover, the positive obligations under Article 14 of the Convention could not be construed as an obligation to take affirmative action. That had to remain an option. It was not possible to infer from Article 14 a general obligation on the part of the State actively to compensate for all the disabilities which different sections of the population suffered from.

C. The Court's assessment

1. Recapitulation of the main principles

175. The Court has established in its case-law that discrimination means treating differently, without an objective and reasonable justification, persons in relevantly similar situations (see Willis v. the United Kingdom, no. 36042/97, § 48, ECHR 2002-IV, and Okpisz v. Germany, no. 59140/00, § 33, 25 October 2005). However, Article 14 does not prohibit a member State from treating groups differently in order to correct "factual inequalities" between them; indeed in certain circumstances a failure to attempt to correct inequality through different treatment may in itself give rise to a breach of the Article (see Case "relating to certain aspects of the laws on the use of languages in education in Belgium" v. Belgium (merits), 23 July 1968, p. 34, § 10, Series A no. 6; Thlimmenos v. Greece [GC], no. 34369/97, § 44, ECHR 2000-IV; and Stec and Others v. the United Kingdom [GC], no. 65731/01, § 51, ECHR 2006-VI). The Court has also accepted that a general policy or measure that has disproportionately prejudicial effects on a particular group may be considered discriminatory notwithstanding that it is not specifically aimed at that group (see Hugh Jordan, cited above, and Hoogendijk, cited above), and that discrimination potentially contrary to the Convention may result from a de facto situation (see Zarb Adami, cited above).

176. Discrimination on account of, inter alia, a person's ethnic origin is a form of racial discrimination. Racial discrimination is a particularly invidious kind of discrimination and, in view of its perilous consequences, requires from the authorities special vigilance and a vigorous reaction. It is for this reason that the authorities must use all available means to combat racism, thereby reinforcing democracy's vision of a society in which diversity is not perceived as a threat but as a source of enrichment

(see Nachova, cited above, and Timishev, cited above). The Court has also held that no difference in treatment which is based exclusively or to a decisive extent on a person's ethnic origin is capable of being objectively justified in a contemporary democratic society built on the principles of pluralism and respect for different cultures (see Timishev, cited above, § 58).

177. As to the burden of proof in this sphere, the Court has established that once the applicant has shown a difference in treatment it is for the Government to show that it was justified (see, among other authorities, Chassagnou and Others v. France [GC], nos. 25088/94, 28331/95 and 28443/95, §§ 91-92, ECHR 1999-III, and Timishev, cited above, § 57).

178. As regards the question of what constitutes prima facie evidence capable of shifting the burden of proof on to the respondent State, the Court stated in Nachova and Others (cited above, § 147) that in proceedings before it there are no procedural barriers to the admissibility of evidence or predetermined formulae for its assessment. The Court adopts the conclusions that are, in its view, supported by the free evaluation of all evidence, including such inferences as may flow from the facts and the parties' submissions. According to its established case-law, proof may follow from the coexistence of sufficiently strong, clear and concordant inferences or of similar unrebutted presumptions of fact. Moreover, the level of persuasion necessary for reaching a particular conclusion and, in this connection, the distribution of the burden of proof are intrinsically linked to the specificity of the facts, the nature of the allegation made and the Convention right at stake.

179. The Court has also recognised that Convention proceedings do not in all cases lend themselves to a rigorous application of the principle affirmanti incumbit probatio (he who alleges something must prove that allegation – see Aktaş v. Turkey, no. 24351/94, § 272, ECHR 2003-V). In certain circumstances, where the events in issue lie wholly, or in large part, within the exclusive knowledge of the authorities, the burden of proof may be regarded as resting on the authorities to provide a satisfactory and convincing explanation (see Salman v. Turkey [GC], no. 21986/93, § 100, ECHR 2000-VII, and Anguelova v. Bulgaria, no. 38361/97, § 111, ECHR 2002-IV). In Nachova and Others (cited above, § 157), the Court did not rule out requiring a respondent Government to disprove an arguable allegation of discrimination in certain cases, even though it considered that it would be difficult to do so in that particular case in which the allegation was that an act of violence had been motivated by racial prejudice. It noted in that connection that in the legal systems of many countries proof of the discriminatory effect of a policy, decision or practice would dispense with the need to prove intent in respect of alleged discrimination in employment or in the provision of services.

180. As to whether statistics can constitute evidence, the Court has in the past stated that statistics could not in themselves disclose a practice which could be classified as discriminatory (see Hugh Jordan, cited above, § 154). However, in more recent cases on the question of discrimination in which the applicants alleged a difference in the effect of a general measure or de facto situation (see Hoogendijk, cited above, and

Zarb Adami, cited above, §§ 77-78), the Court relied extensively on statistics produced by the parties to establish a difference in treatment between two groups (men and women) in similar situations.

Thus, in Hoogendijk the Court stated: "[W]here an applicant is able to show, on the basis of undisputed official statistics, the existence of a prima facie indication that a specific rule – although formulated in a neutral manner – in fact affects a clearly higher percentage of women than men, it is for the respondent Government to show that this is the result of objective factors unrelated to any discrimination on grounds of sex. If the onus of demonstrating that a difference in impact for men and women is not in practice discriminatory does not shift to the respondent Government, it will be in practice extremely difficult for applicants to prove indirect discrimination."

181. Lastly, as noted in previous cases, the vulnerable position of Roma/Gypsies means that special consideration should be given to their needs and their different lifestyle both in the relevant regulatory framework and in reaching decisions in particular cases (see Chapman v. the United Kingdom [GC], no. 27238/95, § 96, ECHR 2001-I, and Connors v. the United Kingdom, no. 66746/01, § 84, 27 May 2004).

In Chapman (cited above, §§ 93-94), the Court also observed that there could be said to be an emerging international consensus among the Contracting States of the Council of Europe recognising the special needs of minorities and an obligation to protect their security, identity and lifestyle, not only for the purpose of safeguarding the interests of the minorities themselves but to preserve a cultural diversity of value to the whole community.

2. Application of the above-mentioned principles to the instant case

182. The Court notes that as a result of their turbulent history and constant uprooting the Roma have become a specific type of disadvantaged and vulnerable minority (see also the general observations in the Parliamentary Assembly's Recommendation No. 1203 (1993) on Gypsies in Europe, cited in paragraph 56 above, and point 4 of its Recommendation no. 1557 (2002) on the legal situation of Roma in Europe, cited in paragraph 58 above). As the Court has noted in previous cases, they therefore require special protection (see paragraph 181 above). As is attested by the activities of numerous European and international organisations and the recommendations of the Council of Europe bodies (see paragraphs 54-61 above), this protection also extends to the sphere of education. The present case therefore warrants particular attention, especially as when the applications were lodged with the Court the applicants were minor children for whom the right to education was of paramount importance.

183. The applicants' allegation in the present case is not that they were in a different situation from non-Roma children that called for different treatment or that the respondent State had failed to take affirmative action to correct factual inequalities or differences between them (see Thlimmenos, cited above, § 44, and Stec and Others, cited above, § 51). In their submission, all that has to be established is that, without objective and reasonable justification, they were treated less favourably than non-Roma children in a comparable situation and that this amounted in their case to indirect discrimination.

184. The Court has already accepted in previous cases that a difference in treatment may take the form of disproportionately prejudicial effects of a general policy or measure which, though couched in neutral terms, discriminates against a group (see Hugh Jordan, cited above, § 154, and Hoogendijk, cited above). In accordance with, for instance, Council Directives 97/80/EC and 2000/43/EC (see paragraphs 82-84 above) and the definition provided by ECRI (see paragraph 60 above), such a situation may amount to "indirect discrimination", which does not necessarily require a discriminatory intent.

[…]

186. As mentioned above, the Court has noted in previous cases that applicants may have difficulty in proving discriminatory treatment (Nachova and Others, cited above, §§ 147 and 157). In order to guarantee those concerned the effective protection of their rights, less strict evidential rules should apply in cases of alleged indirect discrimination.

187. On this point, the Court observes that Council Directives 97/80/EC and 2000/43/EC stipulate that persons who consider themselves wronged because the principle of equal treatment has not been applied to them may establish before a domestic authority by any means, including on the basis of statistical evidence, facts from which it may be presumed that there has been discrimination (see paragraphs 82-83 above). The recent case-law of the Court of Justice of the European Communities (see paragraphs 88-89 above) shows that it permits claimants to rely on statistical evidence and the national courts to take such evidence into account where it is valid and significant.

[…]

189. Where an applicant alleging indirect discrimination thus establishes a rebuttable presumption that the effect of a measure or practice is discriminatory, the burden then shifts to the respondent State, which must show that the difference in treatment is not discriminatory (see, mutatis mutandis, Nachova and Others, cited above, § 157). Regard being had in particular to the specificity of the facts and the nature of the allegations made in this type of case (ibid., § 147), it would be extremely difficult in practice for applicants to prove indirect discrimination without such a shift in the burden of proof.

190. In the present case, the statistical data submitted by the applicants were obtained from questionnaires that were sent out to the head teachers of special and primary schools in the town of Ostrava in
1999. They indicate that at the time 56% of all pupils placed in

special schools in Ostrava were Roma. Conversely, Roma represented only 2.26% of the total number of pupils attending primary school in Ostrava. Further, whereas only 1.8% of non-Roma pupils were placed in special schools, the proportion of Roma pupils in Ostrava assigned to special schools was 50.3%. According to the Government, these figures are not sufficiently conclusive as they merely reflect the

subjective opinions of the head teachers. The Government also noted that no official information on the ethnic origin of the pupils existed and that the Ostrava region had one of the largest Roma populations.

191. The Grand Chamber observes that these figures are not disputed by the Government and that they have not produced any alternative statistical evidence. In view of their comment that no official information on the ethnic origin of the pupils exists, the Court accepts that the statistics submitted by the applicants may not be entirely reliable. It nevertheless considers that these figures reveal a dominant trend that has been confirmed both by the respondent State and the independent supervisory bodies which have looked into the question.

[…]

196. The Court reiterates that a difference in treatment is discriminatory if "it has no objective and reasonable justification", that is, if it does not pursue a "legitimate aim" or if there is not a "reasonable relationship of proportionality" between the means employed and the aim sought to be realised (see, among many other authorities, Larkos v. Cyprus [GC], no. 29515/95, § 29, ECHR 1999-I, and Stec and Others, cited above, § 51). Where the difference in treatment is based on race, colour or ethnic origin, the notion of objective and reasonable justification must be interpreted as strictly as possible.

197. In the instant case, the Government sought to explain the difference in treatment between Roma children and non-Roma children by the need to adapt the education system to the capacity of children with special needs. In the Government's submission, the applicants were placed in special schools on account of their specific educational needs, essentially as a result of their low intellectual capacity measured with the aid of psychological tests in educational psychology centres. After the centres had made their recommendations regarding the type of school in which the applicants should be placed, the final decision had lain with the applicants' parents and they had consented to the placements. The argument that the applicants were placed in special schools on account of their ethnic origin was therefore unsustainable.

For their part, the applicants strenuously contested the suggestion that the disproportionately high number of Roma children in special schools could be explained by the results of the intellectual capacity tests or be justified by parental consent.

198. The Court accepts that the Government's decision to retain the special-school system was motivated by the desire to find a solution for children with special educational needs. However, it shares the disquiet of the other Council of Europe institutions who have expressed concerns about the more basic curriculum followed in these schools and, in particular, the segregation the system causes.

199. The Grand Chamber observes, further, that the tests used to assess the children's learning abilities or difficulties have given rise to controversy and continue to be the subject of scientific debate and research. While accepting that it is not its role to judge

the validity of such tests, various factors in the instant case nevertheless lead the Grand Chamber to conclude that the results of the tests carried out at the material time were not capable of constituting objective and reasonable justification for the purposes of Article 14 of the Convention.

[…]

202. As regards parental consent, the Court notes the Government's submission that this was the decisive factor without which the applicants would not have been placed in special schools. In view of the fact that a difference in treatment has been established in the instant case, it follows that any such consent would signify an acceptance of the difference in treatment, even if discriminatory, in other words a waiver of the right not to be discriminated against. However, under the Court's case-law, the waiver of a right guaranteed by the Convention – in so far as such a waiver is permissible – must be established in an unequivocal manner, and be given in full knowledge of the facts, that is to say on the basis of informed consent (see Pfeifer and Plankl v. Austria, 25 February 1992, §§ 37-38, Series A no. 227) and without constraint (see Deweer v. Belgium, 27 February 1980, § 51, Series A no. 35).

[…]

205. As is apparent from the documentation produced by ECRI and the report of the Commissioner for Human Rights of the Council of Europe, the Czech Republic is not alone in having encountered difficulties in providing schooling for Roma children: other European States have had similar difficulties. The Court is gratified to note that, unlike some countries, the Czech Republic has sought to tackle the problem and acknowledges that, in its attempts to achieve the social and educational integration of the disadvantaged group which the Roma form, it has had to contend with numerous difficulties as a result of, inter alia, the cultural specificities of that minority and a degree of hostility on the part of the parents of non-Roma children. As the Chamber noted in its admissibility decision in the instant case, the choice between a single school for everyone, highly specialised structures and unified structures with specialised sections is not an easy one. It entails a difficult balancing exercise between the competing interests. As to the setting and planning of the curriculum, this mainly involves questions of expediency on which it is not for the Court to rule (see Valsamis v. Greece, 18 December 1996, § 28, Reports of Judgments and Decisions 1996-VI).

206. Nevertheless, whenever discretion capable of interfering with the enjoyment of a Convention right is conferred on national authorities, the procedural safeguards available to the individual will be especially material in determining whether the respondent State has, when fixing the regulatory framework, remained within its margin of appreciation (see Buckley v. the United Kingdom, 25 September 1996, § 76, Reports 1996-IV, and Connors, cited above, § 83).

207. The facts of the instant case indicate that the schooling arrangements for Roma children were not attended by safeguards (see paragraph 28 above) that would ensure that, in the exercise of its margin of appreciation in the education sphere, the State took

into account their special needs as members of a disadvantaged class (see, mutatis mutandis, Buckley, cited above, § 76, and Connors, cited above, § 84). Furthermore, as a result of the arrangements the applicants were placed in schools for children with mental disabilities where a more basic curriculum was followed than in ordinary schools and where they were isolated from pupils from the wider population. As a result, they received an education which compounded their difficulties and compromised their subsequent personal development instead of tackling their real problems or helping them to integrate into the ordinary schools and develop the skills that would facilitate life among the majority population. Indeed, the Government have implicitly admitted that job opportunities are more limited for pupils from special schools.

208. In these circumstances and while recognising the efforts made by the Czech authorities to ensure that Roma children receive schooling, the Court is not satisfied that the difference in treatment between Roma children and non-Roma children was objectively and reasonably justified and that there existed a reasonable relationship of proportionality between the means used and the aim

Chapter 6: Extraterritorial Application

ECHR, Case of Bankovich vs. Belgium and Others

Facts

6. The conflict in Kosovo between Serbian and Kosovar Albanian forces during 1998 and 1999 is well documented. Against the background of the escalating conflict, together with the growing concerns and unsuccessful diplomatic initiatives of the international community, the six-nation Contact Group (established in 1992 by the London Conference) met and agreed to convene negotiations between the parties to the conflict.

7. On 30 January 1999, and following a decision of its North Atlantic Council ("NAC"), the North Atlantic Treaty Organisation ("NATO") announced air strikes on the territory of the FRY in the case of non-compliance with the demands of the international community. Negotiations consequently took place between the parties to the conflict from 6 to 23 February 1999 in Rambouillet and from 15 to 18 March 1999 in Paris. The resulting proposed peace agreement was signed by the Kosovar Albanian delegation but not by the Serbian delegation.

8. Considering that all efforts to achieve a negotiated, political solution to the Kosovo crisis had failed, the NAC decided on, and on 23 March 1999 the Secretary General of NATO announced, the beginning of air strikes (Operation Allied Force) against the FRY. The air strikes lasted from 24 March to 8 June 1999.

2. The bombing of Radio Televizije Srbije ("RTS")

9. Three television channels and four radio stations operated from the RTS facilities in Belgrade. The main production facilities were housed in three buildings at Takovska Street. The master control room was housed on the first floor of one of the buildings and was staffed mainly by technical staff.

10. On 23 April 1999, just after 2.00 am approximately, one of the RTS buildings at Takovska Street was hit by a missile launched from a NATO forces' aircraft. Two of the four floors of the building collapsed and the master control room was destroyed.

11. The daughter of the first and second applicants, the sons of the third and fourth applicants and the husband of the fifth applicant were killed and the sixth applicant was injured. Sixteen persons were killed and another sixteen were seriously injured in the bombing of the RTS. Twenty-four targets were hit in the FRY that night, including three in Belgrade.

COMPLAINTS

28. The applicants complain about the bombing of the RTS building on 23 April 1999 by NATO forces and they invoke the following provisions of the Convention: Article 2 (the right to life), Article 10 (freedom of expression) and Article 13 (the right to an effective remedy).

29. The first to the fifth applicants rely on Articles 2, 10 and 13 on their own behalf and on behalf of their deceased close relatives. The sixth applicant, injured during the strike,

relies on these Articles on his own behalf. With the consent of the Court, the parties' written and oral submissions were limited to the admissibility issues, the Governments' further accepting that they would not be arguing that the complaints were manifestly ill-founded.

30. As to the admissibility of the case, the applicants submit that the application is compatible ratione loci with the provisions of the Convention because the impugned acts of the respondent States, which were either in the FRY or on their own territories but producing effects in the FRY, brought them and their deceased relatives within the jurisdiction of those States. They also suggest that the respondent States are severally liable for the strike despite its having been carried out by NATO forces, and that they had no effective remedies to exhaust.

31. The Governments dispute the admissibility of the case. They mainly contend that the application is incompatible ratione personae with the provisions of the Convention because the applicants did not fall within the jurisdiction of the respondent States within the meaning of Article 1 of the Convention. They also maintain that, in accordance with the "Monetary Gold principle" of the ICJ, this Court cannot decide the merits of the case as it would be determining the rights and obligations of the United States, of Canada and of NATO itself, none of whom are Contracting Parties to the Convention or, therefore, parties to the present application (Monetary Gold Removed from Rome in 1943, ICJ Reports 1954, p. 19 as applied in East Timor, ICJ Reports 1995, p. 90).

32. The French Government further argue that the bombardment was not imputable to the respondent States but to NATO, an organisation with an international legal personality separate from that of the respondent States. The Turkish Government made certain submissions as regards their view of the position in northern Cyprus.

33. Finally, the Hungarian, Italian and Polish Governments submit that the applicants have failed to exhaust effective remedies available in those States as required by Article 35 § 1 of the Convention.

A. Whether the applicants and their deceased relatives came within the "jurisdiction" of the respondent States within the meaning of Article 1 of the Convention

34. This is the principal basis upon which the Governments contest the admissibility of the application and the Court will consider first this question. Article 1 of the Convention reads as follows:

"The High Contracting Parties shall secure to everyone within their jurisdiction the rights and freedoms defined in Section I of [the] Convention."

1. The submissions of the respondent Governments

35. The Governments contend that the applicants and their deceased relatives were not, at the relevant time, within the "jurisdiction" of the respondent States and that the application is therefore incompatible ratione personae with the provisions of the Convention.

36. As to the precise meaning of "jurisdiction", they suggest that it should be interpreted in accordance with the ordinary and well-established meaning of that term in public international law. The exercise of "jurisdiction" therefore involves the assertion or exercise of legal authority, actual or purported, over persons owing some form of allegiance to that State or who have been brought within that State's control. They also suggest that the term "jurisdiction" generally entails some form of structured relationship normally existing over a period of time.

37. They maintain that they are supported in this respect by the jurisprudence of the Court which has applied this notion of jurisdiction to confirm that certain individuals affected by acts of a respondent State outside of its territory can be considered to fall within its jurisdiction because there was an exercise of some form of legal authority by the relevant State over them. The arrest and detention of the applicants outside of the territory of the respondent State in the Issa and Öcalan cases (Issa and Others v. Turkey, (dec.), no. 31821/96, 30 May 2000, unreported and Öcalan v. Turkey, (dec.), no. 46221/99, 14 December 2000, unreported) constituted, according to the Governments, a classic exercise of such legal authority or jurisdiction over those persons by military forces on foreign soil. Jurisdiction in the Xhavara case which concerned the alleged deliberate striking of an Albanian ship by an Italian naval vessel 35 nautical miles off the coast of Italy (Xhavara and Others v. Italy and Albania, (dec.), no. 39473/98, 11 January 2001, unreported) was shared by written agreement between the respondent States. The Governments consider that they are also supported in their interpretation of jurisdiction by the travaux préparatoires and by State practice in applying the Convention since its ratification by them. They refer, in this latter respect, to the lack of derogations under Article 15 of the Convention in respect of military operations in which the Contracting States participated outside of their territories.

38. The Governments conclude that it is clear that the conduct of which the applicants complain could not be described as the exercise of such legal authority or competence.

39. Moreover, the Governments go on to take issue with the applicants' principal submissions as to the meaning of jurisdiction in Article 1 of the Convention namely, that the positive obligation to protect in Article 1 of the Convention applies proportionately to the control exercised.

40. In the first place, the Governments consider that the very text of Article 1 does not support this interpretation. Had the drafters wished for what is effectively a "cause-and-effect" type of responsibility, they could have adopted wording similar to that of Article 1 of the Geneva Conventions 1949 (cited above at § 25). In any event, the applicants' interpretation of jurisdiction would invert and divide the positive obligation on Contracting States to secure the substantive rights in a manner never contemplated by Article 1 of the Convention.

[…]

42. […] In the present case, the Governments note that the FRY was not and is not a party to the Convention and its inhabitants had no existing rights under the Convention.

43. Fourthly, the Governments strongly dispute the applicants' assertions as to the risk involved in not rendering respondent States participating in such military missions accountable under the Convention. The Governments contend that it is rather the applicants' novel "cause-and-effect" theory of extra-territorial jurisdiction that would have serious international consequences. Such a theory would, when added to the applicants' assertion concerning the several liability of all respondent States as members of NATO, seriously distort the purpose and scheme of the Convention. In particular, it would have serious consequences for international military collective action as it would render the Court competent to review the participation of Contracting States in military missions all over the world in circumstances when it would be impossible for those States to secure any of the Convention rights to the inhabitants of those territories and even in situations where a Contracting State had no active part in the relevant mission. The resulting Convention exposure would, according to the Governments, risk undermining significantly the States' participation in such missions and would, in any event, result in far more protective derogations under Article 15 of the Convention. In addition, they suggest that international humanitarian law, the ICTY and, most recently, the International Criminal Court ("ICC") exist to regulate such State conduct.

2. The submissions of the applicants

46. The applicants consider the application to be compatible ratione loci with the provisions of the Convention because they were brought within the jurisdiction of the respondent States by the RTS strike. In particular, they suggest that the determination of "jurisdiction" can be done by adapting the "effective control" criteria developed in the above-cited Loizidou judgments (preliminary objections and merits) so that the extent of the positive obligation under Article 1 of the Convention to secure Convention rights would be proportionate to the level of control in fact exercised. They consider that this approach to jurisdiction in Article 1 would provide manageable criteria by which the Court could deal with future complaints arising out of comparable circumstances.

47. Accordingly, when, as in the above-noted Loizidou judgments (preliminary objections and merits), the Turkish forces were found to have had effective control of northern Cyprus, it was appropriate to consider Turkey obliged to vindicate the full range of Convention rights in that area. However, when the respondent States strike a target outside their territory, they are not obliged to do the impossible (secure the full range of Convention rights) but rather are held accountable for those Convention rights within their control in the situation in question.

48. The applicants maintain that this approach is entirely consistent with the Convention jurisprudence to date, and they rely, in particular, on the admissibility decisions in the above-cited cases of Issa, Xhavara and Öcalan together with the admissibility decision in the Ilascu case (Ilascu v. Moldova and the Russian Federation, (dec.), no. 48787/99, 4 July 2001, unreported). They consider it also consistent with the interpretation of similar phrases by the Inter-American Commission of Human Rights (the Report in the Coard case, at § 23 above). Citing one case of the Human Rights Committee, they

contend that that Committee has reached consistent conclusions as regards Article 2 § 1 of the CCPR 1966 and Article 1 of its Optional Protocol.

[…]

51. They reject the Governments' suggestion that their interpretation of Article 1 would be a dangerous development. The present case is not about an accident or omission during a UN peace-keeping mission or about rogue soldiers. Rather it concerns a deliberate act approved by each of the respondent States and executed as planned. Indeed, the applicants suggest that it would be dangerous not to render States accountable for the violations of the Convention arising from this type of State action. […]

52. Alternatively, the applicants argue that, given the size of the air operation and the relatively few air casualties, NATO's control over the airspace was nearly as complete as Turkey's control over the territory of northern Cyprus. While it was a control limited in scope (airspace only), the Article 1 positive obligation could be similarly limited. They consider that the concepts of "effective control" and "jurisdiction" must be flexible enough to take account of the availability and use of modern precision weapons which allow extra-territorial action of great precision and impact without the need for ground troops. Given such modern advances, reliance on the difference between air attacks and ground troops has become unrealistic.

53. Alternatively, the applicants compare the circumstances of the present case to those of the above-cited Soering case, arguing that the impugned act was, in fact, the extra-territorial effect of prior decisions, to strike RTS and to launch the missile, which decisions had been taken on the territory of the respondent State or States. They suggest therefore that jurisdiction can be established for the same reasons it was in the Soering case.

3. The Court's assessment

54. The Court notes that the real connection between the applicants and the respondent States is the impugned act which, wherever decided, was performed, or had effects, outside of the territory of those States ("the extra-territorial act"). It considers that the essential question to be examined therefore is whether the applicants and their deceased relatives were, as a result of that extra-territorial act, capable of falling within the jurisdiction of the respondent States (Drozd and Janousek v. France and Spain, judgment of 26 June 1992, Series A no. 240, § 91, the above-cited Loizidou judgments (preliminary objections and merits), at § 64 and § 56 respectively, and the Cyprus v. Turkey judgment, cited above, at § 80).

(a) The applicable rules of interpretation

55. The Court recalls that the Convention must be interpreted in the light of the rules set out in the Vienna Convention 1969 (Golder v. the United Kingdom judgment of 21 February 1975, Series A no. 18, § 29).

56. It will, therefore, seek to ascertain the ordinary meaning to be given to the phrase "within their jurisdiction" in its context and in the light of the object and purpose of the Convention […]

57. Moreover, Article 31 § 3 (c) indicates that account is to be taken of "any relevant rules of international law applicable in the relations between the parties". […] The Convention should be interpreted as far as possible in harmony with other principles of international law of which it forms part (Al-Adsani v. the United Kingdom, [GC], no. 35763, § 60, to be reported in ECHR 2001).

58. It is further recalled that the travaux préparatoires can also be consulted with a view to confirming any meaning resulting from the application of Article 31 of the Vienna Convention 1969 or to determining the meaning when the interpretation under Article 31 of the Vienna Convention 1969 leaves the meaning "ambiguous or obscure" or leads to a result which is "manifestly absurd or unreasonable" (Article 32). The Court has also noted the ILC commentary on the relationship between the rules of interpretation codified in those Articles 31 and 32 (the text of those Articles and a summary of the ILC commentary is set out above at §§ 16-18 above).

(b) The meaning of the words "within their jurisdiction"

59. As to the "ordinary meaning" of the relevant term in Article 1 of the Convention, the Court is satisfied that, from the standpoint of public international law, the jurisdictional competence of a State is primarily territorial. […]

60. Accordingly, for example, a State's competence to exercise jurisdiction over its own nationals abroad is subordinate to that State's and other States' territorial competence (Higgins, Problems and Process (1994), at p. 73; and Nguyen Quoc Dinh, Droit International Public, 6th Edition 1999 (Daillier and Pellet), p. 500). In addition, a State may not actually exercise jurisdiction on the territory of another without the latter's consent, invitation or acquiescence, unless the former is an occupying State in which case it can be found to exercise jurisdiction in that territory, at least in certain respects […].

61. The Court is of the view, therefore, that Article 1 of the Convention must be considered to reflect this ordinary and essentially territorial notion of jurisdiction, other bases of jurisdiction being exceptional and requiring special justification in the particular circumstances of each case (see, mutatis mutandis and in general, Select Committee of Experts on Extraterritorial Criminal Jurisdiction, European Committee on Crime Problems, Council of Europe, "Extraterritorial Criminal Jurisdiction", Report published in 1990, at pp. 8-30).

62. The Court finds State practice in the application of the Convention since its ratification to be indicative of a lack of any apprehension on the part of the Contracting States of their extra-territorial responsibility in contexts similar to the present case. Although there have been a number of military missions involving Contracting States acting extra-territorially since their ratification of the Convention (inter alia, in the Gulf, in Bosnia and Herzegovina and in the FRY), no State has indicated a belief that its extra-

territorial actions involved an exercise of jurisdiction within the meaning of Article 1 of the Convention by making a derogation pursuant to Article 15 of the Convention. The existing derogations were lodged by Turkey and the United Kingdom[1] in respect of certain internal conflicts (in south-east Turkey and Northern Ireland, respectively) and the Court does not find any basis upon which to accept the applicants' suggestion that Article 15 covers all "war" and "public emergency" situations generally, whether obtaining inside or outside the territory of the Contracting State. Indeed, Article 15 itself is to be read subject to the "jurisdiction" limitation enumerated in Article 1 of the Convention.

63. Finally, the Court finds clear confirmation of this essentially territorial notion of jurisdiction in the travaux préparatoires which demonstrate that the Expert Intergovernmental Committee replaced the words "all persons residing within their territories" with a reference to persons "within their jurisdiction" with a view to expanding the Convention's application to others who may not reside, in a legal sense, but who are, nevertheless, on the territory of the Contracting States (§ 19 above).

64. It is true that the notion of the Convention being a living instrument to be interpreted in light of present-day conditions is firmly rooted in the Court's case-law. […]

65. However, […] the extracts from the travaux préparatoires detailed above constitute a clear indication of the intended meaning of Article 1 of the Convention which cannot be ignored. The Court would emphasise that it is not interpreting Article 1 "solely" in accordance with the travaux préparatoires or finding those travaux "decisive"; rather this preparatory material constitutes clear confirmatory evidence of the ordinary meaning of Article 1 of the Convention as already identified by the Court (Article 32 of the Vienna Convention 1969).

66. Accordingly, and as the Court stated in the Soering case:

"Article 1 sets a limit, notably territorial, on the reach of the Convention. In particular, the engagement undertaken by a Contracting State is confined to 'securing' ('reconnaître' in the French text) the listed rights and freedoms to persons within its own 'jurisdiction'. Further, the Convention does not govern the actions of States not Parties to it, nor does it purport to be a means of requiring the Contracting States to impose Convention standards on other States."

(c) Extra-territorial acts recognised as constituting an exercise of jurisdiction

70. Moreover, in that first Loizidou judgment (preliminary objections), the Court found that, bearing in mind the object and purpose of the Convention, the responsibility of a Contracting Party was capable of being engaged when as a consequence of military action (lawful or unlawful) it exercised effective control of an area outside its national territory. The obligation to secure, in such an area, the Convention rights and freedoms was found to derive from the fact of such control whether it was exercised directly, through the respondent State's armed forces, or through a subordinate local administra-

tion. The Court concluded that the acts of which the applicant complained were capable of falling within Turkish jurisdiction within the meaning of Article 1 of the Convention.

On the merits, the Court found that it was not necessary to determine whether Turkey actually exercised detailed control over the policies and actions of the authorities of the "Turkish Republic of Northern Cyprus" ("TRNC"). It was obvious from the large number of troops engaged in active duties in northern Cyprus that Turkey's army exercised "effective overall control over that part of the island". Such control, according to the relevant test and in the circumstances of the case, was found to entail the responsibility of Turkey for the policies and actions of the "TRNC". The Court concluded that those affected by such policies or actions therefore came within the "jurisdiction" of Turkey for the purposes of Article 1 of the Convention. Turkey's obligation to secure the rights and freedoms set out in the Convention was found therefore to extend to northern Cyprus.

In its subsequent Cyprus v. Turkey judgment (cited above), the Court added that since Turkey had such "effective control", its responsibility could not be confined to the acts of its own agents therein but was engaged by the acts of the local administration which survived by virtue of Turkish support. Turkey's "jurisdiction" under Article 1 was therefore considered to extend to securing the entire range of substantive Convention rights in northern Cyprus.

71. In sum, the case-law of the Court demonstrates that its recognition of the exercise of extra-territorial jurisdiction by a Contracting State is exceptional: it has done so when the respondent State, through the effective control of the relevant territory and its inhabitants abroad as a consequence of military occupation or through the consent, invitation or acquiescence of the Government of that territory, exercises all or some of the public powers normally to be exercised by that Government.

72. In line with this approach, the Court has recently found that the participation of a State in the defence of proceedings against it in another State does not, without more, amount to an exercise of extra-territorial jurisdiction (McElhinney v. Ireland and the United Kingdom (dec.), no. 31253/96, p. 7, 9 February 2000, unpublished). The Court said:

(d) Were the present applicants therefore capable of coming within the "jurisdiction" of the respondent States?

74. The applicants maintain that the bombing of RTS by the respondent States constitutes yet a further example of an extra-territorial act which can be accommodated by the notion of "jurisdiction" in Article 1 of the Convention, and are thereby proposing a further specification of the ordinary meaning of the term "jurisdiction" in Article 1 of the Convention. The Court must be satisfied that equally exceptional circumstances exist in the present case which could amount to the extra-territorial exercise of jurisdiction by a Contracting State.

75. In the first place, the applicants suggest a specific application of the "effective control" criteria developed in the northern Cyprus cases. They claim that the positive obligation under Article 1 extends to securing the Convention rights in a manner proportionate to

the level of control exercised in any given extra-territorial situation. The Governments contend that this amounts to a "cause-and-effect" notion of jurisdiction not contemplated by or appropriate to Article 1 of the Convention. The Court considers that the applicants' submission is tantamount to arguing that anyone adversely affected by an act imputable to a Contracting State, wherever in the world that act may have been committed or its consequences felt, is thereby brought within the jurisdiction of that State for the purpose of Article 1 of the Convention.

The Court is inclined to agree with the Governments' submission that the text of Article 1 does not accommodate such an approach to "jurisdiction". Admittedly, the applicants accept that jurisdiction, and any consequent State Convention responsibility, would be limited in the circumstances to the commission and consequences of that particular act. However, the Court is of the view that the wording of Article 1 does not provide any support for the applicants' suggestion that the positive obligation in Article 1 to secure "the rights and freedoms defined in Section I of this Convention" can be divided and tailored in accordance with the particular circumstances of the extra-territorial act in question and, it considers its view in this respect supported by the text of Article 19 of the Convention. Indeed the applicants' approach does not explain the application of the words "within their jurisdiction" in Article 1 and it even goes so far as to render those words superfluous and devoid of any purpose. Had the drafters of the Convention wished to ensure jurisdiction as extensive as that advocated by the applicants, they could have adopted a text the same as or similar to the contemporaneous Articles 1 of the four Geneva Conventions of 1949 (see § 25 above).

Furthermore, the applicants' notion of jurisdiction equates the determination of whether an individual falls within the jurisdiction of a Contracting State with the question of whether that person can be considered to be a victim of a violation of rights guaranteed by the Convention. These are separate and distinct admissibility conditions, each of which has to be satisfied in the afore-mentioned order, before an individual can invoke the Convention provisions against a Contracting State.

79. Fifthly and more generally, the applicants maintain that any failure to accept that they fell within the jurisdiction of the respondent States would defeat the ordre public mission of the Convention and leave a regrettable vacuum in the Convention system of human rights' protection.

It is true that, in its above-cited Cyprus v. Turkey judgment (at § 78), the Court was conscious of the need to avoid "a regrettable vacuum in the system of human-rights protection" in northern Cyprus. However, and as noted by the Governments, that comment related to an entirely different situation to the present: the inhabitants of northern Cyprus would have found themselves excluded from the benefits of the Convention safeguards and system which they had previously enjoyed, by Turkey's "effective control" of the territory and by the accompanying inability of the Cypriot Government, as a Contracting State, to fulfil the obligations it had undertaken under the Convention.

In short, the Convention is a multi-lateral treaty operating, subject to Article 56 of the Convention[2], in an essentially regional context and notably in the legal space (espace

juridique) of the Contracting States. The FRY clearly does not fall within this legal space. The Convention was not designed to be applied throughout the world, even in respect of the conduct of Contracting States. Accordingly, the desirability of avoiding a gap or vacuum in human rights' protection has so far been relied on by the Court in favour of establishing jurisdiction only when the territory in question was one that, but for the specific circumstances, would normally be covered by the Convention.

81. Finally, the applicants relied, in particular, on the admissibility decisions of the Court in the above-cited Issa and Öcalan cases. It is true that the Court has declared both of these cases admissible and that they include certain complaints about alleged actions by Turkish agents outside Turkish territory. However, in neither of those cases was the issue of jurisdiction raised by the respondent Government or addressed in the admissibility decisions and in any event the merits of those cases remain to be decided. Similarly, no jurisdiction objection is recorded in the decision leading to the inadmissibility of the Xhavara case to which the applicants also referred (cited above); at any rate, the applicants do not dispute the Governments' evidence about the sharing by prior written agreement of jurisdiction between Albania and Italy. The Ilascu case, also referred to by the applicants and cited above, concerns allegations that Russian forces control part of the territory of Moldova, an issue to be decided definitively on the merits of that case. Accordingly, these cases do not provide any support for the applicants' interpretation of the jurisdiction of Contracting States within the meaning of Article 1 of the Convention.

4. The Court's conclusion

82. The Court is not therefore persuaded that there was any jurisdictional link between the persons who were victims of the act complained of and the respondent States. Accordingly, it is not satisfied that the applicants and their deceased relatives were capable of coming within the jurisdiction of the respondent States on account of the extra-territorial act in question.

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